

MICHIGAN DEPARTMENT OF
STATE POLICE

ORIGINAL INCIDENT REPORT

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

TIME RECEIVED:
0850

FILE CLASS:
09005

WORK UNIT:
MSP 6TH DISTRICT HEADQUARTERS

COUNTY:
KENT

COMPLAINANT:
PATROL

TELEPHONE NO:

ADDRESS: STREET AND NO:
2290 4 MILE RD NW

CITY:
GRAND RAPIDS

STATE:
MI

ZIP CODE:
49544

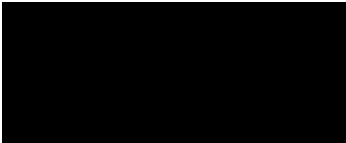
INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

INFORMATION:

On 04/04/22 at approximately 0912hrs, I received a phone call from D/Lt. Davis requesting I respond to the below venue for an officer involved shooting. During the initial investigation, I learned that at approximately 0815hrs Grand Rapids Police Department (GRPD) Ofc. Christopher Schurr was involved in the shooting death of PATRICK LYOYA. The initial investigation included the Michigan State Police (MSP) Special Investigations Section (SIS), the Crime Scene Response Team (CSRT), Accident Reconstruction Unit (ARU), and the Computer Crimes Unit (CCU).

VENUE:



DATE & TIME:

ON OR AFTER: SAT, APR 04, 2020

WEATHER:

According to the National Oceanic and Atmospheric Administration, GRR Airport:

Date/Time	Temp	Dew	Relative	Wind	Wind	Wind	Visibility	Weather	Clouds	Sea Level	Station	Altimeter	1 Hour	3 Hour	6 Hour	24 Hour	6 Hr	24 Hr	24 Hr
(L)	(°F)	(°F)	(%)	(°F)	Direction	Speed	(miles)		(x100 ft)	(mb)	(in Hg)	(in Hg)	Precip	Precip	Precip	Precip	Max	Min	Max
Apr 4, 9:00 am	34	30	86	27	SE	8	1.00	Lt snow, Mist	OVC008			29.07	29.92						
Apr 4, 8:55 am	34	30	86	28	SE	7	1.25	Mist, Lt rain,	BKN008 OVC012			29.07	29.92	0.01					
Apr 4, 8:53 am	34	31	88	28	SE	7	1.25	Mist, Lt snow,	OVC006	1013.80		29.07	29.92	0.10					
Apr 4, 8:50 am	34	30	86	28	SE	7	2.00	Mist, Lt rain,	BKN008 OVC010			29.07	29.92	0.09					
Apr 4, 8:45 am	34	32	93	28	SE	7	2.00	Mist, Lt rain,	OVC008			29.07	29.92	0.08					
Apr 4, 8:41 am	35	31	87	29	SE	7	2.00	Mist, Lt snow,	BKN008 OVC015			29.08	29.93	0.08					
Apr 4, 8:40 am	36	32	87	30	SE	7	2.00	Mist, Lt rain,	BKN008 OVC015			29.08	29.93	0.08					
Apr 4, 8:35 am	36	32	87	29	SE	8	3.00	Mist, Lt rain,	OVC008			29.08	29.93	0.06					
Apr 4, 8:30 am	36	32	87	29	SE	9	3.00	Mist, Lt rain,	OVC008			29.08	29.93	0.06					
Apr 4, 8:25 am	36	34	93	29	SE	9	3.50	Mist, Lt rain,	OVC008			29.08	29.93	0.05					
Apr 4, 8:20 am	36	32	87	28	SE	10	4.00	Mist, Lt rain,	OVC010			29.08	29.93	0.04					
Apr 4, 8:15 am	36	34	93	28	SE	10	4.00	Mist, Lt rain,	OVC010			29.08	29.93	0.03					
Apr 4, 8:12 am	36	34	93	28	SE	12	4.00	Mist, Lt rain,	OVC010			29.08	29.93	0.03					
Apr 4, 8:10 am	36	34	93	27	SE	13	4.00	Lt rain, Mist	OVC010			29.08	29.93	0.03					
Apr 4, 8:05 am	36	34	93	27	SSE	13	5.00	Lt rain, Mist	OVC010			29.08	29.93	0.02					
Apr 4, 8:00 am	37	34	87	30	SSE	10	6.00	Lt rain, Mist	OVC010			29.08	29.93						
Apr 4, 7:55 am	37	34	87	30	SSE	12	6.00	Lt rain, Mist	OVC011			29.08	29.93						

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INVESTIGATED BY:
TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

REVIEWED BY:

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DECEASED:

NAM: PATRICK LYOYA

BIR:

RAC:

ETH:

NBR:

DIR:

SEX:

DL:

STR:

DOB:

SSN:

SFX:

HGT:

SI:

CTY:

ST:

WGT:

FBI:

TXH:

ZIP:

HAI:

MNU:

TXW:

EYE:

PR:

SMT:

OFFICER INVOLVED:

NAM: CHRISTOPHER PAUL SCHURR

BIR:

RAC:

ETH:

NBR: 1

DIR:

SEX:

DL:

STR: MONROE CTR

DOB:

SSN:

SFX: STREET

HGT:

SI: /

CTY: GRAND
RAPIDS

ST: MI

WGT:

FBI:

TXH:

ZIP: 49503

HAI:

MNU:

TXW: 6164563400

EYE:

PR:

SMT:

RELATED REPORTS:

- 22-698 East Grand Rapids Department of Public Safety
- 22-5790 Grand Rapids Fire Department
- 22-18456 Grand Rapids Police Department
- 3329756 Life EMS Ambulance
- 1-131-22 MSP Accident Reconstruction Unit
- AVU-180-22 MSP Audio/Visual Analysis Section
- CCU-975-22 MSP Computer Crimes Unit
- GR22-1695 MSP Crime Lab
- 61-2710-22 MSP Grand Rapids Post

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PRINTED: 5/3/2022 09:14

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Mon, Apr 04, 2022

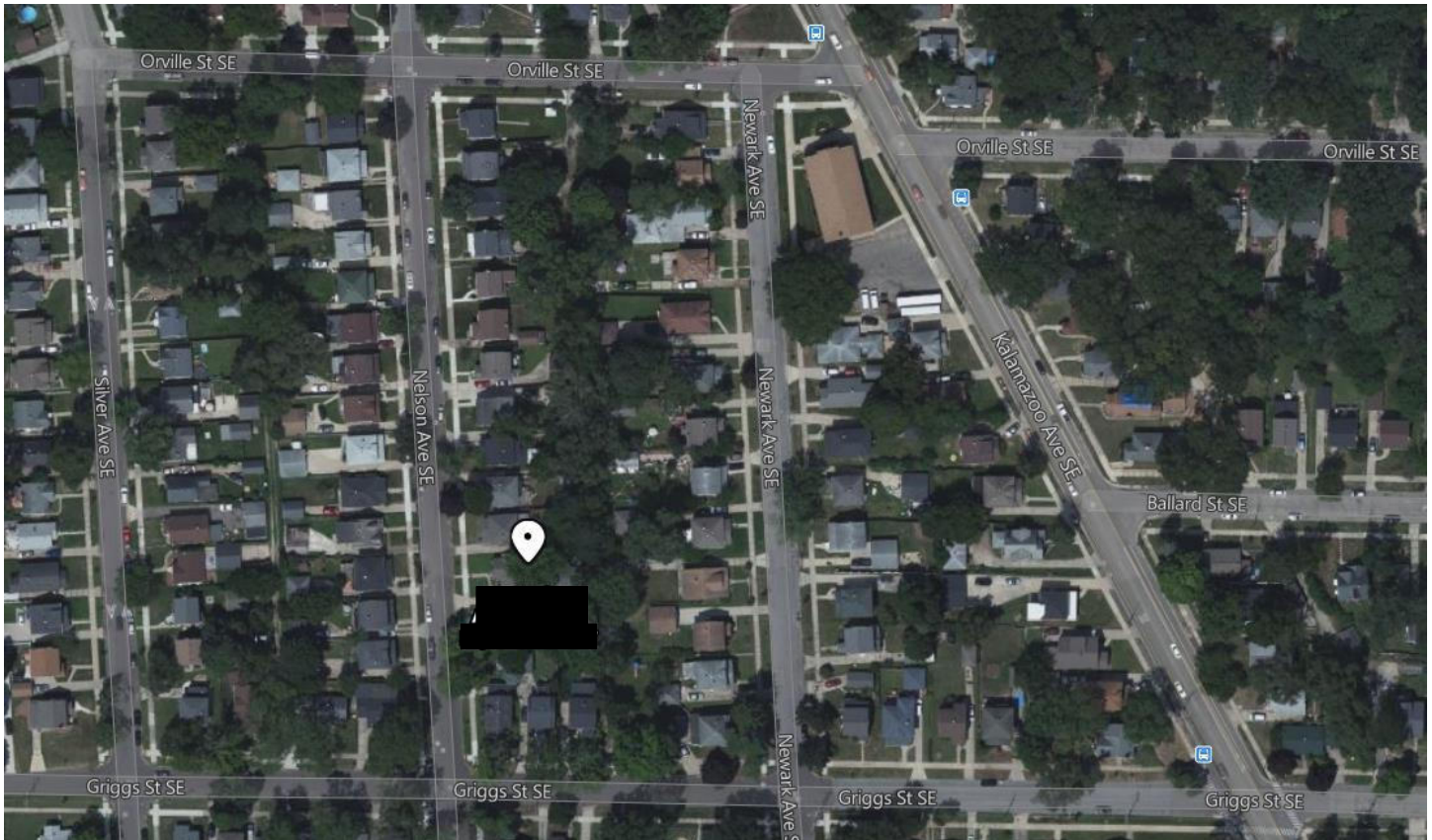
INCIDENT NO:
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SCENE DESCRIPTION:

This incident occurred north of the intersection of Nelson Ave / Griggs St SE, in front of the residences of [REDACTED], and [REDACTED]. Nelson Ave SE is a north-south road. This area is composed of residential homes. The map below was obtained from Microsoft Bing – Maps:



INITIAL SCENE OBSERVATIONS:

Upon arrival on scene, I made contact with GRPD Capt. Bylsma, who informed me of the details of the preliminary investigation. I learned that the deceased (later identified as PATRICK LYOYA) was the driver of the suspect vehicle, a Nissan Altima. The passenger of the suspect vehicle, [REDACTED], was currently at the GRPD headquarters. Ofc. Schurr was also at GRPD. D/Sgts. Fimbinger, DeWaalMalefyt, and Sowa responded there. Neither the suspect vehicle nor Ofc. Schurr's patrol vehicle had been moved since the shooting; they were in a configuration on Nelson Ave consistent with a northbound traffic stop. PATRICK's body had been covered with an emergency blanket, and remained where first responders had provided life-saving efforts. Tprs. Damstra and Nickel arrived on scene and accompanied me in observing the deceased. They took photographs.

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PRESERVATION OF EVIDENCE:

Upon first observing the location of the body, I noticed a body-worn camera lying on the muddy ground. It should be noted that there was significant rainfall during the early investigation. Fearing the electronic camera would be damaged by the mud and rain, I retrieved it from the ground and powered it down. I turned the camera over to D/Sgt. Sowa, and he brought it to GRPD for download. It was later entered into evidence.

RESIDENT [REDACTED]

NAM: [REDACTED]

BIR: [REDACTED]

RAC: [REDACTED]

ETH: [REDACTED]

NBR [REDACTED]

DIR: [REDACTED]

SEX: [REDACTED]

DL: [REDACTED]

STR [REDACTED]

DOB: [REDACTED]

SSN: [REDACTED]

SFX [REDACTED]

HGT: [REDACTED]

SI: /

CTY [REDACTED]

ST: [REDACTED]

WGT: [REDACTED]

FBI: [REDACTED]

TXH [REDACTED]

ZIP: [REDACTED]

HAI: [REDACTED]

MNU: [REDACTED]

TXW [REDACTED]

EYE: [REDACTED]

PR: [REDACTED]

MB: [REDACTED]

SMT: [REDACTED]

CONTACT WITH [REDACTED]

The neighbor to [REDACTED] of the scene, later identified as [REDACTED], asked for my attention. [REDACTED] briefly explained that he saw much of the altercation, and that he was pleading with the suspect to stop fighting with the officer. [REDACTED] also asked the passenger of the suspect vehicle to encourage his friend to stop fighting. D/Sgt. Zimmerman arrived on scene and completed a more thorough interview with [REDACTED] (supp # 2).

SUSPECT IDENTIFICATION:

Tpr. Brogger arrived on scene with a [REDACTED] Using the [REDACTED], Tpr. Brogger [REDACTED]
[REDACTED]

OBSERVATION OF BODY:

The body of PATRICK was lying supine on the ground. His head was to the north, and his feet were to the south. He was wearing a thick-knit dark green sweater (which had been cut), blue jeans, and bare feet. Two flip flop sandals were recovered just north of his location. There was blood on PATRICK's face and an apparent wound to the back of his head/upper neck. D/Sgt. Hetherington informed me that Dr. Clark of Butterworth Hospital pronounced death at 0833hrs. Immediately next to PATRICK's body, on the ground to the east, was the body camera and a yellow taser. Also to the east of the body, was a pool of blood. There was first aid equipment on the ground, including an AED and a bag-valve-mask.

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SUSPECT VEHICLE

The vehicle involved in this incident was a tan 2003 Nissan Altima. At the conclusion of the on-scene investigation, it was towed to MSP 6th District Headquarters where it was entered as property item #1. It was towed by Greg Rounds of Merl's Towing and followed by Tpr. Brogger. Open beer cans could be seen in the back seat of the vehicle.

The Michigan license plate on this vehicle was EKP9367, [REDACTED]
[REDACTED] The VIN on this vehicle was 1N4AL11E93C289027, [REDACTED]
[REDACTED]

SEIZED BY: TUBERGEN

Prop 0001 -Type: AUTOMOBILE Veh Year: 2003 Make: NISSAN Model: NISSAN ALTIMA Body Style: SEDAN, 4 DOOR Pri Color: BEIGE Sec Color: Int Color: VIN: 1N4AL11E93C289027 OAN: Plate Type: Plate Year: Plate State: MI Number of Plates: Plate #: EKP9367 Value: \$1000.00 Recovered Value: \$1000.00

Descrp: BEIGE 2003 NISSAN ALTIMA, VIN:1N4AL11E93C289027, IMPROPER PLATE:EKP9367.

Obtained From: [REDACTED]

95 - [REDACTED]

41 - KENT, GRIGGS

PARKED ON NELSON AVE, NORTH OF GRIGGS ST. TOWED BY MERL'S TOWING.

Date/Time Recovered: 04/04/2022 1400

PATROL CAR COMPUTER:

I entered Ofc. Schurr's patrol car (license plate 008x433) and observed his in-car computer. The "PremierOne Mobile Client" application was open; this is a search tool with access to the Law enforcement information network (LEIN), National Crime Information Center (NCIC), and Secretary of State (SOS) databases. I observed an inquiry on the license plate "EKP9367." The selected [REDACTED]
[REDACTED]

CRIME SCENE RESPONSE TEAM:

The CSRT responded to assist. This team included the following members:

- D/Sgt. Karsten
- F/S Huttenlocker
- F/S Shelden
- F/S Boerma

They assisted with scene photography, evidence search, and evidence collection.

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ACCIDENT RECONSTRUCTION UNIT:

The accident reconstruction unit responded to assist. This team included the following members:

- Spl/Sgt. Avery
- Spl/Sgt. Davis

They assisted with scene aerial photography and scene measurements.

CONSENT TO SEARCH:

The scene extended from the public roadway into the front yards and driveways of three private residences. The following people provided written consent to search the exterior portions of their properties:

- [REDACTED] - [REDACTED]
- [REDACTED] - [REDACTED]
- [REDACTED] - [REDACTED]

RESIDENT - [REDACTED]

NAM: [REDACTED]
BIR: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED] RAC: [REDACTED] ETH: [REDACTED]
STR: [REDACTED] SEX: [REDACTED] DL: [REDACTED]
SFX: [REDACTED] DOB: [REDACTED] SSN: [REDACTED]
CTY: [REDACTED] HGT: [REDACTED] SI: [REDACTED] /
TXH: [REDACTED] WGT: [REDACTED] FBI: [REDACTED]
TXW: [REDACTED] ST: [REDACTED] HAI: [REDACTED] MNU: [REDACTED]
MB: [REDACTED] ZIP: [REDACTED] EYE: [REDACTED] PR: [REDACTED]
SMT: [REDACTED]

CONTACT WITH [REDACTED]

While canvassing the area and attempting to gain consent to search her property, I made contact with [REDACTED] at her residence. She verbally identified herself. [REDACTED] advised that she was home at the time of the incident, however she was asleep. [REDACTED] described herself as nocturnal, and she didn't wake up until about 1030hrs. She first noticed something had happened when she looked outside and saw the police cars and crime scene tape. [REDACTED] nor did she have any other information to add to the investigation. [REDACTED] provided written consent to search the exterior of her property.

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HOME SECURITY VIDEO – [REDACTED]

GRPD Det. Roszkowski informed me of the home security system at [REDACTED] This address was [REDACTED] from where the incident occurred. There were two security cameras at this address. One camera faced southeast. The other camera faced directly east. Together, the field of view encompasses the entire physical altercation. Det. Roszkowski forwarded the 17 video clips provided to her by the resident there. They were later entered as property item #14. The videos described below overlap, and sections of each video are redundant to other video files. The videos do not have a timestamp. The most relevant videos are summarized below.

2022-04-04T12 10 43.000Z 2022-04-04T12 12 43.000Z.MOV 2min07sec SE

The Nissan was traveling north and was pulled over by Ofc. Schurr. PATRICK exited the Nissan, and Ofc. Schurr exited his patrol car. Ofc. Schurr gave verbal commands for PATRICK to stay in the car. He did not comply. Ofc. Schurr asked for PATRICK's license.

2022-04-04T12 12 17.000Z 2022-04-04T12 14 17.000Z.MOV 2min07sec E

Ofc. Schurr and PATRICK were standing near the driver's door of the Nissan. PATRICK began walking away from Ofc. Schurr. Ofc. Schurr put his hand on PATRICK's shoulder. PATRICK turned toward Ofc. Schurr, and Ofc. Schurr attempted to grab PATRICK. PATRICK evaded his grasp and ran between the Nissan and the patrol car. After a short foot chase, Ofc. Schurr tackled PATRICK from behind in the yard of [REDACTED] Ofc. Schurr yelled "Stop!" multiple times. There was a physical altercation on the ground. [REDACTED] exited his residence at [REDACTED] and watched [REDACTED] opened the passenger door of the Nissan and stood at the side of the road. Ofc. Schurr shouted, "Hands behind your back!" [REDACTED] was talking and pointing at the physical altercation, but his words were unintelligible. PATRICK and Ofc. Schurr stood up. Ofc. Schurr appeared to have PATRICK in some sort of arm hold from behind. They walked a short distance to the south. Ofc. Schurr said, "Stop" and "Stop resisting!"

2022-04-04T12 12 50.000Z 2022-04-04T12 14 50.000Z.MOV 2min07sec SE

This video also showed the initial foot-chase. Ofc. Schurr was heard giving the verbal commands described above. The video quality was poor, and it was difficult to see the interactions between PATRICK and Ofc. Schurr. A popping noise was heard, followed by Ofc. Schurr shouting, "Let go of the taser!" and "Stop." There was another popping noise and another command of "Let go of the taser!" and "Stop!"

2022-04-04T12 13 47.000Z 2022-04-04T12 15 47.000Z.MOV 1min51sec E

This video showed the initial physical altercation on the ground, PATRICK and Ofc. Schurr standing up and walking south, and the second ground physical altercation. Ofc. Schurr gave multiple commands of "Stop!" and "Stop resisting!" After a sound consistent with a taser deployment, Ofc. Schurr was heard giving the following commands – "Let go of the taser!" "Let go of the taser!" "Let go of the taser" "Let go of the Taser!" "Drop the taser!" Following those commands, but also during the second ground physical altercation, there was a cracking noise consistent with the sound of a gunshot. Ofc. Schurr gave the command of "Get back!"

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HOME SECURITY VIDEO – [REDACTED] (continued):

2022-04-04T12 14 57.000Z 2022-04-04T12 16 57.000Z.MOV 2min07sec E

This video showed the second ground physical altercation, including the cracking noise consistent with the sound of a gunshot, followed by Ofc. Schurr giving the command of "Get back!" [REDACTED] continued to stand by the passenger side of the Nissan. Ofc. Schurr walked towards his patrol car. Sirens were heard, followed by unintelligible commands. [REDACTED] put his hands on his head and began walking backward towards the patrol car.

2022-04-04T12 14 59.000Z 2022-04-04T12 16 59.000Z.MOV 2min07sec SE

The video quality was poor, and little can be seen. Ofc. Schurr gave the commands, "Let go of the taser!" "Let go of the Taser!" and "Drop the Taser!" These were followed by the cracking noise consistent with the sound of gunfire and the command of "Get back!" Additional officers arrived and began giving orders to [REDACTED]

2022-04-04T12 16 49.000Z 2022-04-04T12 18 49.000Z.MOV 2min07sec E

[REDACTED] walked backward off screen towards the patrol car. Officers approached the Nissan and appeared to check for occupants.

2022-04-04T12 18 40.000Z 2022-04-04T12 20 40.000Z.MOV 2min07sec E

Three responding officers made contact with PATRICK on the ground, followed shortly after by three more officers.

2022-04-04T12 21 01.000Z 2022-04-04T12 23 01.000Z 1.MOV 2min07sec E

Officers appeared to render CPR. The fire department arrived on scene.

CONTACT GRAND RAPIDS POLICE DEPARTMENT DISPATCH:

I called GRPD Dispatch and requested recordings of the radio traffic and the incident call-sheet information associated with this incident. Records Unit Supervisor Smith advised they would provide those as soon as they were available. These were provided on 04/07/22. The audio recordings were entered into property, and the log was added as an external document.

MEDICAL EXAMINER INVESTIGATOR:

The Medical Examiner Investigator (MEI), Thomas Wodarek [REDACTED], responded to the scene. Together, we examined PATRICK's body. I removed a cell phone from PATRICK's front left pants pocket (item #13). I placed it in airplane mode. There was a Nissan car key on the ground under PATRICK's body (item #4). It was later determined to belong to the suspect vehicle. MEI Wodarek retrieved PATRICK's wallet. We noted an identification card and several bank cards that did not belong to PATRICK.

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WALLET CONTENTS:

The wallet contained property items #7-10. These include a MI Bridge Card with the name PATRICK LYOYA and \$41 cash. There was a Michigan identification card, bank cards, and a Worksolved Staffing card belonging to [REDACTED] and two bank cards belonging to [REDACTED]

PATRICK LYOYA DISPOSITION:

PATRICK's body was transported by Nick Hopkins of Carrier on Call. Tpr. Brogger followed the body to the morgue at Spectrum Health – Blodgett. An autopsy was later conducted by pathologist Dr. Cohle. It was attended by D/Sgt. Stasiak and will be documented in a supplement report.

PASSENGER'S PHONE / COMPUTER CRIMES UNIT:

D/Sgt. Sowa seized the passenger, [REDACTED] phone (item #2). D/Sgt. Hayes was able to secure a search warrant for the phone. I delivered the phone and search warrant to the MSP 6th District Computer Crimes Unit (CCU). Det. McCaw was able to extract a video recording of this incident (item #3). The content of this video will be described in a supplemental report. Det. McCaw saw no signs of the video being shared or live-streamed prior to the phone being seized. A complete extraction was conducted and provided to me on a disk (item #40).

INTERVIEW WITH OFC. CHRIS SCHURR:

I contacted the GRPD Union President, Andy Bingel, and asked him to provide Ofc. Schurr's attorney with my contact information. I received a call from Attorney David Dodge who stated he and Mark Dodge were representing Ofc. Schurr in this case. David stated he would consult with Ofc. Schurr and Mark about possibly providing a voluntary statement. David stated he would contact me sometime during the week of April 11.

FATHER OF DECEASED:

NAM: [REDACTED]

BIR:		RAC:	[REDACTED]	ETH:	[REDACTED]
NBR:	[REDACTED]	SEX:	[REDACTED]	DL:	[REDACTED]
STR:	[REDACTED]	DOB:	[REDACTED]	SSN:	[REDACTED]
SFX:	[REDACTED]	HGT:	[REDACTED]	SI:	/
CTY:	[REDACTED]	WGT:	[REDACTED]	FBI:	
TXH:	[REDACTED]	HAI:	[REDACTED]	MNU:	
TXW:	[REDACTED]	EYE:	[REDACTED]	PR:	
MB:	[REDACTED]				
SMT:	[REDACTED]				

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DEATH NOTIFICATION:

D/Sgt. DeWaalMalefyt informed me that PATRICK's father, [REDACTED] lived in the [REDACTED] area. She coordinated the death notification. I later spoke with MSP Lansing Post D/Sgt. Adamczyk, who confirmed he delivered the death notification to [REDACTED] that same day.

PRESERVATION REQUEST – COMCAST/XFINITY:

The videos collected from the home security system at [REDACTED] could only be shared via text messaging; it is believed the videos files were compressed, and the quality may have been reduced when texted. D/Sgt. Zimmerman made contact with [REDACTED] at that residence and obtained written consent for the security video. I submitted a preservation request to Comcast/Xfinity to preserve the original recorded security video.

PRESERVATION REQUEST – RING:

D/Sgt. Hetherington informed me of a Ring doorbell camera at [REDACTED] This is the address [REDACTED] of where the altercation took place. D/Sgt. Hetherington made contact with the resident there, [REDACTED], who stated he does not pay for a Ring subscription, and he was only able to view live video. I submitted a preservation request to Ring, although it is unknown if any video was recorded and saved.

IN-CAR / BODY WORN CAMERA VIDEO:

GRPD Lt. Forner was able to download the in-car video and body-worn camera video from all GRPD officers involved. She shared these with me via Axon/Evidence.com. These files will be reviewed and summarized in a supplemental report.

CRIMINAL HISTORY:

Ofc. Schurr [REDACTED]

I obtained a criminal history for PATRICK LYOYA, which will be submitted with this report to the Kent County Prosecutor's Office. [REDACTED]

[REDACTED] It was later discovered that this court date had been adjourned and rescheduled for a later date.

PHOTOGRAPHS:

I took photographs of the [REDACTED] (PATRICK LYOYA), Ofc. Schurr's in-car computer, the patrol car license plate, the suspect vehicle, the AED, the AED pad wrapper, and the contents of PATRICK's wallet. These were uploaded to the Digital Crime Scene Repository (DCSR).

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EXTERNAL DOCUMENTS:

Consent form – [REDACTED]
Dispatch call records
MSP Crime Lab submission receipt (reference CSRT)
Search Warrant, Affidavit, Return and Tabulation for [REDACTED] phone
Search Warrant, Affidavit, Return and Tabulation for suspect vehicle

SEIZED

SEIZED BY: SOWA

Prop 0002 -Type: OFFICE EQUIPMENT Qty: 1 Article Type: Cellular Telephone Brand: Apple Model:
IPHONE Serial #: Misc #: [REDACTED] OAN: Value: \$25.00 Recovered Value: \$25.00
Descrp: BLACK IPHONE IN A BLACK LOUIS VITTON CASE BELONGING TO [REDACTED]
[REDACTED]

Obtained From: 1 MONROE CTR ST NW
95 - GRAND RAPIDS, MI 49503
41 - KENT, GRPD
PROVIDED TO D/SGT SOWA BY GRPD DET. KEIKKILA.
Date/Time Recovered: 04/04/2022

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN

Prop 0003 -Type: EVIDENCE Value: \$0.00
Descrp: ONE CD CONTAINING A VIDEO RECORDING OF THE INCIDENT EXTRACTED FROM THE
PASSENGER'S [REDACTED] PHONE (ITEM #2).
Obtained From: 2290 4 MILE RD NW
69 - WALKER, MI 49544
41 - KENT, 6TH DIST HQ
PRODUCED BY MSP 6TH DISTRICT COMPUTER CRIMES UNIT.
Date/Time Recovered: 04/04/2022

SEIZED

SEIZED BY: TUBERGEN

Prop 0004 -Type: TOOLS Qty: 1 Article Type: Keys (all types) Brand: Model: NISSAN Serial #: Misc #:
OAN: Value: \$1.00 Recovered Value: \$1.00
Descrp: ONE BLACK NISSAN KEY BELONGING TO THE SUSPECT VEHICLE (ITEM #1).
Obtained From: [REDACTED]
95 - [REDACTED]
41 - KENT, GRIGGS
LOCATED ON THE GROUND UNDER THE DECEASED.
Date/Time Recovered: 04/04/2022 1255

PAGE: 11 of 15	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY:	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

ORIGINAL INCIDENT REPORT

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

TIME RECEIVED:
0850

FILE CLASS:
09005

SEIZED (continued):

SEIZED BY: TUBERGEN

Prop 0005 -Type: CLOTHES/FUR Qty: 1 Article Type: Clothing (Description Req) Brand: Model:
SKECHERS Serial #: Misc #: OAN: Value: \$1.00 Recovered Value: \$1.00

Descrp: ONE BLACK SKECHERS FLIP FLOP SANDAL LOCATED IN YARD AT [REDACTED]

Obtained From: [REDACTED]

95 [REDACTED]

41 - KENT, GRIGGS

LOCATED ON GROUND IN FRONT YARD.

Date/Time Recovered: 04/04/2022 1344

SEIZED BY: TUBERGEN

Prop 0006 -Type: CLOTHES/FUR Qty: 1 Article Type: Clothing (Description Req) Brand: Model:
SKECHERS Serial #: Misc #: OAN: Value: \$1.00 Recovered Value: \$1.00

Descrp: ONE BLACK SKECHERS FLIP FLOP SANDAL LOCATED IN YARD AT [REDACTED]

Obtained From: [REDACTED]

95 - [REDACTED]

41 - KENT, GRIGGS

LOCATED ON GROUND IN FRONT YARD.

Date/Time Recovered: 04/05/2022 1345

SEIZED BY: TUBERGEN

Prop 0007 -Type: CREDIT/DEBIT CARD Qty: 1 Article Type: Card (Description Req) Brand: Model: Serial
#: Misc #: OAN: Value: \$1.00 Recovered Value: \$1.00

Descrp: ONE DARK GREEN VELCRO WALLET CONTAINING VARO VISA DEBIT CARD AND MI BRIDGE
CARD BELONGING TO PATRICK LYOYA. MISC CARDS: SPEEDY REWARDS, WORKFORCE MASTER
CARD (X2), GILL STAFFING CARD, KIRKLAND TOWING, ASHTON WOODS APTS, CUT CREATORS,
RICHARD KESSLER ATTY, ELITE SYTYLES, POST-IT NOTE, DTE NOTE.

Obtained From: [REDACTED]

95 - [REDACTED]

41 - KENT, GRIGGS

LOCATED UNDER THE DECEASED.

Date/Time Recovered: 04/04/2022 1255

SEIZED BY: TUBERGEN

Prop 0008 -Type: IDENTIFICATION CARD Qty: 1 Article Type: Card, Identification Brand: Model: Serial #:
Misc #: OAN: Value: \$1.00 Recovered Value: \$1.00

Descrp: MI ID CARD # [REDACTED], BELONGING TO [REDACTED]
[REDACTED] FINTWISTSOLUTIONS MASTERCARDS (X2), AND WORKSOLVED STAFFING CARD.
PREVIOUSLY LOCATED IN SUSPECT'S WALLET (ITEM #7).

Obtained From: [REDACTED]

95 - [REDACTED]

41 - KENT, GRIGGS

LOCATED UNDER THE DECEASED.

Date/Time Recovered: 04/04/2022 1255

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

ORIGINAL INCIDENT REPORT

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
TIME RECEIVED: 0850	FILE CLASS: 09005

SEIZED (continued):

SEIZED BY: TUBERGEN

Prop 0009 -Type: CREDIT/DEBIT CARD Qty: 1 Article Type: Card (Description Req) Brand: Model: Serial #: Misc #: OAN: Value: \$1.00 Recovered Value: \$1.00

Descrp: ONE VARO VISA CARD AND ONE CHIME VISA CARD BELONGING TO [REDACTED]
PREVIOUSLY LOCATED IN SUSPECT'S WALLET (ITEM #7).

Obtained From: [REDACTED]

95 - [REDACTED]

41 - KENT, GRIGGS

LOCATED UNDER THE DECEASED.

Date/Time Recovered: 04/04/2022 1255

SEIZED BY: TUBERGEN

Prop 0010 -Qty: 41 Type: FEDERAL RESERVE NOTE (MONEY) Denomination: Issuer: Owner: Issue Date #: Maturation Date: High Serial #: Low Serial #: OAN: Value: \$41.00

Descrp: \$41 (20X2, 1X1). ADM27: F1357017.

Obtained From: [REDACTED]

95 - [REDACTED]

41 - KENT, GRIGGS

LOCATED UNDER THE DECEASED.

Date/Time Recovered: 04/04/2022 1255

SEIZED BY: TUBERGEN

Prop 0011 -Type: AMMUNITION Value: \$0.00

Descrp: TWO TASER PROBES AND WIRE RETRIEVED FROM THE GROUND.

Obtained From: [REDACTED]

95 - [REDACTED]

41 - KENT, GRIGGS

COLLECTED BY MSP CRIME LAB F/S HUTTENLOCKER AND TURNED OVER TO D/SGT. TUBERGEN ON SCENE.

Date/Time Recovered: 04/05/2022 1400

SEIZED BY: TUBERGEN

Prop 0012 -Type: TOOLS Qty: 1 Article Type: Defibrillator Brand: Model: LIFEPAK Serial #: 45173389

Misc #: OAN: 332115 Value: \$200.00 Recovered Value: \$200.00

Descrp: ONE LIFEPAK CR PLUS DEFIBRILLATOR. LABELED SN#45173389 AND OAN#332115.

Obtained From: [REDACTED]

95 - [REDACTED]

41 - KENT, GRIGGS

LOCATED ON GROUND NEXT TO THE DECEASED.

Date/Time Recovered: 04/05/2022 1400

PAGE: 13 of 15	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY:	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

ORIGINAL INCIDENT REPORT

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
TIME RECEIVED: 0850	FILE CLASS: 09005

SEIZED (continued):

SEIZED BY: TUBERGEN

Prop 0013 -Type: OFFICE EQUIPMENT Qty: 1 Article Type: Cellular Telephone Brand: Apple Model: IPHONE Serial #: Misc #: OAN: Value: \$25.00 Recovered Value: \$25.00
Descrp: ONE RED AND BLACK APPLE IPHONE IN A BLUE CASE. RETRIEVED FROM THE FRONT LEFT POCKET OF THE DECEASED.

Obtained From: [REDACTED]

95 [REDACTED]

41 - KENT, GRIGGS

LOCATED IN THE FRONT LEFT POCKET OF THE DECEASED.

Date/Time Recovered: 04/04/2022 1400

SEIZED BY: TUBERGEN

Prop 0031 -Type: TOOLS Qty: 1 Article Type: Camera, Video Brand: Model: AXON Serial #: [REDACTED]
Misc #: OAN: 195 Value: \$100.00 Recovered Value: \$100.00
Descrp: ONE BLACK AXON BODY WORN CAMERA, SN# [REDACTED] OAN#195.

Obtained From: [REDACTED]

95 [REDACTED]

41 - KENT, GRIGGS

LYING ON GROUND NEXT TO THE DECEASED.

Date/Time Recovered: 04/04/2022 0930

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN

Prop 0040 -Type: EVIDENCE Value: \$0.00

Descrp: ONE DISK CONTAINING THE PHONE EXTRACTION PRODUCED BY MSP CCU FROM THE PASSENGER'S [REDACTED] PHONE (ITEM #2).

Obtained From: 2290 4 MILE RD NW

95 - GRAND RAPIDS, MI 49544

41 - KENT, 6TH DIST HQ

OBTAINED FROM CCU AND ENTERED INTO PROPERTY; BOTH AT 6TH DISTRICT HQ.

Date/Time Recovered: 04/05/2022 1330

OBTAINED BY: D/SGT SOWA

Prop 0014 -Type: COMPUTER HARDWARE/SOFTWARE Qty: 1 Article Type: Disk Drives Brand: Model: Serial #: Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: ONE YELLOW USB 3.1 128GB DRIVE. DRIVE CONTAINS AUDIT LOGS, HOUSE SURVEILLANCE VIDEO OF THE INCIDENT AND THE INTERVIEW OF SUSPECTS PASSENGER AND MSP D/SGTS.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY LT. FORNER.

Date/Time Recovered: 04/04/2022 1600

PAGE: 14 of 15	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY:	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

ORIGINAL INCIDENT REPORT

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
TIME RECEIVED: 0850	FILE CLASS: 09005

FURTHER ACTION:

This incident pends further investigation.

STATUS:

OPEN

PAGE: 15 of 15	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY:	REVIEWED BY:
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PRINTED: 5/3/2022 09:14

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0001**

ORIGINAL DATE:
Mon, Apr 04, 2022

SUPPLEMENTARY DATE:
Tue, Apr 05, 2022

INCIDENT NO:
060-0000137-22

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS

SUPPLEMENTAL REPORT:

This report is authored by D/Sgt. Ray Sowa.

INFORMATION:

D/Lt. Davis contacted me on 4/4/22 and requested my assistance in the investigation of an officer involved shooting involving a Grand Rapids Police Officer. I responded to the Grand Rapids PD at approximately 9:45 am to obtain evidence from the involved officer, Christopher Schurr.

SUSPECT/GRPD OFFICER:

NAM: CHRISTOPHER PAUL SCHURR
BIR:

RAC:

ETH:

NBR: 1

DIR:

SEX:

DL:

STR: MONROE CTR

DOB:

SSN:

SFX: STREET

HGT:

SI: /

CTY: GRAND
RAPIDS

ST: MI

WGT:

FBI:

TXH: [REDACTED] **ZIP:** 49503

HAI:

MNU:

TXW: 6164563400

EYE:

PR:

SMT:

INTERVIEW INVOLVED OFFICER

No interview was conducted, I was however introduced to Officer Schurr and I provided him a business card. Officer Schurr had already changed out into civilian clothes upon my arrival. His duty uniform, pistol, gun belt and other duty items were already secured by the GRPD Forensic Unit upon my arrival.

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

SOWA, R, 159, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0001**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Tue, Apr 05, 2022

FILE CLASS:
09005

ROUND COUNT OF OFFICER SCHURR'S PISTOL (ITEM #16):

I was present during the round count of Officer Schurr's pistol and magazines. GRPD, Lt. Siver conducted the round count in my presence. The rounds were counted on brown paper and were photographed by myself and GRPD Forensic Services Unit, Jessica Beaudry #654. Present during the round count were, Lt. Siver, Lt. Forner, Ofc Schurr, Ofc Martin, Ofc Loeb, Ofc Fyneweever, and myself.

ROUND COUNT TOTALS:

There were two spare magazines (Item #17) which were counted. Each magazine contained 17 rounds.

The service weapons magazine and the service weapons chamber (Items #16 and 18) were examined and 17 total rounds were counted between the two.

CONTACT D/SGT FIMBINGER AND D/SGT DEWAALMALEFYT:

During the interview of passenger [REDACTED] consented to search his phone in order to obtain his mother and father's phone numbers. [REDACTED] provided a passcode to his cell phone [REDACTED] [REDACTED] advised his mother's contact is under "Mom" and his father's contact is listed under "Pops."

I contacted Detective Thomas Heikkila #181 and obtained [REDACTED] cell phone, the phone was on a charger and already in airplane mode at the time. I entered the passcode [REDACTED] in [REDACTED] cell phone and was successful in retrieving his mother's phone number [REDACTED] and his father's number [REDACTED]. No other searches were done.

The phone was placed in an evidence envelope and I later turned it over to D/Sgt. Tubergen on 4/4/22 at 12:30 pm.

BODY WORN CAMERA (ITEM #40):

At the time I turned over [REDACTED] cell phone, D/Sgt. Tubergen requested I bring the Body Worn Camera (BWC) of Officer Schurr to the GRPD and have the video downloaded. I brought the camera back to GRPD and requested the BWC be swabbed (Item #29) for DNA purposes prior to the download. This was completed by forensic technician, Jessica Beaudry #654.

After the BWC was swabbed, Lt. Forner docked the BWC for the upload. I waited while the upload was complete and then took custody of it.

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

SOWA, R, 159, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0001**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Tue, Apr 05, 2022	FILE CLASS: 09005

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: D/SGT SOWA

Prop 0014 -Type: COMPUTER HARDWARE/SOFTWARE Qty: 1 Article Type: Disk Drives Brand: Model:
Serial #: Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: ONE YELLOW USB 3.1 128GB DRIVE. DRIVE CONTAINS AUDIT LOGS, HOUSE SURVEILLANCE
VIDEO OF THE INCIDENT AND THE INTERVIEW OF SUSPECTS PASSENGER AND MSP D/SGTS.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY LT. FORNER.

Date/Time Recovered: 04/04/2022 1600

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: D/SGT SOWA

Prop 0015 -Type: COMPUTER HARDWARE/SOFTWARE Qty: 1 Article Type: Disk Drives Brand: Model:
Serial #: Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: BLUE VERBATIM DRIVE CONTAINING OFFICER SCHURR'S BODY WORN CAMERA AND IN CAR
CAMERA VIDEO.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY LT. FORNER.

Date/Time Recovered: 04/05/2022 1600

SEIZED

SEIZED BY: D/SGT SOWA

Prop 0016 -Type1: Pistol Type2: SEMI-AUTOMATIC Make: GLOCK, INC. Model: 17 GEN 5 Registered to
Owner: Cal.: 9MM Bar Ln: Shots: 17 Finish: Blue Serial #: [REDACTED] OAN: Value: \$500.00 Inscription:
Recovered Value: \$500.00

Descrp: ONE GLOCK 17 9MM PISTOL BELONGING TO OFFICER SCHURR. STREAMLIGHT TLR-1 HL
LIGHT ATTACHED TO FRONT RAIL.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

PAGE: 3 of 8	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: SOWA, R, 159, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0001**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Tue, Apr 05, 2022	FILE CLASS: 09005

DESTROYED/DAMAGED/VANDALIZED

OBTAINED BY: D/SGT SOWA
Prop 0017 -Type: AMMUNITION Value: \$35.00
Descrp: 2-GLOCK 17 MAGAZINES, 34 ROUNDS OF F.C. 9MM AMMUNITION (SPARE
MAGAZINES/OFFICER SCHURR)
Obtained From: 1 NW MONROE CENTER ST
95 - GRAND RAPIDS, MI 49503
41 - KENT,
TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.
Date/Time Recovered: 04/04/2022

SEIZED

SEIZED BY: D/SGT SOWA
Prop 0018 -Type: AMMUNITION Value: \$15.00
Descrp: 1-GLOCK 17 MAGAZINE AND 17 F.C. 9MM ROUNDS FROM OFFICER SCHURR'S DUTY WEAPON
Obtained From: 1 NW MONROE CENTER ST
95 - GRAND RAPIDS, MI 49503
41 - KENT,
TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.
Date/Time Recovered: 04/04/2022

SEIZED

SEIZED BY: D/SGT SOWA
Prop 0019 -Type: OTHER Qty: 1 Article Type: Article Other (Description Req) Brand: Model: Serial #:
Misc #: OAN: Value: \$125.00 Recovered Value: \$125.00
Descrp: ONE BLACK DUTY BELT WITH EMPTY TASER HOLSTER, FLASHLIGHT W/HOLDER,
PORTABLE RADIO W/HOLDER, 2 PAIR HANDCUFFS W/HOLDER, ASP, EMPTY GUN HOLSTER, OC
SPRAY W/HOLDER, EMPTY 2 MAGAZINE HOLDER. (ITEM 17 HAD BEEN REMOVED FROM MAGAZINE
HOLDERS)
Obtained From: 1 NW MONROE CENTER ST
95 - GRAND RAPIDS, MI 49503
41 - KENT,
TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.
Date/Time Recovered: 04/04/2022

PAGE: 4 of 8	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: SOWA, R, 159, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0001**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Tue, Apr 05, 2022	FILE CLASS: 09005

SEIZED

SEIZED BY: D/SGT SOWA

Prop 0020 -Type: HOUSEHOLD APPLIANCE Qty: 1 Article Type: Knife Brand: Model: Serial #: Misc #:
909 OF 1000 OAN: Value: \$50.00 Recovered Value: \$50.00

Descrp: ONE BLACK (BENCHMADE) FOLDING/POCKET KNIFE.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

SEIZED

SEIZED BY: D/SGT SOWA

Prop 0021 -Type: MISCELLANEOUS Value: \$50.00

Descrp: ONE TOURNIQUET, BLACK GRPD MASK, MULTIPLE RUBBER GLOVES, AND ONE DOSE OF
NARCAN.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

SEIZED

SEIZED BY: D/SGT SOWA

Prop 0022 -Type: MISCELLANEOUS Value: \$25.00

Descrp: ONE BLACK BELT WITH FOUR (4) DUTY BELT KEEPERS.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

PAGE: 5 of 8	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: SOWA, R, 159, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0001**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Tue, Apr 05, 2022	FILE CLASS: 09005

SEIZED

SEIZED BY: D/SGT SOWA

Prop 0023 -Type: CLOTHES/FUR Qty: 1 Article Type: Clothing (Description Req) Brand: Model: Serial #:
Misc #: OAN: Value: \$100.00 Recovered Value: \$100.00

Descrp: BLACK LONG SLEEVE UNIFORM SHIRT WITH BADGE, NAME TAG (CHRITOPHER SCHURR),
INK PEN AND CUFF KEY.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

SEIZED

SEIZED BY: D/SGT SOWA

Prop 0024 -Type: CLOTHES/FUR Qty: 1 Article Type: Vest, Riot (bulletproof) Brand: Model: Serial #:
Misc #: OAN: Value: \$200.00 Recovered Value: \$200.00

Descrp: ONE BALLISTIC VEST WITH BODYCAM CLIP

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

SEIZED

SEIZED BY: D/SGT SOWA

Prop 0025 -Type: CLOTHES/FUR Qty: 1 Article Type: Clothing (Description Req) Brand: Model: Serial #:
Misc #: OAN: Value: \$50.00 Recovered Value: \$50.00

Descrp: ONE NAVY UNIFORM PANTS SIZE 31R.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

PAGE: 6 of 8	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: SOWA, R, 159, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0001**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Tue, Apr 05, 2022	FILE CLASS: 09005

SEIZED

SEIZED BY: D/SGT SOWA

Prop 0026 -Type: OTHER Qty: 1 Article Type: Article Other (Description Req) Brand: Model: Serial #:

Misc #: OAN: Value: \$100.00 Recovered Value: \$100.00

Descrp: ONE PAIR OF BLACK 5.11 BOOTS SIZE 11.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: D/SGT SOWA

Prop 0027 -Type: EVIDENCE Value: \$0.00

Descrp: ONE ENVELOPE CONTAINING COTTON TIPPED SWABS FROM ITEM #16.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: D/SGT SOWA

Prop 0028 -Type: EVIDENCE Value: \$0.00

Descrp: ONE ENVELOPE CONTAINING COTTON TIPPED SWABS FROM EXTERIOR OF DUTY BELT (ITEM #19).

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

PAGE: 7 of 8	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: SOWA, R, 159, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0001**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Tue, Apr 05, 2022	FILE CLASS: 09005

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: D/SGT SOWA

Prop 0029 -Type: EVIDENCE Value: \$0.00

Descrp: ONE ENVELOPE CONTAINING COTTON TIPPED SWAB TAKEN OF BODY WORN CAMERA.

Obtained From: 1 NW MONROE CENTER ST

95 - GRAND RAPIDS, MI 49503

41 - KENT,

TURNED OVER BY GRPD FORENSIC SERVICES UNIT, JESSICA BEAUDRY.

Date/Time Recovered: 04/04/2022

PHOTOGRAPHS:

I received a DVD of GRPD Forensic Unit photos of the above mentioned property. I turned the DVD over to D/Sgt. Tubergen on 4/5/22.

I took photos and uploaded them to the MSP repository.

EXTERNAL DOCUMENTS:

GRPD Forensic Unit report and hand written inventory list

STATUS:

OPEN

PAGE: 8 of 8	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: SOWA, R, 159, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0002**

ORIGINAL DATE:
Mon, Apr 04, 2022

SUPPLEMENTARY DATE:
Tue, Apr 05, 2022

INCIDENT NO:
060-0000137-22

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS

INFORMATION:

On 04-04-2022 at 8:41 am, I was contacted by D/Lt Davis regarding an officer involved shooting in the city of Grand Rapids. I responded to Nelson Ave and Griggs St, where I made contact with the officer in charge of the investigation, D/Sgt Tubergen.

I, along with D/Sgt Hetherington, completed a neighborhood canvass of the surrounding homes and completed interviews with residents, which are documented below. In addition, I followed the patrol vehicle of the officer involved back to the Grand Rapids Police Department for retention of in-car video from the vehicle. That audio and video footage will be included with additional video provided by the Grand Rapids Police Department to D/Sgt Sowa.

WITNESS

NAM: [REDACTED]

BIR:

RAC:

ETH:

NBR: [REDACTED] **DIR:** [REDACTED]

SEX: [REDACTED]

DL: [REDACTED]
SSN: [REDACTED]
SI: /

CTY: [REDACTED] **ST:** [REDACTED]

WGT: [REDACTED]

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED]

HAI: [REDACTED]

MNU:

TXW: [REDACTED]

EYE: [REDACTED]

PR:

MB: [REDACTED]

SMT: [REDACTED]

INTERVIEW [REDACTED]

[REDACTED] was identified upon my arrival by D/Sgt Tubergen as a witness to this incident. It is worth noting that the traffic stop and subsequent altercation took place [REDACTED] home, prior to the firearm discharge at the residence [REDACTED] property. The interview with [REDACTED] was captured on my departmentally issued digital recording device. The following is a synopsis only. Please reference property item #30 for the interview in its entirety.

PAGE: 1 of 8	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: ZIMMERMAN, CORY, 390, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0002**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

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Tue, Apr 05, 2022

FILE CLASS:
09005

INTERVIEW [REDACTED] CONTINUED:

I made contact with [REDACTED] on the front porch of his residence, and he agreed to speak with me there. He began the interview by immediately explaining that he had been trying to de-escalate the situation. He pointed to a black colored sandal in his front yard and noted it was related to the incident. As I sat down next to [REDACTED] he noted the Grand Rapids officer, "did a very good job." He recalled hearing the officer tell the subject he was under arrest. He then pointed to the position of the suspect vehicle and patrol vehicle on Nelson Ave and identified that is where he first observed the situation. I confirmed this observation had been made from his upstairs window. [REDACTED] stated once he realized what was happening, he went downstairs and looked outside. He then heard the officer ask the subject where he was going, describing it as "a slow escalation." He stated he (referring to LYOYA) then started running slowly away from the officer, but not with significant pace. He stated the officer caught up with LYOYA in [REDACTED] front yard. At that point [REDACTED] stated he began addressing LYOYA as [REDACTED] opened his door, saying, "bro, bro, bro."

[REDACTED] then stated he was a [REDACTED] who recalled the incident with Rodney King, but also acknowledged he knew, "what these young kids were out here on." He stated it was a balance and that he was telling me this with a heavy heart. He stated that was what prompted him to tell LYOYA to stop.

[REDACTED] began describing what he was observing at that time, describing it as a "slow tussle" between the officer and LYOYA. He stated they continued to struggle behind his car and into [REDACTED] yard, where the officer, "hit him with a couple knees." He stated the officer did not appear to be beating the subject, that it was more like he wanted him to "chill." I confirmed the subject was not in handcuffs at this point. [REDACTED] stated he asked the officer to just place him in handcuffs. He stated that once things escalated to [REDACTED] yard, the officer tased LYOYA from a distance of three to six feet apart. He stated the taser did not have an effect. He stated he was not sure if LYOYA went back at the officer, but they ended up on the ground again.

[REDACTED] then noted "his guy was recording it," referring to the passenger of LYOYA'S vehicle. [REDACTED] stated he addressed the passenger, advising him, "Tell your boy to chill." He stated at that point he decided to go back upstairs to get his own phone to record this incident and while inside he heard a "pop." He did not initially recognize the sound as a gunshot.

At that point the interview and recording are paused as I exited the porch to speak with D/Sgt Hetherington

I resumed the recording as soon as I made secondary contact with [REDACTED] on the porch, who was on the phone with his mother. Upon concluding the call with his mother, he stated, "I don't want the officer to be jammed up, he didn't really do anything wrong."

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

ZIMMERMAN, CORY, 390, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0002**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
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SUPPLEMENTARY DATE:
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FILE CLASS:
09005

INTERVIEW [REDACTED] CONTINUED:

I then began asking [REDACTED] questions. I asked how he first became aware of what was going on outside. He stated he saw the lights, which led him to look out the window. He recalled seeing the officer approach the driver's side door of the suspect vehicle and hearing the officer tell the driver, "I'm arresting you." He stated the driver was not really resisting arrest, but he did not place his hands behind his back. He stated he realized he needed to go downstairs at that point. He stated the driver side-stepped away from the officer. He then began running from the officer, while [REDACTED] was still upstairs. As he went downstairs, he saw the flip flop fly into the air as the officer tackled LYOYA. As [REDACTED] opened the entry door to the porch, he saw both the officer and LYOYA on the ground. He stated they were "tussling," and the officer was trying to subdue him. I asked if either the officer or LYOYA were saying anything at this time. He stated all he remembered was that he was telling LYOYA to stay down. He stated LYOYA did not respond to any of his requests. [REDACTED] stated he was aware I was investigating this, stating, "The officer's not wrong." He stated it did not have to be this way.

I asked if at any point whether the officer was able to establish control of LYOYA. He stated the officer, "had him, but he never had him in a position where he could handcuff him." I then clarified that LYOYA was able to get away from the officer and run to [REDACTED] yard, where the officer deployed his taser. [REDACTED] confirmed this had taken place in the neighbor's yard. He identified the ineffectiveness of the taser as the point he [REDACTED] ran upstairs to get his phone. After hearing the "pop" on his way back down the steps he looked back outside and saw the officer backing away from LYOYA, speaking on his radio that there had been an officer involved shooting. He saw LYOYA being rolled over and noted the officer's taser had been laying directly below his body. He identified the muffled, "pop" as the likely gunshot.

We then discussed the passenger of LYOYA'S vehicle. [REDACTED] stated he should have the video of everything that took place in the yard. He stated that male subject never made any statements and seemed focused on recording.

[REDACTED] stated he was not here to defend the police, nor was he anti-police. He stated the officer did all he could do, from the car to the tackle in [REDACTED] front yard, to the taser.

[REDACTED] stood by until two additional GRPD officers arrived and addressed the passenger.

[REDACTED] acknowledged the situation was unique in the fact he had seen others running to get away from something and this was not that type of situation. I asked if he was familiar with any of the occupants of the suspect vehicle, or the officer. He stated he had no familiarity with any of them.

I asked about the time that it took him to run upstairs and come back down. He stated it took 15 seconds, or less. Within this window the firearm was discharged. I confirmed that [REDACTED] did not obtain any video or photographs of this incident. He did not make any calls to 9-1-1 or dispatch.

I confirmed he did not see the officer with his firearm unholstered, and he did not see any weapons produced by LYOYA.

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

ZIMMERMAN, CORY, 390, D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

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0002**

ORIGINAL DATE:
Mon, Apr 04, 2022

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060-0000137-22

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Tue, Apr 05, 2022

FILE CLASS:
09005

INTERVIEW [REDACTED] CONTINUED:

I obtained contact information from [REDACTED], and he agreed to be available for any further questions. I asked about his neighbors and whether any would be home at this time to speak with us. He stated there was a 50/50 chance they would speak with law enforcement and would likely not want to be involved in this investigation.

[REDACTED] then provided verbal consent for me to enter his home and obtain a photograph from his upstairs bedroom where he first made his observation of the traffic stop. Two photos were taken of this vantage point.

I thanked [REDACTED] for speaking with me and the interview was subsequently concluded. I would make secondary contact with [REDACTED] to obtain written consent for MSP Grand Rapids lab personnel to process the area of [REDACTED] front yard, including the sandal observed in the grass portion of the yard. That signed consent form was turned over to D/Sgt Tubergen.

RECORDED [REDACTED] INTERVIEW:

OBTAINED BY: ZIMMERMAN

Prop 0030 -Type: RECORDING AUDIO/VISUAL Qty: 1 Article Type: Disc, Compact Audio Brand: Model:

Serial #: Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: (1) CD-R DISC CONTAINING THE RECORDED INTERVIEW WITH [REDACTED] ON 4-4-2022.

Obtained From: [REDACTED]

95 [REDACTED]

41 - KENT, RESIDENCE

Date/Time Recovered: 04/05/2022 1001

WITNESS

NAM: [REDACTED]

BIR: [REDACTED]

NBR: [REDACTED]
STR: [REDACTED]
SFX: [REDACTED]

CTY: [REDACTED]

TXH: [REDACTED]

TXW: [REDACTED]

MB: [REDACTED]

SMT: [REDACTED]

DIR: [REDACTED]

ST: [REDACTED]

ZIP: [REDACTED]

RAC: [REDACTED]

SEX: [REDACTED]
DOB: [REDACTED]
HGT: [REDACTED]

WGT: [REDACTED]

HAI: [REDACTED]
EYE: [REDACTED]

ETH: [REDACTED]

DL: [REDACTED]
SSN: [REDACTED]
SI: /

FBI: [REDACTED]

MNU: [REDACTED]
PR: [REDACTED]

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

ZIMMERMAN, CORY, 390, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

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INTERVIEW [REDACTED]

[REDACTED] resides [REDACTED] of [REDACTED] on the same side of Nelson Ave. I made contact with him on his porch. He stated he was in bed sleeping when he heard a single gunshot at approximately 8:15 am on this date. He stated he came outside and saw the suspect vehicle and patrol car's lights up the road, but he did not see any portion of the incident. I inquired as to the Ring doorbell near his entry door. He stated he observed the camera and it only showed additional officers responding from the north and based on the distance from the traffic stop, it did not contain any video of this incident.

WITNESS

NAM: [REDACTED]

BIR:

NBR: [REDACTED]

DIR: [REDACTED]

STR:

SFX:

CTY:

ST:

TXH:

ZIP: [REDACTED]

TXW:

MB: [REDACTED]

SMT:

RAC: [REDACTED]

SEX:

DOB:

HGT:

WGT:

HAI:

EYE:

ETH:

DL: [REDACTED]

SSN:

SI: /

FBI:

MNU:

PR:

INTERVIEW [REDACTED]

I made contact with [REDACTED] at her front door, after being informed by D/Sgt Tubergen that GRPD officials had secured video from her via text message. Two (2) cameras were observed on the front portion of her home, one that was pointed directly at this incident. I asked if she had witnessed any of the incident and she quickly stated she had been sleeping inside and did not see, nor hear, anything that took place.

I advised her that video quality is often limited when files are sent electronically and asked if she would be willing to provide consent for the original video files from the camera/internet provider, Xfinity. She stated that would be fine and signed a written consent form in the presence of D/Sgt Hetherington and myself. This signed form was turned over to D/Sgt Tubergen.

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

ZIMMERMAN, CORY, 390, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

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SUPPLEMENTARY DATE:
Tue, Apr 05, 2022

FILE CLASS:
09005

WITNESS

NAM: [REDACTED]
BIR: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED]
STR: [REDACTED]
SFX: [REDACTED]
CTY: [REDACTED] ST: [REDACTED]
TXH: [REDACTED] ZIP: [REDACTED]
TXW: [REDACTED]
MB: [REDACTED]
SMT: [REDACTED]

RAC: [REDACTED] ETH: [REDACTED]
SEX: [REDACTED] DL: [REDACTED]
DOB: [REDACTED] SSN: [REDACTED]
HGT: [REDACTED] SI: /
WGT: [REDACTED] FBI: [REDACTED]
HAI: [REDACTED] MNU: [REDACTED]
EYE: [REDACTED] PR: [REDACTED]

INTERVIEW [REDACTED]

[REDACTED] was contacted on his front porch. His home is [REDACTED] of the venue and [REDACTED] side of Nelson Ave). He stated he had taken the day off from work and was inside sleeping when his dog starting barking, but he remained in bed. He then heard sirens and someone yell, "Get out of the car." He stated when he got up a few minutes after hearing the yelling outside he saw that someone was already lying on the ground across the street. He was uncertain as to what time this was, assuming it was between 8:00 am and 8:15 am. He advised he never heard any gunshots and did not see any of the traffic stop. [REDACTED] had no cameras on his property. He had nothing further to add and the interview was concluded.

OTHER PERSON

NAM: [REDACTED]
BIR: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED]
STR: [REDACTED]
SFX: [REDACTED]
CTY: [REDACTED] ST: [REDACTED]
TXH: [REDACTED] ZIP: [REDACTED]
TXW: [REDACTED]
MB: [REDACTED]
SMT: [REDACTED]

RAC: [REDACTED] ETH: [REDACTED]
SEX: [REDACTED] DL: [REDACTED]
DOB: [REDACTED] SSN: [REDACTED]
HGT: [REDACTED] SI: /
WGT: [REDACTED] FBI: [REDACTED]
HAI: [REDACTED] MNU: [REDACTED]
EYE: [REDACTED] PR: [REDACTED]

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

ZIMMERMAN, CORY, 390, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0002**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Tue, Apr 05, 2022

FILE CLASS:
09005

CONTACT

I made contact with [REDACTED] on her front porch. Her residence is [REDACTED] of the venue and on the [REDACTED] side of Nelson Ave. She stated she had been asleep when this all took place and had no idea what occurred until she received a phone call from her neighbor, telling her the police had shot someone up the street. She denied hearing any gunshots.

I asked about the Ring camera near her front door. She said it was operational, but based on the distance [REDACTED] of the venue, it would not have captured any of this incident.

OTHER PERSON

NAM: [REDACTED]

BIR:

RAC: [REDACTED]

ETH:

NBR: [REDACTED]

DIR: [REDACTED]

SEX: [REDACTED]

DL: [REDACTED]

STR: [REDACTED]

DOB: [REDACTED]

SSN: [REDACTED]

SFX:

HGT:

SI: /

CTY: [REDACTED]

ST: [REDACTED]

WGT: [REDACTED]

FBI:

TXH: [REDACTED]

ZIP: [REDACTED]

HAI:

MNU:

TXW:

EYE:

PR:

MB: [REDACTED]

SMT:

CONTACT

I made contact with [REDACTED] at her front door. Her residence is [REDACTED] of the venue, on the [REDACTED] side of Nelson Ave. She advised she had been awake since early this morning, but never saw, nor heard anything. She only became aware of the incident when a GRPD officer knocked on her door at 8:50 am to inform her of the incident. As we spoke, she looked at the suspect vehicle and advised she had never seen the vehicle before. She also confirmed she had no cameras on her property. She had nothing further to add and the interview was concluded.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

ZIMMERMAN, CORY, 390, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

**MICHIGAN DEPARTMENT OF
STATE POLICE**

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INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Tue, Apr 05, 2022

FILE CLASS:
09005

OTHER PERSON

NAM: [REDACTED]

BIR:

NBR: [REDACTED] **DIR:**

STR: [REDACTED]

SFX: [REDACTED]

CTY: [REDACTED] **ST:** [REDACTED]

TXH: [REDACTED] **ZIP:** [REDACTED]

TXW: [REDACTED]

MB: [REDACTED]

SMT: [REDACTED]

RAC:

SEX:

DOB:

HGT:

WGT:

HAI:

EYE:

ETH:

DL: [REDACTED]

SSN: [REDACTED]

SI: /

FBI:

MNU:

PR:

CONTACT [REDACTED]:

[REDACTED] residence is located on the [REDACTED] of Griggs St and Nelson Ave. I spoke with him on his front porch. He acknowledged that he and his wife had both been at work that morning and came home to find his yard covered in police tape. He stated no one else would have been in his house at the time of this incident. I noted the Ring doorbell that pointed directly south, next to his entry door. He stated he and his wife had reviewed stored video as soon as they got home and did not see anything between 8:00 am and 8:15 am. He stated that if a patrol vehicle would have passed in front of their home, the emergency lights would have initiated the camera to record. He stated the only video was consistent with additional police response, after the incident. He had nothing further to add and the interview was concluded.

PHOTOGRAPHS:

Two photos were taken from the interior of [REDACTED] bedroom. They were uploaded to the repository for retention.

STATUS:

Open pending further investigation.

PAGE:

8 of 8

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

ZIMMERMAN, CORY, 390, D/SERGEANT

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INCIDENT NO:
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FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS

INFORMATION:

I was contacted by Sgt. Matt Rogers, Rockford Post, reference radio traffic involving and Officer Involved Shooting (OIS) in the city of Grand Rapids, Michigan on Monday April 4, 2022 at 8:18a. I immediately contacted D/Lt. Robert Davis with information provided to me. I was on my way to court in Ludington at the time and responded to the scene after my court appearance.

Upon arrival, I made contact with D/Lt. Robert Davis and observed the scene. The scene was secured by uniformed GRPD personnel. There were Sixth District SIS personnel and Grand Rapids Crime Laboratory personnel still on scene. The medical examiner investigator was processing the body for removal when I arrived.

I responded to Spectrum Blodgett Hospital where I observed the autopsy of PATRICK LYOYA by Dr. Stephen Cohle. I secured property from the body and brought it back to the Grand Rapids Post to put in the secure dryers. The initial results of the autopsy were that the body was absent of injury except for a single gunshot wound to the head. The initial Cause of Death: gunshot wound to the head and Manner of Death: homicide were noted during the autopsy. Toxicology of the deceased is still pending as is the final autopsy report.

VICTIM

NAM: PATRICK LYOYA

BIR:

NBR:

STR:

SFX:

CTY:

TXH:

TXW:

SMT:

DIR:

ST:

ZIP:

RAC:

SEX:

DOB:

HGT:

WGT:

HAI:

EYE:

ETH:

DL:

SSN:

SI:

FBI:

MNU:

PR:

PHOTOGRAPHS/PROPERTY SEIZED DURING AUTOPSY:

During the autopsy I took photographs of the gunshot wound to PATRICK LYOYA's head depicting the direction of travel and the bullet and fragments that were retrieved during the incident. Full photographs were taken by Spectrum Blodgett Morgue personnel and will be obtained when ready. The following property was seized:

PAGE: 1 of 4	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: STASIAK, JACQUELYN, 268, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0003**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Mon, Apr 04, 2022	FILE CLASS: 09005

SEIZED:

OBTAINED BY: JACQUELYN STASIAK
Prop 0032 -Type: EVIDENCE Value: \$0.00
Descrp: BROWN PAPER BAG CONTAINING HAND BAGS TAKEN FROM PATRICK LYOYA
Obtained From: 1840 WEALTHY ST SE
95 - GRAND RAPIDS, MI 49506
41 - KENT,
RECOVERED AT AUTOPSY OF PATIRCK LYOYA
Date/Time Recovered: 04/04/2022 1556

OBTAINED BY: JACQUELYN STASIAK
Prop 0033 -Type: EVIDENCE Value: \$0.00
Descrp: BROWN PAPER BAG CONTAINING FINGER NAIL CLIPPINGS AND PULLED HEAD HAIR AND
FINGERPRINTS OF PATRICK LYOYA
Obtained From: 1840 WEALTHY ST SE
95 - GRAND RAPIDS, MI 49506
41 - KENT,
RECOVERED AT AUTOPSY OF PATIRCK LYOYA
Date/Time Recovered: 04/04/2022 1556

SEIZED BY: JACQUELYN STASIAK
Prop 0034 -Type: AMMUNITION Value: \$0.00
Descrp: BROWN PAPER BAG CONTAINING TWO TASER PROBES, CARTRIDGES AND WIRE
RECOVERED FROM WITHIN BODY BAG WITH PATRICK LYOYA
Obtained From: 1840 WEALTHY ST SE
95 - GRAND RAPIDS, MI 49506
41 - KENT,
RECOVERED AT AUTOPSY OF PATIRCK LYOYA
Date/Time Recovered: 04/04/2022 1556

OBTAINED BY: JACQUELYN STASIAK
Prop 0035 -Type: EVIDENCE Value: \$0.00
Descrp: MANILLA ENVELOPE CONTAINING TWO PURPLE TOP VIALS OF BLOOD FROM PATRICK
LYOYA
Obtained From: 1840 WEALTHY ST SE
95 - GRAND RAPIDS, MI 49506
41 - KENT,
RECOVERED AT AUTOPSY OF PATIRCK LYOYA, PREVIOUSLY CONTAINED WITHIN ITEM 33
Date/Time Recovered: 04/04/2022 1556

PAGE: 2 of 4	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: STASIAK, JACQUELYN, 268, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

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0003**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Mon, Apr 04, 2022	FILE CLASS: 09005

SEIZED BY: JACQUELYN STASIAK

Prop 0036 -Type: AMMUNITION Value: \$0.00

Descrp: MANILLA ENVELOPE CONTIANING SMALLER ENVELOPE WITH BULLET AND THREE SMALL FRAGMENTS RECOVERED FROM SKULL OF PATRICK LYOYA

Obtained From: 1840 WEALTHY ST SE

95 - GRAND RAPIDS, MI 49506

41 - KENT,

RECOVERED AT AUTOPSY OF PATIRCK LYOYA, PREVIOUSLY CONTAINED WITHIN ITEM 33

Date/Time Recovered: 04/04/2022 1556

SEIZED BY: JACQUELYN STASIAK

Prop 0037 -Type: CLOTHES/FUR Qty: 1 Article Type: Clothing (Description Req) Brand: Model: Serial #:

Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: BROWN PAPER BAG CONTAINING BROWN PAPER BAG WITH GREEN SWEATER WITH RED/BROWN STAIN (BLOOD) CUT

Obtained From: 1840 WEALTHY ST SE

95 - GRAND RAPIDS, MI 49506

41 - KENT,

RECOVERED AT AUTOPSY OF PATIRCK LYOYA

Date/Time Recovered: 04/04/2022 1556

SEIZED BY: JACQUELYN STASIAK

Prop 0038 -Type: CLOTHES/FUR Qty: 1 Article Type: Clothing (Description Req) Brand: Model: Serial #:

Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: BROWN PAPER BAG CONTAINING ANOTHER BROWN PAPER BAG WITH HOLLISTER BLUE JEANS, BLACK BELT WITH GOLD COLORED BUCKLE AND BLACK SAHARA CLUB BOXER BRIEFS

Obtained From: 1840 WEALTHY ST SE

95 - GRAND RAPIDS, MI 49506

41 - KENT,

RECOVERED AT AUTOPSY OF PATIRCK LYOYA

Date/Time Recovered: 04/04/2022 1556

The above property was transported to Grand Rapids Sixth District Headquarters and immediately secured after the autopsy.

SEARCH VEHICLE:

On 4/6/22, I assisted D/Sgt. Aaron Tubergen with the search of the vehicle involved in this incident. The vehicle, property item 1, had previously been secured in the Evidence Garage. Photographs of the vehicle were taken during the search.

PAGE: 3 of 4	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: STASIAK, JACQUELYN, 268, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0003**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

CONTACT GRPD:

On 4/6/22 I contacted Lt. Jana Forner, Grand Rapids Police Department Internal Affairs unit and requested copies of previous incidents pertaining to PATRICK LYOYA and [REDACTED]. LYOYA had identification in the name of [REDACTED] in his wallet at the time of this incident and further had a work identification card for North America Fuel Systems Remanufacturing with LYOYA'S image and [REDACTED] name [REDACTED]

GRPD Report 20-013417 False Information where LYOYA used identification of [REDACTED]
GRPD Report 21-042925 Domestic Dispute between [REDACTED] and [REDACTED]

These reports will be held as external documents.

PROPERTY OBTAINED FROM LAB:

On 4/6/22, D/Sgt. Tubergen requested that I pick up Officer Schurr's Taser from the Grand Rapids Crime Laboratory and enter it as evidence. The Taser was picked up at 10:27a and a receipt was signed and provided by Laboratory personnel. The Taser was turned over to D/Sgt. Dillard Hayes to be transported to Grand Rapids Police Department to be downloaded.

SEIZED BY: JACQUELYN STASIAK

Prop 0042 -Type: WEAPON (NON-FIREARM) Value: \$100.00

Descrp: YELLOW AND BLACK COLORED TASER, WITH SN X4000659R

Obtained From: 2290 4 MILE RD

95 - GRAND RAPIDS, MI 49544

41 - KENT,

SEIZED BY LAB AS NUMBER L-5, PICKED UP FROM LAB BY STASIAK TODAY

Date/Time Recovered: 04/06/2022 1027

EXTERNAL DOCUMENTS:

20-013417 GRPD report

21-042925 GRPD report

Receipt for Taser from Lab

STATUS:

OPEN

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

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0004**

ORIGINAL DATE:
Mon, Apr 04, 2022

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS

INFORMATION:

On 04-04-2022 at approximately 8:50am I was contacted by Lt Rob Davis in reference to this investigation. He requested that I respond to the area of Nelson and Griggs and assist with an officer involved shooting, involving the Grand Rapids Police Department (GRPD). I responded to the scene and was assigned by D/Sgt Aaron Tubergen, who was the officer in charge in reference this case, to interview the passenger along with D/Sgt Leanne DeWaalMalefyt. I was also tasked with locating and making notification to the next-of-kin of the deceased, Patrick Lyoya.

ARRIVAL ON SCENE:

Upon arrival on scene, I made contact with D/Sgt Aaron Tubergen and D/Sgt Leanne DeWaalMalefyt. I briefly did a walkthrough of the scene, where I observed a GRPD patrol car that appeared to have made a traffic stop on a vehicle. I was briefed by the Grand Rapids Police Captain on scene that the driver of the vehicle had exited out of the passenger side and there were a driver and passenger in the vehicle. The driver ultimately had been in an altercation with the officer and ended up being shot by the police officer and was deceased. The passenger of the vehicle was currently at the Grand Rapids Police Department. D/Sgt Leanne DeWaalMalefyt and I, responded to the GRPD and interviewed the passenger at that time.

PASSENGER/WITNESS:

NAM: [REDACTED]

BIR: [REDACTED]

NBR: [REDACTED] DIR: [REDACTED]

STR: [REDACTED]

SFX: [REDACTED]

CTY: [REDACTED] ST: [REDACTED]

TXH: [REDACTED] ZIP: [REDACTED]

TXW: [REDACTED]

MB: [REDACTED]

SMT: [REDACTED]

RAC: [REDACTED] ETH: [REDACTED]

SEX: [REDACTED] DL: [REDACTED]

DOB: [REDACTED] SSN: [REDACTED]

HGT: [REDACTED] SI: /

WGT: [REDACTED] FBI: [REDACTED]

HAI: [REDACTED] MNU: [REDACTED]

EYE: [REDACTED] PR: [REDACTED]

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

FIMBINGER, PETER, 220, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

**MICHIGAN DEPARTMENT OF
STATE POLICE**

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0004**

ORIGINAL DATE:
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FILE CLASS:
09005

INTERVIEW PASSENGER/WITNESS:

D/SGT DeWaalMalefyt and I made contact with the passenger of the vehicle at the Grand Rapids Police Department in the interview room. We were advised by Grand Rapids Police that the passenger had been identified as [REDACTED] DOB [REDACTED]. When we made contact with [REDACTED] in the interview room at the Grand Rapids Police Department, he was sleeping in a chair in the interview room. We woke [REDACTED] up and identified ourselves to him. I noticed [REDACTED] was in handcuffs. I removed his handcuffs at that time. I advised [REDACTED] that he was not under arrest and that we wanted to talk with him about what had happened this morning. While speaking with [REDACTED] I could smell a strong odor of intoxicants coming from his person. [REDACTED] eyes were bloodshot and watery.

[REDACTED] asked to be able to talk to his mom and dad. I advised [REDACTED] that we could make that happen, but we wanted to talk with him about what had happened this morning. [REDACTED] was reluctant to give us any information and was reluctant to speak with us. [REDACTED] advised the driver of the car was Patrick. [REDACTED] stated that Patrick was his friend and had been his friend for a few years. [REDACTED] stated he had moved from the Congo to Kentwood, MI when he was 11 years old.

[REDACTED] was questioned further about what had taken place this morning. [REDACTED] stated that he had been a passenger in a vehicle driven by his friend Patrick. [REDACTED] stated he was looking on his phone and not really paying attention. [REDACTED] stated Patrick pulled over because Patrick thought there was something wrong with the car. [REDACTED] stated that he believed Patrick thought there was something wrong with the rear of the car. [REDACTED] stated that Patrick got out of the car to check the rear of the car. Patrick would not provide any further information in reference to what had taken place.

We had information from investigators on the scene that [REDACTED] had videotaped the shooting incident with his cell phone. We asked [REDACTED] if he had videotaped the shooting and he would not answer our question. We asked for the passcode to his phone and he provided the passcode of [REDACTED]. Throughout this entire interview [REDACTED] was asking for his mom and dad and not answering our questions. About halfway through the interview I paused and called both his parents for him. I left voicemails requesting they both call back and I texted his mom.

The interview ended as [REDACTED] would not provide us with any additional information in reference to what had happened.

PBT OF PASSENGER:

GRPD Sgt Josh Mollan administered a pbt to [REDACTED] on 04-04-2022 at 11:56am, after we concluded our interview with him. The pbt results were a .18 at 11:56am.

PHONE PASSWORD:

While speaking with [REDACTED], he advised his phone password was [REDACTED]

PAGE: 2 of 9	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: FIMBINGER, PETER, 220, D/SERGEANT	REVIEWED BY:
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STATE POLICE**

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09005

ATTEMPT TO CONTACT [REDACTED] PARENTS:

During the interview with [REDACTED], he requested that we attempt to contact his mom at the phone number of [REDACTED] and his dad at the phone number of [REDACTED]. I attempted text messages to his mother and a phone call to both his mother and father and did not receive an answer, while interviewing [REDACTED]. Later in the day I was contacted by both his mother and father and that contact will be listed below.

CONTACT [REDACTED] MOM:

After the interview concluded, I received a phone call from an individual who stated she was [REDACTED]'S mother. The phone connection was poor and there was a language barrier. [REDACTED] mother would not provide her name or date of birth. During this phone conversation I was able to determine she had seen [REDACTED] about two weeks ago. She confirmed that [REDACTED] lived with a friend of his. She stated she did not know who the friend was and that she did not know [REDACTED] whereabouts last evening. She advised she does not see [REDACTED] on a daily basis.

INTERVIEW OFFICERS ON SCENE:

D/Sgt Leanne DeWaalMalefyt and myself interviewed Officer Samuel Joseph Mott and Officer Jordan Kenneth Grace of GRPD, while at GRPD in reference to this investigation, as they were the first officers on scene following the shooting.

WITNESS

NAM: SAMUEL JOSEPH MOTT

BIR:

NBR: 01 DIR:

STR: MONROE CENTER

SFX: STREET

CTY: GRAND ST: MI

RAPIDS

TXH: ZIP: 49503

TXW:

MB: [REDACTED]

SMT:

RAC:

SEX:

DOB:

HGT: ' "

WGT:

HAI:

EYE:

ETH:

DL: /

SSN:

SI: /

FBI:

MNU:

PR:

EMPLOYER: GRAND RAPIDS PD

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

FIMBINGER, PETER, 220, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

**MICHIGAN DEPARTMENT OF
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09005

INTERVIEW OFFICER SAMUEL MOTT:

Samuel Mott wrote a police report in reference to this incident and provided a copy of that police report to D/Sgt Leanne DeWaalMalefyt. D/Sgt DeWaalMalefyt and I read the police report. We made contact with Officer Mott and his union representative, Officer Phillip Reinick at the GRPD. Union Rep. Reinick was present during our interview of Officer Mott. D/Sgt DeWaalMalefyt and I asked Officer Mott if he had anything to add in reference to what he had written in the police report. Officer Mott advised that he had nothing to add. We asked if the police report was a true and accurate account of what had taken place and he stated that it was. Officer Mott noted that he had not reviewed his body camera footage prior to writing the police report and was writing it from his memory and perspective. He stated that he did not have anything further to add in reference to this matter.

WITNESS

NAM: JORDAN KENNETH GRACE

BIR:

RAC:

ETH:

NBR: 01 **DIR:**

SEX:

DL: /

STR: MONROE CENTER

DOB:

SSN:

SFX: STREET

HGT: ' "

SI: /

CTY: GRAND
RAPIDS **ST:** MI

WGT:

FBI:

TXH: **ZIP:** 49503

HAI:

MNU:

TXW:

EYE:

PR:

MB:

SMT:

INTERVIEW OFFICER JORDAN GRACE:

While on scene at the GRPD, D/Sgt DeWaalMalefyt and I interviewed Officer Grace on 04-04-2022 at approximately 12:35pm. Union Representative of GRPD, Officer Phillip Reinick, was present during the interview. Officer Grace completed a police report in reference to this incident and a copy of that report was provided to D/Sgt DeWaalMalefyt and I. D/Sgt DeWaalMalefyt and I read the police report written by Officer Grace. Officer Grace was asked if he had anything to add in reference to what he had written in his police report. He stated that he had nothing to add. He was asked if that police report was a true and accurate description of what had happened today and he stated it was. Officer Grace advised that it should be noted that he did not review his body camera footage prior to writing the report, and that the report was written from his memory. Officer Grace stated he wanted it to be noted that he had noticed the body camera and taser of the officer involved in the shooting, lying on the ground, after flipping over the suspect in an attempt to perform first aid. He stated he did not know where the body camera of the officer involved or the taser was, prior to him flipping over the suspect. Officer Grace also stated that he did not observe any weapons on the passenger of the vehicle.

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TUBERGEN, AARON, 36, D/SERGEANT

FIMBINGER, PETER, 220, D/SERGEANT

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**MICHIGAN DEPARTMENT OF
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09005

CONTACT D/SGT AARON TUBERGEN:

D/Sgt DeWaalMalefyt and myself, made contact with D/Sgt Tubergen and advised him we had concluded interviews at the GRPD. D/Sgt Tubergen requested that we attempt to locate next-of-kin for the deceased, Patrick Lyoya, at that time. We were able to develop, through law enforcement contacts, several addresses to check in reference to next-of-kin.

ATTEMPT TO LOCATE NEXT-OF-KIN:

D/Sgt DeWaalMalefyt and myself, responded to the address of [REDACTED]
[REDACTED] This address was listed in the GRPD's report writing system as a potential address for Patrick Lyoya.

OTHER PERSON

NAM: [REDACTED]

BIR:

RAC: [REDACTED]

ETH:

NBR: [REDACTED] **DIR:**

SEX: [REDACTED]

DL: /

STR: [REDACTED]

DOB: [REDACTED]

SSN:

SFX: [REDACTED]

HGT: ' "

SI: /

CTY: [REDACTED] **ST:** [REDACTED]

WGT:

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED]

HAI:

MNU:

TXW: [REDACTED]

EYE:

PR:

MB: ([REDACTED]

SMT:

CONTACT AT [REDACTED]

D/Sgt DeWaalMalefyt and I made contact with an individual who was identified by his Michigan Driver's License as [REDACTED], at the address of [REDACTED] stated that he knew of Patrick, as Patrick used to live with him. He stated that Patrick had moved out about a year ago because they had an argument. He advised that he did not know where Patrick currently lived and did not have contact with him anymore, due to that argument. He advised that this is all he could tell us in reference to Patrick's whereabouts and did not know where any family to Patrick may be.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

FIMBINGER, PETER, 220, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:14

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Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

ADOPTED FATHER:

NAM: [REDACTED]
BIR: [REDACTED] RAC: [REDACTED] ETH: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED] SEX: [REDACTED] DL: /
STR: [REDACTED] DOB: [REDACTED] SSN: [REDACTED]
SFX: [REDACTED] HGT: ' " SI: /
CTY: [REDACTED] ST: [REDACTED] WGT: [REDACTED] FBI: [REDACTED]
TXH: [REDACTED] ZIP: [REDACTED] HAI: [REDACTED] MNU: [REDACTED]
TXW: [REDACTED] EYE: [REDACTED] PR: [REDACTED]
MB: [REDACTED]
SMT: [REDACTED]

PHONE CONTACT WITH ADOPTED FATHER:

Upon leaving the [REDACTED] address, I received a phone call from [REDACTED] stated that he was unofficially [REDACTED] adopted father and that his phone number was [REDACTED]. He advised that he had received a call from me, stating that I was at the Grand Rapids Police Department with [REDACTED]. I explained to [REDACTED] that [REDACTED] had been a passenger in a vehicle involved in an officer involved shooting this morning, and we were attempting to get information from [REDACTED]. I advised him that [REDACTED] had not been completely cooperative with our investigation and had requested that I call [REDACTED] and advise him where he ([REDACTED]) was. I explained to him that we had seized [REDACTED] phone in reference to this investigation and that [REDACTED] had been released from GRPD approximately one (1) hour ago. It should be noted that when I received this call from [REDACTED], it was approximately 1:10pm.

I asked [REDACTED] what his relationship to [REDACTED] was. He stated he had helped sponsor [REDACTED] through his church as [REDACTED] had come to the United States from Africa approximately 14 years ago. He advised that he was unofficially [REDACTED] adopted father. I asked [REDACTED] when he had last contact with [REDACTED]. He stated that on the evening of 04-03-2022 [REDACTED] had tried to call him several times and explained that they were playing "phone tag". He stated that this took place around 10pm. I asked when he had contact with him prior to that and he stated he had contact via text message on Saturday, and they were just texting small talk. I asked when he had last seen [REDACTED] and [REDACTED] explained that he had last seen [REDACTED] in person the week before, on Thursday or Friday. He advised that he did not know the exact address where [REDACTED] was currently staying, but knew that his last address was [REDACTED]. I asked if [REDACTED] knew of any of [REDACTED]'s friends. [REDACTED] stated that he does know some of his friends but he knows [REDACTED] will run with a group of people sometimes that [REDACTED] is not happy with. I asked [REDACTED] if the name Patrick was recognized by him as one of [REDACTED] friends, and he stated that it was not. I asked if he had ever known [REDACTED] to carry any guns or weapons, or to conduct any violence against any other people or the police. [REDACTED] stated that he had no knowledge of [REDACTED] carrying any guns or weapons or being involved in any violence. I asked if he knew of any types of crimes that [REDACTED] was involved with and [REDACTED] stated that in the last few years he knew that [REDACTED] had approximately two (2) OWI's but did not know anything further. I asked if [REDACTED] was ever known to hang out with people who carried guns or weapons. [REDACTED] stated that not to his knowledge. [REDACTED] advised he had no further information to provide me in reference to this matter but he would contact me if he thought of anything.

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**MICHIGAN DEPARTMENT OF
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CONTACT AT CHURCH:

Through law enforcement contacts, D/Sgt DeWaalMalefyt and I were able to develop the address of [REDACTED]. This address is a church. We determined that Patrick Lyoya may have affiliation with this church. We responded to the church in order to gain information on next-of-kin in reference Lyoya on 04-04-2022 at approximately 1:55pm.

OTHER PERSON

NAM:	[REDACTED]		
BIR:			
NBR:	[REDACTED]	DIR:	
STR:		RAC:	[REDACTED]
SFX:		SEX:	[REDACTED]
		DOB:	[REDACTED]
		HGT:	' "
CTY:		WGT:	
TXH:		HAI:	
TXW:		EYE:	
MB:	[REDACTED]		
SMT:			
		ETH:	
		DL:	/
		SSN:	
		SI:	/
		FBI:	
		MNU:	
		PR:	

CONTACT WITH [REDACTED]

Upon arriving at [REDACTED], we made contact with Chief Pastor [REDACTED] checked their database for the name of Patrick Lyoya and did not locate the address. She went on to explain that they have a rental house on the church property that is rented out and she recalls that people from Africa have rented the house out in the past. She stated that a lot of times when the house is rented out, several others will stay there if they are coming over to America from another country. She stated it was quite possible that Patrick had stayed at the rental house but they did not have record of his name staying at the house.

CHECK ADDITIONAL ADDRESSES:

D/Sgt DeWaalMalefyt and I responded to the address of [REDACTED] as this address came up as being affiliated with Patrick as well. We attempted to make contact with someone at the residence and there was no answer at the door. We left a business card requesting a phone call.

[REDACTED]

We made contact with individuals at [REDACTED] who were able to provide us with next-of-kin information for Patrick.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

FIMBINGER, PETER, 220, D/SERGEANT

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FILE CLASS:
09005

OTHER PERSON

NAM: [REDACTED]

BIR:

RAC: [REDACTED]

ETH:

NBR: [REDACTED] **DIR:**

SEX: [REDACTED]

DL: /

STR: [REDACTED] **DOB:** [REDACTED]

SSN:

SFX: [REDACTED] **HGT:** ' "

SI: /

CTY: [REDACTED] **ST:** [REDACTED] **WGT:**

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED] **HAI:**

MNU:

TXW: [REDACTED] **EYE:**

PR:

MB: [REDACTED]

SMT:

CONTACT [REDACTED]

We made contact with [REDACTED] at [REDACTED] When knocking on the door of the residence, she advised we could enter the residence and speak with her. We advised [REDACTED] that we were attempting to contact family members of Patrick Lyoya and that this address had come up when we checked with the Grand Rapids Police Department for potential addresses for him. [REDACTED] stated that her daughter, [REDACTED] used to date Patrick. She advised her daughter was asleep but she would wake her up as her daughter would have information for us. She woke her daughter up and we spoke with her [REDACTED] at that time.

OTHER PERSON

NAM: [REDACTED]

BIR:

RAC: [REDACTED]

ETH:

NBR: [REDACTED] **DIR:**

SEX: [REDACTED]

DL: /

STR: [REDACTED] **DOB:** [REDACTED]

SSN:

SFX: [REDACTED] **HGT:** ' "

SI: /

CTY: [REDACTED] **ST:** [REDACTED] **WGT:**

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED] **HAI:**

MNU:

TXW: [REDACTED] **EYE:**

PR:

MB: [REDACTED]

SMT:

INTERVIEW [REDACTED]

We explained to [REDACTED] that we were attempting to locate family members of Patrick Lyoya. [REDACTED] advised that she used to date Patrick but currently they were not dating. She stated that Patrick's father was [REDACTED] and his step-mother was [REDACTED] and that they lived in [REDACTED]. She advised that she believed the address where they resided was [REDACTED]. She stated she did not have phone numbers for them.

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INVESTIGATED BY:

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TUBERGEN, AARON, 36, D/SERGEANT

FIMBINGER, PETER, 220, D/SERGEANT

PRINTED: 5/3/2022 09:14

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ADDITIONAL CHECKS FOR ADDRESSES:

D/Sgt DeWaalMalefyt and I were able to determine an address for [REDACTED] of [REDACTED].

CONTACT D/SGT AT MSP LANSING:

I made telephone contact with D/Sgt Andrew Adamczyk in reference to this investigation. I explained the investigation to D/Sgt Adamczyk and requested he attempt to make contact with [REDACTED] and handle the death notification in reference to this matter. I advised him that if he were able to get contact information for [REDACTED] in reference to a phone number, one of our investigating detectives would be in contact with [REDACTED].

DEATH NOTIFICATION:

D/Sgt Andrew Adamczyk contacted me back via telephone approximately 40 minutes later and stated he was able to make contact with [REDACTED]. He provided the below address and phone number for [REDACTED] and advised he had notified [REDACTED] in person in reference to the death notification. He stated [REDACTED] was expecting a call from one of our investigators.

OTHER PERSON

NAM: [REDACTED]

BIR:

RAC: [REDACTED]

ETH: [REDACTED]

NBR: [REDACTED] **DIR:** [REDACTED]

SEX: [REDACTED]

DL: [REDACTED]

STR: [REDACTED]

DOB: [REDACTED]

SSN: [REDACTED]

SFX: [REDACTED] **ST:** [REDACTED]

HGT: [REDACTED]

SI: /

CTY: [REDACTED] **ZIP:** [REDACTED]

WGT: [REDACTED]

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED]

HAI: [REDACTED]

MNU:

TXW:

EYE: [REDACTED]

PR:

MB: [REDACTED]

SMT:

NOTIFY D/SGT AARON TUBEREN:

I notified D/Sgt Tubergen that the death notification had been made to [REDACTED]. D/Sgt Tubergen advised he would be in phone contact with [REDACTED] directly.

STATUS:

OPEN pending further investigation

4/5/22 – 4/6/22 Ist

PAGE: 9 of 9	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: FIMBINGER, PETER, 220, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0005**

ORIGINAL DATE:
Mon, Apr 04, 2022

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

INFORMATION:

On Monday, April 4, 2022, D/Sgt. Sowa of MSP-Lakeview requested I respond to Grand Rapids to assist with an officer-involved shooting involving an officer of the Grand Rapids Police Department. I received further direction to respond to the area of Griggs and Nelson Ave.

I arrived on scene around 10 a.m. and met with D/Sgt Tubergen to obtain additional information about the shooting. I was then asked to assist D/Sgt. Zimmerman with an area canvass. The scene involved Grand Rapids PD officer making a traffic stop on Nelson Ave just north of Griggs St. The patrol vehicle and another vehicle were both facing northbound on Nelson in the roadway closest to [REDACTED] and [REDACTED].

I was also requested to identify additional emergency personnel which had responded to and assisted at the scene.

OTHER PERSON:

NAM: [REDACTED]
BIR: [REDACTED] RAC: [REDACTED] ETH: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED] SEX: [REDACTED] DL: [REDACTED]
STR: [REDACTED] DOB: [REDACTED] SSN: [REDACTED]
SFX: [REDACTED] HGT: [REDACTED] SI: [REDACTED] /
CTY: [REDACTED] ST: [REDACTED] WGT: [REDACTED] FBI: [REDACTED]
TXH: [REDACTED] ZIP: [REDACTED] HAI: [REDACTED] MNU: [REDACTED]
TXW: [REDACTED] EYE: [REDACTED] PR: [REDACTED]
MB: [REDACTED]
SMT: [REDACTED]

CONTACT [REDACTED]

I started with the residence at the [REDACTED] of Nelson and Griggs. The front of this residence faces [REDACTED]. I first made contact with [REDACTED] 17-year-old male. He was reluctant to speak with me at all and then [REDACTED] (13 years old) came to the door and wanted to speak to me. I learned she resides there at the residence with her mother, [REDACTED]. Her mother was not home, and she was at work. [REDACTED] advised her sister, [REDACTED] (10 years old) also lives at the residence. [REDACTED] confirmed she had been home this morning because she is on Spring Break. She said she woke up around 0815 when she heard what she thought was a gunshot. She had been sleeping in the living room on

PAGE: 1 of 8	INVESTIGATED BY: HETHERINGTON, BRADLEY, 168, D/SERGEANT	INVESTIGATED BY:	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0005**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

CONTACT CONTINUED:

the main floor of the residence. [REDACTED] advised she then heard sirens getting closer to her house and she went in to wake her mom up. She said her mom went out on the front porch and [REDACTED] stayed inside the house and was trying to look out the windows. [REDACTED] did not see anything that had happened outside. There are no security cameras at the residence.

CONTACT [REDACTED]

I attempted contact at [REDACTED] which appears to be the residence of [REDACTED]. Her name was taken off from mail in the mailbox on the front porch. No one answered and there were no exterior security cameras observed at the residence. The deceased subject was lying right alongside of [REDACTED].

D/Sgt. Tubergen later made contact with a female subject at the residence.

WITNESS:

NAM: [REDACTED]

BIR:

RAC:

ETH:

NBR: [REDACTED] **DIR:**

SEX:

DL: [REDACTED]

STR:

DOB:

SSN:

SFX:

HGT:

SI: /

CTY: [REDACTED] **ST:** [REDACTED]

WGT:

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED]

HAI:

MNU:

TX:

EYE:

PR:

MB:

SMT:

CONTACT [REDACTED]

At least part of this incident occurred in the front yard of this residence. I also observed a RING doorbell camera at the front door facing the roadway. The traffic stop was nearly [REDACTED]. Tpr. Aaron Damstra of the Grand Rapids Post had advised me the resident, [REDACTED] (DOB [REDACTED]) had to leave the residence to pick up his kids and I was told [REDACTED] would return later. I was able to contact [REDACTED] by phone around 1104 a.m. at the number [REDACTED]. I obtained verbal consent from [REDACTED] for lab personnel to begin processing the scene [REDACTED]. This information was also provided to D/Sgt Karsten of the lab's crime scene response team.

My first in-person contact with [REDACTED] was at [REDACTED] of Nelson Ave SE and Orville St SE. He was not able to return back to his residence as the street was still blocked off for the on-going investigation.

PAGE:

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INVESTIGATED BY:

HETHERINGTON, BRADLEY, 168,
D/SERGEANT

INVESTIGATED BY:

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0005**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

CONTACT CONTINUED:

A consent to search form was completed and signed by [REDACTED]. I then spoke to him further about the incident. [REDACTED] confirmed he was home this morning and heard his dog start barking. [REDACTED] went to the front door, and he saw an officer fighting with a subject. [REDACTED] advised there was another male subject standing near the passenger side of a car in the street. During the incident [REDACTED] advised he saw and heard the taser go off. He advised the cop had the taser. [REDACTED] advised after the taser went off the subject kept fighting with the officer. He advised both the officer and subject were on the ground at one point and [REDACTED] heard a gun go off. He advised the subject was on the ground and the officer was near the edge of the driveway. [REDACTED] only heard one shot. [REDACTED] advised other officers arrived on scene and the other subject by the car was cuffed. [REDACTED] did not record the incident on his phone. [REDACTED] does have a Ring doorbell on the front door, but he advised he does not have a paid subscription for it right now. [REDACTED] also advised he had gotten the camera from his sister, [REDACTED] and he advised she never had a subscription for it either.

It was apparent [REDACTED] was not comfortable with speaking to me due to subjects walking by and driving by our location. A follow-up interview was completed with [REDACTED] after he returned back to his residence, and it was recorded using a departmental issued iPhone. [REDACTED] brother had answered the door and advised [REDACTED] was in the shower. [REDACTED] goes by [REDACTED] as well. The interview was entered as property item 39. The following is the summary of the recorded interview with him. D/Sgt Zimmerman was also present for the second interview with [REDACTED]. It was conducted at the side door of the residence.

I told [REDACTED] I wanted to make sure I hadn't missed anything and wanted to make sure we had accurate information. He confirmed he had been home this morning and that he was half awake when his dog started barking. [REDACTED] thought that was around 8 something. He confirmed he got up and usually hears his Ring camera based on motion. The Ring texts him there is motion. He said that had gone off after his dog started barking. He confirmed he had gone to the front door and opened it and the screen door was still closed. He saw someone run across in front of the house and saw them tussling. He described them running across in front of the house towards the south. He described them being right in front of the house. The officer was telling the other subject to stay right there (passenger of the vehicle). [REDACTED] said they were tussling over something, and something was said about a taser. He was not sure who mentioned the taser. He thought he was alerting him he was going to tase him. They were still tussling and the two of them were still standing up and he described it as the two of them pulling at one another. [REDACTED] said he didn't see him drop until after the gunshot. He confirmed he heard the taser come out and the sound of it going off. [REDACTED] confirmed nothing happened after that and he was still standing. [REDACTED] confirmed the guy with the dread locks was still tussling with the officer after the taser went off. [REDACTED] couldn't tell if the subject was after the taser as the two of them were grabbing and reaching for each other. After that is when he heard the gunshot go off and the subject fall to the ground. He pointed to the area of the yard along the driveway and the officer was in the driveway. [REDACTED] said it was like someone fighting for a gun and it just went off. [REDACTED] said he didn't really see the subject being shot. The officer had the gun last, and he didn't see the other subject with a gun. [REDACTED] never saw the officer raise the gun nor did he see it come out of the holster. He had only seen the taser extended and it go off. He only heard the gun go off and hadn't seen it. I asked what happened to the passenger and [REDACTED] indicated he ended up being cuffed. He was unclear of what else occurred after the shot went off as he walked away from the front door, and he was no longer watching. [REDACTED] indicated the other subject was standing near the car the whole time during the tussle. [REDACTED] was not sure if the passenger was video recording the incident. He shut the door right after the subject went down. D/Sgt. Zimmerman asked if the officer was giving him any

PAGE:

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INVESTIGATED BY:

HETHERINGTON, BRADLEY, 168,
D/SERGEANT

INVESTIGATED BY:

REVIEWED BY:

**SUPPLEMENTAL INCIDENT REPORT
0005**

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0005**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

OTHER PERSON

NAM: [REDACTED]

BIR: [REDACTED]

RAC: [REDACTED]

ETH: [REDACTED]

NBR: [REDACTED]

DIR: [REDACTED]

SEX: [REDACTED]

DL: [REDACTED]

STR: [REDACTED]

DOB: [REDACTED]

SSN: [REDACTED]

SFX: [REDACTED]

HGT: [REDACTED]

SI: /

CTY: [REDACTED]

ST: [REDACTED]

WGT: [REDACTED]

FBI: [REDACTED]

TXH: [REDACTED]

ZIP: [REDACTED]

HAI: [REDACTED]

MNU: [REDACTED]

TXW: [REDACTED]

EYE: [REDACTED]

PR: [REDACTED]

SMT: [REDACTED]

CONTACT [REDACTED]

I made contact with [REDACTED] Her phone number is [REDACTED] Her husband [REDACTED] also resides there as well as her daughter [REDACTED] advised [REDACTED] had taken [REDACTED] to work and he had just arrived home. [REDACTED] said she heard shouting/yelling and then one gunshot. She said she heard more yelling after the gunshot. She then looked out and saw fire and police arriving on scene when she went out onto her porch. She advised her husband [REDACTED] had also gone out onto their porch. She advised officers were taping off the scene. [REDACTED] confirmed she does not have any type of security cameras at the residence.

OTHER PERSON:

NAM: [REDACTED]

BIR: [REDACTED]

RAC: [REDACTED]

ETH: [REDACTED]

NBR: [REDACTED]

DIR: [REDACTED]

SEX: [REDACTED]

DL: [REDACTED]

STR: [REDACTED]

DOB: [REDACTED]

SSN: [REDACTED]

SFX: [REDACTED]

HGT: [REDACTED]

SI: /

CTY: [REDACTED]

ST: [REDACTED]

WGT: [REDACTED]

FBI: [REDACTED]

TXH: [REDACTED]

ZIP: [REDACTED]

HAI: [REDACTED]

MNU: [REDACTED]

TXW: [REDACTED]

EYE: [REDACTED]

PR: [REDACTED]

SMT: [REDACTED]

PAGE:

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INVESTIGATED BY:

HETHERINGTON, BRADLEY, 168,
D/SERGEANT

INVESTIGATED BY:

REVIEWED BY:

PRINTED: 5/3/2022 09:14

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0005**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

CONTACT

I made contact with [REDACTED] at his residence. He resides there with his wife [REDACTED] and his daughter, [REDACTED]. They were all home today at the time of this incident. They had not seen the incident nor did they hear anything regarding this incident. I thanked them for their time and left the residence.

CONTACT

I was not able to contact anyone at this address. I did leave my business card in the mailbox on the front porch. I did not see any exterior security cameras at the residence. Per [REDACTED] neighbor across street, the subject leaves very early for work everyday and works for Meijer.

OTHER PERSON

NAM: [REDACTED]

BIR:

NBR: [REDACTED]

DIR:

STR: [REDACTED]

SFX:

CTY: [REDACTED]

ST: [REDACTED]

TXH: [REDACTED]

ZIP: [REDACTED]

TXW:

MB: [REDACTED]

SMT:

RAC: [REDACTED]

SEX: [REDACTED]

DOB: [REDACTED]

HGT: [REDACTED]

WGT: [REDACTED]

HAI: [REDACTED]

EYE: [REDACTED]

ETH:

DL: [REDACTED]

SSN: [REDACTED]

SI: /

FBI:

MNU:

PR:

CONTACT

I made contact with [REDACTED] Her phone number is [REDACTED]. She resides at the residence along with her boyfriend, [REDACTED]. The two of them were home this morning at the time this incident occurred. She had her alarm set for 0815 and before the alarm went off she heard something that sounded like a gunshot. She said she only heard it once. She said she looked out the front window and said there were officers giving a man commands to get on his knees and he was then arrested. She said there was a body lying face down and officers went and flipped him over and were working on him. She confirmed officers were providing aid to the subject. She said fire arrived on scene and worked on him too. She said she never went outside of her house. She said the officers arrested one subject behind the patrol car. Tatiyana advised she also used her phone to record the incident. She did this from an upstairs window. She advised her boyfriend was also upstairs looking out the window with her. She was willing to provide me with the video she had taken. Her phone is an iPhone, XS max. She allowed me to view the video on her phone. After she texted the video to my work phone it was apparent the quality of the video was significantly impacted, and it was very grainy and difficult to see.

A copy of the video was obtained on 4/6/22 and it is entered as property item number 43.

PAGE:

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INVESTIGATED BY:

HETHERINGTON, BRADLEY, 168,
D/SERGEANT

INVESTIGATED BY:

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0005**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

ADDITIONAL EMERGENCY RESPONDERS:

Grand Rapids Fire Department responded to the scene and the run number is 22-5790-GRF. Acting Lt. Jeremy Shepard was contacted on this date, and I was informed how I could obtain a copy of the run report. A copy of the run report was obtained on 4/7/22, and it is included as an external document.

Ambulance:

Life EMS responded to this incident. The run number for LIFE is 3329756. Paramedic Anna Eaton and EMT Justin Maluchnik were the two responding to this incident. I was informed the time of death was pronounced at 0833 hrs by Dr. Clark of Butterworth Hospital. The run report was obtained and it is included as an external document.

East Grand Rapids Public Safety also had PSOs David Katje, Brian Duran, and Zach Nagtzaam responded to the scene as well. PSOs Katje and Duran assisted with performing CPR on the victim. PSO Nagtzaam set up at Nelson and Orville, and he also helped tape off the area. The report for East Grand Rapids is EGP-698-2022. A copy of the report was obtained, and it will be included as an external document.

CONSENT TO SEARCH [REDACTED]

A consent to search form was completed for the exterior of [REDACTED] and it was signed by [REDACTED]. A copy of the consent form will be included as an external document.

SEIZED:

SEIZED BY: BHETHERINGTON

Prop 0039 -Type: RECORDING AUDIO/VISUAL Qty: 1 Article Type: Audio Disc, Compact, Laser (CD)

Brand: Model: Serial #: Misc #: OAN: Value: \$0.05 Recovered Value: \$0.05

Descrp: AUDIO INTERVIEW WITH [REDACTED]

Obtained From: 2290 4 MILE RD

95 - GRAND RAPIDS, MI 49544

41 - KENT,

FROM IPHONE

Date/Time Recovered: 04/05/2022

PAGE:

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INVESTIGATED BY:

HETHERINGTON, BRADLEY, 168,
D/SERGEANT

INVESTIGATED BY:

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0005**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

SEIZED: VIDEO OBTAINED BY [REDACTED]

SEIZED BY: BHETHERINGTON

Prop 0043 -Type: RECORDING AUDIO/VISUAL Qty: 1 Article Type: DVD (digital video disc) Brand: Model:
Serial #: Misc #: OAN: Value: \$0.05 Recovered Value: \$0.05
Descrp: CELLPHONE VIDEO TAKEN BY [REDACTED] JUST AFTER SHOOTING OF [REDACTED]
[REDACTED]

Obtained From: [REDACTED]

06 - [REDACTED]
34 - IONIA,
VIA EMAIL

Date/Time Recovered: 04/06/2022

VIDEO REVIEW:

The video is taken from [REDACTED] residence, and it was taken out of a window that faces Nelson Ave SE on the second story of the residence. She recorded it using her iPhone. There is no audio for the video, and it doesn't appear to have a date stamp. The video is 9 minutes and 12 seconds long. The video did not capture the actual shooting but appears to begin just moments after.

The video starts with several officers at the scene and behind Officer Schurr's patrol car. The passenger of the vehicle is being taken into custody. A subject can be seen lying in the grass, face down east of the patrol vehicle.

Three officers then approach the tan vehicle to clear it. Officers then approach the subject lying in the grass, turn him over, and begin to render first aid. Additional emergency staff (fire department) arrive on scene and continue to render aid. Other officers are seen taping off the area with police tape. Near the end of the video a fire truck pulls up and nearly blocks the view of personnel rendering aid to the subject.

EXTERNAL DOCUMENTS:

Consent to search exterior of [REDACTED] signed by [REDACTED]
East Grand Rapids report EGP-698-2022
Grand Rapids Fire Department incident number 22-0005790
Life EMS run report 3329756

STATUS:

OPEN

PAGE:

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INVESTIGATED BY:

HETHERINGTON, BRADLEY, 168,
D/SERGEANT

INVESTIGATED BY:

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0006**

ORIGINAL DATE:
Mon, Apr 04, 2022

SUPPLEMENTARY DATE:
Wed, Apr 06, 2022

INCIDENT NO:
060-0000137-22

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

JOURNALS:

None

INFORMATION:

On 04/04/2022, at approximately 8:45 a.m., I was contacted by D/Lt. Rob Davis referencing an officer involved shooting that had occurred in Grand Rapids, in the area of Nelson and Griggs. D/Lt. Davis was requesting that I respond to the area.

I responded to Nelson and Griggs and arrived at the same time as D/Sgt. Aaron Tubergen and D/Sgt. Pete Fimbinger. We were briefed on what was believed to have occurred by Capt. Bylsma from the Grand Rapids Police Department, and given a quick synopsis of what some of the detectives who were on the scene from Grand Rapids Police Department had already completed.

At this time D/Sgt. Aaron Tubergen requested that D/Sgt. Pete Fimbinger and I follow Det. Case Weston from the scene back to Grand Rapids Police Department headquarters to interview the passenger of the vehicle involved in this incident. D/Sgt. Pete Fimbinger and I responded, and we interviewed the passenger, who was identified as [REDACTED].

At the completion of our interview with [REDACTED], we interviewed briefly, and obtained a written statement from the first Grand Rapids Police Department officers who arrived on the scene after the incident had occurred, and they are Officer SAMUEL MOTT and Officer JORDAN GRACE.

After we completed those interviews, D/Sgt. Fimbinger and I then worked on locating next of kin for the deceased.

WITNESS:

NAM: [REDACTED]

BIR:

RAC:

ETH:

NBR: [REDACTED] DIR: [REDACTED]

SEX:

DL:

STR: [REDACTED]

DOB:

SSN:

SFX:

HGT:

SI:

/

CTY: [REDACTED] ST: [REDACTED]

WGT:

FBI:

TXH: [REDACTED] ZIP: [REDACTED]

HAI:

MNU:

TXW:

EYE:

PR:

MB:

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

DE WAAL MALEFYT, LEANNE, 162,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0006**

INTERVIEW

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 06, 2022

FILE CLASS:
09005

D/Sgt. Pete Fimbinger and I, and later on D/Sgt. Ray Sowa attempted to interview [REDACTED] at the Grand Rapids Police Department major case unit at approximately 10:20 a.m. This interview was recorded and is property item number 14. This is only a brief synopsis of that interview; for the entire interview, see the recording.

When we first initially walked into the room, there was a strong odor of intoxicants coming from [REDACTED]. [REDACTED] was advised he was not in trouble and not under arrest. Almost immediately after entering the interview room, D/Sgt. Pete Fimbinger removed the handcuffs that were on [REDACTED].

Through the course of our conversation, [REDACTED] told us he had been with his friend PATRICK. He did not know PATRICK'S last name, but stated he had been friends with him for years. [REDACTED] stated they were in the car and that PATRICK had said he was hearing a noise coming from the car, so he stopped to get out and check on that, and he was not paying attention as he was scrolling on his phone. That was all that [REDACTED] would say. [REDACTED] did not report anything else occurring.

When asked if he had witnessed an altercation, if he had filmed an altercation, or if he had his phone out during an altercation, [REDACTED] just repeated that he wanted to talk to his parents. Utilizing D/Sgt. Pete Fimbinger's phone, voicemails were left with [REDACTED]'S parents, as well as a text message to his mother, asking for a call back.

While we waited, we continued to ask [REDACTED] for further clarification, but [REDACTED] would not provide anything further. D/Sgt. Pete Fimbinger and I vacated the room, along with D/Sgt. Ray Sowa. I re-entered the room shortly thereafter and again asked [REDACTED] if he was willing to help us out with determining what happened and [REDACTED] again stated he just wanted to go home or talk to his parents.

After I confirmed with [REDACTED] that he was not willing to assist us with telling us what had happened, I then left the room and the Grand Rapids Police Department Sgt. Josh Mollan provided [REDACTED] with a PBT at 11:56am , with the result of .18. [REDACTED] then was escorted out of the police department.

WITNESS:

NAM: SAMUEL JOSEPH MOTT

BIR:

NBR: 01 DIR:

STR: MONROE CENTER

SFX: STREET

CTY: GRAND ST: MI
RAPIDS

TXH: ZIP: 49503

TXW:

MB [REDACTED]

SMI:

EMPLOYER: GRAND RAPIDS PD

RAC:

SEX:

DOB:

HGT: ' "

WGT:

HAI:

EYE:

ETH:

DL: /

SSN:

SI: /

FBI:

MNU:

PR:

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

DE WAAL MALEFYT, LEANNE, 162,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0006**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 06, 2022

FILE CLASS:
09005

INTERVIEW SAMUEL MOTT:

D/Sgt. Pete Fimbinger and I made contact with SAM MOTT in the training unit at the Grand Rapids Police Department. Present for the interview was also their union representative, PHILLIP REININK, who was also an officer with the Grand Rapids Police Department.

Officer MOTT, along with his partner, Officer GRACE, had been a two-man unit who had responded to the area of Nelson and Griggs when they heard the radio traffic go out, and they were the first ones on the scene after the incident had occurred. Officers MOTT and GRACE each typed up a short report on what they had seen, and a rough draft of that report was provided to myself and is listed as external for this supplemental.

Officer MOTT was asked if what he had written was accurate to the best of his recollection and knowledge, and he stated it was. Officer MOTT was asked if he had reviewed his video prior to typing the report and he stated he had not. Officer MOTT was asked if there was anything further he wanted to add to the report or anything else he had remembered since typing it, and he stated there was not.

A synopsis of his rough draft report was that he was the officer driving of the two-man unit with Officer GRACE. They were in the area of the 1100 block of Bemis, and they heard the radio traffic from Officer SCHURR conducting a traffic stop near Nelson and Griggs. They advised a short time later they heard Officer SCHURR state he had a subject running northbound on Nelson, north of Griggs. Officer MOTT then activated his emergency lights and sirens and responded to that area, noting that Dispatch attempted to raise Officer SCHURR multiple times with no response. Officer SCHURR came back over the air stating he needed units, and he had been involved in a shooting.

They arrived in the area and approached from the south of Officer SCHURR'S location. Officer MOTT observed Officer SCHURR to the left of a parked vehicle. Officer GRACE then provided coverage on a suspect lying facedown to the east of the street. He described this subject as approximately 10 yards east of the curb in a front lawn, and the suspect was oriented in a north south direction with his feet to the south. He was unable to see the suspect's hands from his position.

They began to address another male, who was sitting next to the open passenger side door of the car in the middle of the street. Officer MOTT advised he transitioned to "hands free" and placed the unknown male into handcuffs and immediately conducted a pat search of his person, with nothing illegal found.

Officer MOTT stated he proceeded back to his vehicle on Griggs and placed the male, who was identified as [REDACTED], into the back of his patrol vehicle. He asked [REDACTED] if there was anybody else with him or any weapons and he replied no. [REDACTED] stated his wallet was in his pants and removed his wallet and phone from his person and placed them in front of the vehicle. Officer MOTT stated he noticed his phone was on camera mode; however, did not appear to be recording. He placed [REDACTED] phone on airplane mode and did not question [REDACTED] or read [REDACTED] his Constitutional Rights.

Officer MOTT stated then Officer ROXANNE PARTAK transported [REDACTED] to the police station for further questioning. He was removed from Officer MOTT'S vehicle and placed into Officer PARTAK'S vehicle. Officer MOTT stated his body worn camera and in-car video were activated and operational.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

DE WAAL MALEFYT, LEANNE, 162,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0006**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 06, 2022

FILE CLASS:
09005

WITNESS:

NAM: JORDAN KENNETH GRACE

BIR:

RAC:

ETH:

NBR: 01 DIR:

SEX:

DL: /

STR: MONROE CENTER

DOB:

SSN:

SFX: STREET

HGT: ' "

SI: /

CTY: GRAND ST: MI

WGT:

FBI:

TXH: ZIP: 49503

HAI:

MNU:

TXW:

EYE:

PR:

MB:

SMT:

INTERVIEW JORDAN GRACE:

After speaking with Officer MOTT, D/Sgt. Pete Fimbinger and I then interviewed Officer JORDAN GRACE. Present for this interview was also his union representative, PHILLIP REININK.

Officer GRACE was asked if what he had written out was to his knowledge what had occurred to the best of his recollection, and he stated it was. Officer GRACE was asked if there was anything further he had remembered or wanted to add, and he stated there was not. Officer GRACE advised he had not reviewed his body cam or in-car video prior to writing out his report. The following is a synopsis of that report, which is listed as an external document on this supplement.

Officer GRACE advised he was working a two-officer car assigned with Officer MOTT and they were assigned to the south service area for the shift. Officer GRACE stated approximately 8:11 a.m. he heard Officer SCHURR working in Unit 1915, call over the air that he was initiating a traffic stop in the area of Nelson and Griggs. He advised briefly after this, Officer SCHURR notified units he had one flee from the vehicle, running north. Officer GRACE stated at this time, he and Officer MOTT began to head to the area to assist with apprehending the suspect. Officer GRACE stated as they were en route to his location, Officer SCHURR notified units he had been involved in an officer involved shooting.

Officer GRACE stated they arrived on the scene, and he observed Officer SCHURR positioned north of Griggs on Nelson, and he was on the east side. It appeared that Officer SCHURR was still holding cover on a black male who was lying face down in the front yard, northeast of Officer SCHURR'S location. Officer GRACE advised at this time he positioned himself behind cover, next to Officer SCHURR and held cover on the described suspect in the yard. The suspect was located in the front yard of a house, approximately three to four houses north of Griggs, on the east side of the street. Officer GRACE stated the suspect was in the front yard of a yellow-colored house and was lying north of a driveway. He stated the suspect's feet were facing southwest towards Nelson and the suspect's head was facing northeast towards the described yellow house. It was believed the suspect was a black male, approximately 25 to 35 years old, 200 pounds, with braided black hair, medium complexion, and grayish jeans.

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

DE WAAL MALEFYT, LEANNE, 162,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0006**

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Wed, Apr 06, 2022

FILE CLASS:
09005

Officer GRACE said as he was holding cover on the suspect, he was notified by Officer MOTT and Sgt. JOHNSON, who had arrived on the scene, that there was an additional suspect involved with the investigation. He stated Officer MOTT and Sgt. JOHNSON announced they were addressing a passenger involved with the suspect vehicle, and they announced the suspect was in custody. Briefly after, additional officers were able to secure the vehicle, which was clear of additional suspects.

Once the suspect vehicle was announced clear, Officer GRACE stated he, Sgt. CALATI, SGT. JOHNSON, and Officer SANDERS approached the suspect to provide medical aid. As they approached, the suspect was lying face down in the yard and appeared to have a gunshot wound to the rear of his head. He stated announcements were made to the suspect to display his hands and the suspect did not move. His right arm was positioned under his body and was not visible. Officer GRACE stated the suspect was addressed and positioned face up. The suspect at this time was unresponsive, and CPR was immediately initiated by officers.

Officer GRACE stated he provided cover for the officers providing medical aid, as a result of not knowing if there were additional outstanding suspects involved in this investigation. He stated CPR was continuously performed by the officers, fire, and EMS, and the defibrillator was attached to the suspect as well. Officer GRACE stated as medical treatment was being provided, he did not observe the suspect display any signs of life, and he was later pronounced as being deceased.

He stated two new medical tarps and blankets were used to cover the suspect and additional evidence, which was a taser, body worn camera, and what appeared to be blood on the dirt, that was positioned directly south of the suspect. Officer GRACE stated it appeared prior to positioning the suspect face up, that he was lying on top of or directly next to the taser and body worn camera. It also appeared that the described taser had been discharged and he observed taser wires and a taser probe near the suspect.

Officer GRACE stated when the suspect was pronounced deceased, he was relieved from the suspect's location and assisted Officer MOTT with removing the other involved subject [REDACTED] from their police car and placing him in Officer PARTAK'S police vehicle.

He stated no additional action was taken and he remained on the scene until the scene was declared as secure and they were relieved.

Officer GRACE noted that there did appear to be a black male, approximately 30 years, recording the incident from inside of the yellow house.

Officer GRACE then provides the weather conditions and advised his body worn camera and in-car video appear operational.

ATTEMPT NEXT OF KIN NOTIFICATION:

D/Sgt. Pete Fimbinger and I contacted D/Sgt. Tubergen and advised him we had completed the interviews at GRPD. D/Sgt. Tubergen then asked us to attempt to locate and notify next of kin for Patrick Lyoya.

PAGE: 5 of 8	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: DE WAAL MALEFYT, LEANNE, 162, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0006**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 06, 2022

FILE CLASS:
09005

RESIDENT OF [REDACTED]:

NAM: [REDACTED]
BIR: [REDACTED] RAC: [REDACTED] ETH: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED] SEX: [REDACTED] DL: /
STR: [REDACTED] DOB: [REDACTED] SSN: [REDACTED]
SFX: [REDACTED] HGT: ' " SI: /
CTY: [REDACTED] ST: [REDACTED] WGT: [REDACTED] FBI: [REDACTED]
TXH: [REDACTED] ZIP: [REDACTED] HAI: [REDACTED] MNU: [REDACTED]
TXW: [REDACTED] EYE: [REDACTED] PR: [REDACTED]
MB: [REDACTED]
SMT: [REDACTED]

INTERVIEW [REDACTED]

D/Sgt. Pete Fimbinger and I responded to [REDACTED] in an attempt to locate next of kin information for the deceased, who was identified as PATRICK LYOYA. There, D/Sgt. Fimbinger and I made contact with [REDACTED] who advised that he had kicked PATRICK out of the residence approximately a year earlier and did not know where he currently resided, nor did he have any contact information for him, nor any family information for him. We thanked [REDACTED] for talking with us and cleared from that residence.

PASTOR OF KENTWOOD COMMUNITY CHURCH:

NAM: [REDACTED]
BIR: [REDACTED] RAC: [REDACTED] ETH: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED] SEX: [REDACTED] DL: /
STR: [REDACTED] DOB: [REDACTED] SSN: [REDACTED]
SFX: [REDACTED] HGT: ' " SI: /
CTY: [REDACTED] ST: [REDACTED] WGT: [REDACTED] FBI: [REDACTED]
TXH: [REDACTED] ZIP: [REDACTED] HAI: [REDACTED] MNU: [REDACTED]
TXW: [REDACTED] EYE: [REDACTED] PR: [REDACTED]
MB: [REDACTED]
SMT: [REDACTED]

INTERVIEW PATRICIA:

D/Sgt. Pete Fimbinger and I responded to Kentwood Community Church in Kentwood, as there had been another potential address listed through law enforcement contacts, that PATRICK was potentially involved with a sponsorship program involved with the church. We made contact with the church pastor, who was identified as [REDACTED] advised she had no record of a PATRICK and had no next of kin information that she was aware of. We then cleared from the church.

PAGE: 6 of 8	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: DE WAAL MALEFYT, LEANNE, 162, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0006**

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060-0000137-22

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Wed, Apr 06, 2022

FILE CLASS:
09005

CHECK OF [REDACTED]

We attempted another address of [REDACTED] in the Kentwood/Caledonia area, as this was another address listed. There was a vehicle in the drive; however, we received no answer at the door.

MOTHER OF [REDACTED]

NAM: [REDACTED]

BIR: [REDACTED]

RAC: [REDACTED]

ETH: [REDACTED]

NBR: [REDACTED]

DIR: [REDACTED]

SEX: [REDACTED]

DL: /

STR: [REDACTED]

DOB: [REDACTED]

SSN: [REDACTED]

SFX: [REDACTED]

HGT: ' "

SI: /

CTY: [REDACTED]

ST: [REDACTED]

WGT: [REDACTED]

FBI: [REDACTED]

TXH: [REDACTED]

ZIP: [REDACTED]

HAI: [REDACTED]

MNU: [REDACTED]

TXW: [REDACTED]

EYE: [REDACTED]

PR: [REDACTED]

MB: [REDACTED]

SMT: [REDACTED]

EXGIRLFRIEND OF PATRICK:

NAM: [REDACTED]

BIR: [REDACTED]

RAC: [REDACTED]

ETH: [REDACTED]

NBR: [REDACTED]

DIR: [REDACTED]

SEX: [REDACTED]

DL: /

STR: [REDACTED]

DOB: [REDACTED]

SSN: [REDACTED]

SFX: [REDACTED]

HGT: ' "

SI: /

CTY: [REDACTED]

ST: [REDACTED]

WGT: [REDACTED]

FBI: [REDACTED]

TXH: [REDACTED]

ZIP: [REDACTED]

HAI: [REDACTED]

MNU: [REDACTED]

TXW: [REDACTED]

EYE: [REDACTED]

PR: [REDACTED]

MB: [REDACTED]

SMT: [REDACTED]

INTERVIEW [REDACTED] **AND** [REDACTED]

D/Sgt. Pete Fimbinger and I responded to [REDACTED] and there we made contact with [REDACTED]. [REDACTED] advised she knew of PATRICK and stated her daughter, [REDACTED] was his ex-girlfriend. [REDACTED] woke up [REDACTED] so that we could talk to her. [REDACTED] advised she was the ex-girlfriend of PATRICK, and she was able to provide us with PATRICK'S dad's name, step-mother's and the last known address she knew of them, which was in [REDACTED].

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

DE WAAL MALEFYT, LEANNE, 162,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0006**

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Wed, Apr 06, 2022

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09005

FOLLOW-UP BY D/SGT. PETE FIMBINGER:

At this time, D/Sgt. Pete Fimbinger reached out to D/Sgt. Andrew Adamczyk at the Lansing Post and requested he attempt to locate PATRICK'S dad and step-mom at their address in Lansing.

CONTACT GRPD DEPUTY CHIEF ROGERS:

After D/Sgt. Pete Fimbinger was advised that PATRICK's dad had been notified and we confirmed their address in [REDACTED], I contacted GRPD Deputy Chief Kristen Rogers and provided her with the next of kin information.

EXTERNAL DOCUMENTS:

Rough draft copy of GRPD Officer Mott's and Grace's report (3 pages)

STATUS:

OPEN

PAGE:

8 of 8

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

DE WAAL MALEFYT, LEANNE, 162,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

SUPPLEMENTAL INCIDENT REPORT
0007

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS.

INFORMATION:

On 4/422 at 10:47 hours I was contacted by D/Lt. Davis regarding assisting with an Officer involved shooting (OIS) investigation. I responded to the scene and ultimately obtained two (2) search warrants related to this incident. Both warrants were forwarded to Officer in charge (OIC), D/Sgt. Tubergen, to be affected.

SEARCH WARRANTS OBTAINED:

I drafted two search warrants related to this incident. Both warrants are detailed below:

- A search warrant for the involved 2003 Nissan Altima.
- A search warrant for the electronic contents of the passenger, [REDACTED] iPhone.

Both warrants were reviewed by Kent County PA Bonnie Prevette. They were signed On 4/4 by Judge Kimberly Schaefer from the 61st District Court in Kent County. The warrants were then forwarded to D/Sgt. Tubergen to be affected.

SEARCH WARRANT RETURN:

A return copy of both search warrants will be filed with the 61st District Court.

EXTERNAL DOCUMENTS:

- Nissan Altima SW (4pgs.)
- Passenger iPhone SW (5pgs.)

STATUS:

OPEN pending further investigation.

PAGE:

1 of 1

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

HAYES, DILLARD, 263, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0008**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 06, 2022

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS.

INFORMATION:

On 4/6/22 D/Lt. Davis requested I transport item #42 (yellow and black colored taser with S/N X4000659R) to GRPD to be downloaded. I received item #42 from D/Sgt. Stasiak and transported it to GRPD on 4/6/22 at approximately 1300 hours.

I met with GRPD Lt. Jana Forner and Captain Chad McKersie who assisted with the download. The taser was removed from its evidence bag, and the battery was removed to be downloaded. Once the download was complete, the taser and battery were placed back into the evidence bag separately as to not influence the data currently saved on the taser from this incident. I monitored the download in its entirety as to maintain a chain of custody.

The evidence bag was re-sealed and initialed. Item #42 was then returned to D/Lt. Davis on 4/6/22. Digital copies of the taser download were provided to D/Sgt. Tubergen.

STATUS:

OPEN pending further investigation.

PAGE:

1 of 1

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

HAYES, DILLARD, 263, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0009**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 04, 2022

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS

INFORMATION:

On 4/4/22 at 0842hrs I was contacted by D/Lt Rob Davis and directed to respond to the area of Nelson Ave and Griggs St. for an officer involved shooting involving an officer with the Grand Rapids Police Department. I arrived on scene and obtained information regarding the specific location and size of the scene and provided the information to D/Lt. Davis.

ARRIVAL ON SCENE:

I arrived on scene at approximately 0905hrs. I provided a brief scene description to D/Lt Davis to aid in the request of the personnel required to investigate the incident.

FINGERPRINT IDENTIFICATION:

At the direction of D/Sgt. Tubergen I assisted with identifying LYOYA by utilizing a [REDACTED]
At 1115hrs with D/Sgt. Tubergen present [REDACTED]

TRANSPORT TO BLODGETT HOSPITAL:

At 1300hrs LYOYA was transported to Blodgett Hospital at 1840 Wealthy St SE, Grand Rapids by the Kent County Medical Examiner's office where an autopsy would take place. I followed directly behind during the transport in a fully marked patrol car, and the transport was made without any additional stops. I accompanied the medical examiner's office with LYOYA into the morgue. Soon after my arrival, D/Sgt Stasiak arrived, and I returned to the scene at Nelson and Griggs.

VEHICLE REMOVAL / DISPOSITION:

At 1400hrs Merl's Towing arrived to remove the vehicle driven by LYOLA from the scene. The vehicle was towed on a flatbed wrecker by Merl's Towing driver, Gregory Rounds. I followed directly behind the vehicle in a fully marked patrol car while enroute from the scene to the Michigan State Police Headquarters at 2290 4 Mile Rd NW, Grand Rapids. The most direct route was taken and no additional stops were made while enroute.

The vehicle was secured inside a garage bay at the MSP Headquarters.

EXTERNAL DOCUMENTS:

None.

PAGE: 1 of 2	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: BROGGER, ERIC, 1369, TROOPER	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0009**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Mon, Apr 04, 2022	FILE CLASS: 09005

STATUS:

OPEN

PAGE: 2 of 2	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: BROGGER, ERIC, 1369, TROOPER	REVIEWED BY:
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PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0010**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Thu, Apr 07, 2022

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS

INFORMATION:

Property item #3 was evidentiary video seized from a mobile phone of an involved witness. On 04/06/2022, I was advised by Sixth District Command to release this video to Grand Rapids Police Department upon request.

On 04/06/2022 at approximately 8:30pm, I received an official request from Lt. Jana Forner (GRPD) on behalf of Chief Winstrom, for the aforementioned video. At my request D/Sgt. Aaron Tubergen made a copy of item #3 and entered into property (Item #41).

On 04/07/2022 at approximately 8:30am, I released the video (Item #41) to Lt. Jana Forner at the Sixth District HQ. Property receipt to master file.

EXTERNAL DOCUMENTS:

Signed Property Receipt

STATUS:

OPEN

PAGE:

1 of 1

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

DAVIS, ROBERT, 116, D/LIEUTENANT

REVIEWED BY:

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0011**

ORIGINAL DATE:
Mon, Apr 04, 2022

SUPPLEMENTARY DATE:
Thu, Apr 07, 2022

INCIDENT NO:
060-0000137-22

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

VEHICLE SEARCH:

On 04/04/22, D/Sgt. Hayes was able to secure a search warrant for the suspect vehicle. It was signed by Judge Schaffer of the 61st District Court. The search warrant included any and all open alcoholic beverages or intoxicants.

On 04/06/22, D/Sgt. Stasiak and I searched the suspect vehicle at MSP 6th District Headquarters. We located two open Budwieser beer cans. One was located on the floor behind the driver's seat. The other was located on the floor behind the passenger seat. Both cans were approximately one-quarter full, but had been lying on their sides. The floor around the cans was wet. There was a strong odor of intoxicants coming from the vehicle. I utilized MSP Grand Rapids Post PBT #58 and conducted a passive alcohol test on each can. Both tested positive for alcohol.

The cans were photographed and returned to the vehicle. The photos were uploaded to the DCSR. A copy of the search warrant and return and tabulation were placed with the vehicle. Additional copies were sent to the 61st District Court.

FATHER OF DECEASED:

NAM: [REDACTED]

BIR:

RAC:

ETH: [REDACTED]

NBR [REDACTED] DIR: [REDACTED]

SEX:

DL: [REDACTED]

STR: [REDACTED]

DOB:

SSN: [REDACTED]

SFX: [REDACTED]

HGT:

SI: /

CTY: [REDACTED] ST: [REDACTED]

WGT:

FBI:

TXH: [REDACTED] ZIP: [REDACTED]

HAI:

MNU:

TXW [REDACTED]

EYE:

PR:

MB: [REDACTED]

SMT:

PAGE:

INVESTIGATED BY:

INVESTIGATED BY:

REVIEWED BY:

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TUBERGEN, AARON, 36, D/SERGEANT

TUBERGEN, AARON, 36, D/SERGEANT

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0011**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Thu, Apr 07, 2022

FILE CLASS:
09005

INTERPRETER / ASSOCIATE OF [REDACTED]:

NAM: [REDACTED]

BIR:

RAC:

ETH:

NBR: [REDACTED] **DIR:** [REDACTED]

SEX:

DL:

STR: [REDACTED]

DOB:

SSN:

SFX: [REDACTED] **APT/LOT:** [REDACTED]

HGT:

SI: /

CTY: [REDACTED] **ST:** [REDACTED]

WGT:

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED]

HAI:

MNU:

TXW:

EYE:

PR:

MB: ([REDACTED]

SMT:

CONTACT WITH [REDACTED] / [REDACTED]

GRPD Deputy Chief Rogers informed me that [REDACTED] had been at the police department to ask questions about this incident. He was accompanied by a group of people, including [REDACTED], who acted as an interpreter. It should be noted that while [REDACTED] understands some English, his primary language is Swahili.

On 04/06/22, I called [REDACTED] and asked if he and [REDACTED] would be willing to come to the MSP 6th District Headquarters to meet with me. They agreed. D/Sgt. Stasiak and I met with [REDACTED] and [REDACTED] for a voluntary interview. They were identified by their Michigan drivers licenses. The subsequent interview was audio recorded and will be summarized in a supplemental report.

It should be noted that investigators became aware that GRPD intended to show videos of this incident at an upcoming press conference. Therefore, we offered to show [REDACTED] and [REDACTED] the cell phone video of the shooting (item #3), before they saw it on the news. They agreed to watch it. They watched the video once and promptly asked to leave. I provided them with my business card and asked them to follow up with me if they had any questions or information.

POLICE GENERATED VIDEO – OFC. SCHURR:

GRPD Lt. Forner was able to share the video produced by GRPD, including body-worn camera video and in-car video. These files were accompanied by “Audit Logs” and multiple tables of contents. Summaries of the most pertinent videos are documented below. The following summaries describe the observations of this officer (D/Sgt. Tubergen), and are not meant as a substitute for the videos.

Axon Body 3 Video 2022-04-04 0811 X6039A52S.mp4 3min32sec Schurr Body Cam

The audit log was provided for this video. It indicated the recording began at 08:11:34 “due to Axon Signal Vehicle activation.” The recording ended at 08:14:37 “due to button press.” The video was time-stamped, and began at 08:11:04. There was no audio until 08:11:34.

PAGE: 2 of 6	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0011**

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060-0000137-22

SUPPLEMENTARY DATE:
Thu, Apr 07, 2022

FILE CLASS:
09005

POLICE GENERATED VIDEO – OFC. SCHURR (continued):

Ofc. Schurr was driving his patrol car. His in-car computer showed an SOS result on license plate EKP9367. Ofc. Schurr radioed his location (Nelson, north of Griggs) and the license plate (phonetically, EKP9367) to dispatch. Ofc. Schurr parked his patrol car and began to exit. While exiting, he gave verbal commands, "Stay in the car! Stay in the car! Get in the car!" He approached the driver of the suspect vehicle, PATRICK, who was standing outside the driver side of suspect vehicle: a Nissan. The Nissan displayed a Michigan registration plate: EKP9367. Ofc. Schurr stated, "I'm stoppin' ya. Do you have a license?" and PATRICK replied, "For what? For what?" Ofc. Schurr asked PATRICK if he spoke English, and PATRICK replied, "Yes." PATRICK continued to ask, "What'd I do wrong?" Ofc. Schurr explained that the license plate did not belong with the vehicle. Ofc. Schurr asked PATRICK if he had a license again. PATRICK replied, "Yes." Ofc. Schurr asked, "Where is it at?" PATRICK replied, "It's in the car." Ofc. Schurr told PATRICK to retrieve the license. PATRICK asked, "What'd I do wrong," again. Ofc. Schurr re-explained that the license plate did not belong on the car. PATRICK opened the driver door and told the passenger to get his license from the glove box. The passenger did not locate a license.

PATRICK closed the driver door and began walking away from Ofc. Schurr to the north. Ofc. Schurr stated, "No, no, no. Stop. Stop." From behind, Ofc. Schurr attempted to grab PATRICK's upper arms. Ofc. Schurr commanded PATRICK to "Put your hands (unintelligible)." PATRICK pulled away from Ofc. Schurr and ran between the patrol car and suspect vehicle to the east, then north. Ofc. Schurr radioed, "1915, I've got one running. Northbound."

After a short foot-chase, Ofc. Schurr tackled PATRICK from behind. They landed in the grass yard of [REDACTED], near the driveway of [REDACTED]. Ofc. Schurr shouted, "Stop! Stop." Ofc. Schurr was on top of PATRICK. PATRICK stated, "Okay. Damn." PATRICK appeared to try and stand up. Ofc. Schurr shouted, "Stop! Stop! Get your hands behind your back!" PATRICK replied, "Okay! Okay." Ofc. Schurr continued to command, "Get your hands behind your back! Get your hands behind your back."

The body-worn camera was pressed against PATRICK's sweater. The camera view became intermittently obstructed. Ofc. Schurr radioed, "1915, start me some more cars." Ofc. Schurr and PATRICK appeared to stand and walk. Ofc. Schurr appeared to have his chest against PATRICK's back, with both of his (Ofc. Schurr's) hands visible to the camera. Ofc. Schurr said "Stop." PATRICK said, "Okay." Ofc. Schurr shouted, "Stop resisting!" and appeared to deliver a knee strike to PATRICK's outer right thigh. PATRICK turned and faced Ofc. Schurr. Ofc. Schurr's left hand was grabbing PATRICK's sweater, and PATRICK's right hand was on Ofc. Schurr's left wrist.

While Ofc. Schurr's left hand was grabbing PATRICK's sweater, near PATRICK's right collar bone, a yellow taser entered the frame. A laser dot displayed on PATRICK's exposed abdomen. PATRICK's left hand reached for the taser, touching it at approximately the same moment the taser could be heard discharging. There is a loud arching sound, consistent with an unsuccessful taser deployment. PATRICK's left hand and Ofc. Schurr's right hand are both on the taser. Ofc. Schurr was breathing heavily as they both went to the ground. He commanded, "Let go of the taser! Let go of the taser!"

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0011**

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Thu, Apr 07, 2022

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POLICE GENERATED VIDEO – OFC. SCHURR (continued):

The body-worn camera was pressed against PATRICK's dark green sweater. The view became obstructed and the sound became muffled. PATRICK said something unintelligible. Ofc. Schurr shouted, "Let go of the taser!" Ofc. Schurr was breathing heavily. The video ended.

AXON Fleet 2 Video 2022-04-04 0811.mp4 1hr59min21sec Ofc. Schurr Patrol Car

The audit log was provided for this video. It indicated the recording began at 08:11:34 "after Axon Signal Vehicle activation using trigger(s) 5." The recording ended at 10:10:23 "due to event button hold." The video was time-stamped, but incorrectly displayed the time of 12:11:04 (four hours ahead of real time). There was no audio until 12:11:34.

Ofc. Schurr's patrol car backed out of a private driveway on Newark Ave SE, north of Griggs St. It pointed south. The suspect vehicle was travelling through the intersection of Griggs St SE and Newark Ave SE. The patrol car turned right (west) onto Griggs St SE behind the suspect vehicle. The suspect vehicle turned right (north) onto Nelson Ave SE, followed shortly after by the patrol car. A traffic stop was initiated and both vehicles stopped on Nelson Ave SE, north of Griggs St SE. The suspect vehicle was a tan Nissan, bearing Michigan registration plate EKP9367.

PATRICK exited the driver seat and faced the patrol car. Ofc. Schurr gave verbal commands to stay in the car. The dialogue that can be heard from the patrol car is consistent with the body-worn camera audio described above, however, is quieter and of lower quality; the microphone was inside the patrol vehicle.

Ofc. Schurr and PATRICK were talking to each other outside the driver side of the Nissan. PATRICK opened the driver door and then closed it. PATRICK began walking away from Ofc. Schurr. Ofc. Schurr attempted to grab PATRICK from behind. PATRICK evaded his grasp and ran between the suspect vehicle and the patrol car. He continued north, into front yard at [REDACTED]. Ofc. Schurr radioed, "1915, I've got one running. Northbound." After a short foot-case, Ofc. Schurr tackled PATRICK from behind. PATRICK attempted to stand, but Ofc. Schurr was on top of his back. Ofc. Schurr placed his left hand on PATRICK's head and held it against the ground (grass). Ofc. Schurr appeared to deliver a strike with his right hand, but it was unclear if, or where, it struck PATRICK. [REDACTED] exited his residence and watched the fight from his driveway [REDACTED]. PATRICK continued trying to stand up. Ofc. Schurr delivered a knee strike, which appeared to connect with PATRICK's right, outer thigh. The passenger of the suspect vehicle, [REDACTED], exited the vehicle and watched the fight from the side of the road.

Ofc. Schurr radioed, "1915, start me some more cars." He was on top of PATRICK, and appeared to gain control of both of PATRICK's arms by holding them behind PATRICK's back. They both stood and began walking south. They exited the field of view of the in-car camera, but returned intermittently. Ofc. Schurr lost control of PATRICK's arms. Ofc. Schurr re-entered the frame, and appeared to have something in his right hand. The remainder of the altercation took place beyond the field of view of the camera. [REDACTED] returned to his house. [REDACTED] walked towards PATRICK and Ofc. Schurr while holding a cell phone. [REDACTED] never walked beyond the sidewalk. There was a single popping sound, consistent with gunfire, followed by Ofc. Schurr on the radio, "1915, I was just involved in a shooting. Nelson and Griggs." And "1915, I'm Nelson, north of Griggs.

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PRINTED: 5/3/2022 09:15

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POLICE GENERATED VIDEO – OFC. SCHURR (continued):

I'm 10-4. Suspect's down." Another responding officer asked, via radio, if the suspect had access to weapons. Ofc. Schurr replied via radio, "1915, he has my taser."

Responding officers gave verbal commands to [REDACTED], who walked backward towards the patrol car. Officers approached the suspect vehicle and checked it for additional occupants. The following 1hr50min of this recording captured radio traffic, the arrival of additional officers, the application of crime scene tape, the fire department, Life EMS, MSP and the preliminary area canvass. I turned the video off from inside the patrol car.

POLICE GENERATED VIDEO – RESPONDING OFFICERS:

The following body-worn camera videos recorded the first responding officers. They showed officers detaining [REDACTED], clearing the suspect vehicle, and then approaching PATRICK's body. PATRICK was motionless, lying prone in the grass at [REDACTED], at the driveway of [REDACTED]. Sgt. Johnston rolled PATRICK's body westward onto his back, revealing a black body-worn camera and a yellow taser on the ground. Officers cut PATRICK's shirt open and applied AED pads. No shocks were advised. They performed chest compressions.

- Axon_Body_3_Video_2022-04-04_0813_X6039B8NZ.mp4
 - Ofc. Sean LaHuis
- Axon_Body_3_Video_2022-04-04_0813_X6039C5GM.mp4
 - Ofc. Justin Copelin
- Axon_Body_3_Video_2022-04-04_0813_X6039C5YX.mp4
 - Sgt. Timothy Johnston
- Axon_Body_3_Video_2022-04-04_0813_X6032179A.mp4
 - Ofc. Jordan Grace
- Axon_Body_3_Video_2022-04-04_0817_X6039A15R.mp4
 - Ofc. Javo'n Sanders
- Axon_Body_3_Video_2022-04-04_0817_X6039C7J8.mp4
 - Sgt. Nicholas Calati

CELL PHONE VIDEO:

IMG_0846.MOV 2min44sec

A cell phone was seized from [REDACTED] person when he was detained on scene. A search warrant for the contents of the phone was signed by Judge Schaefer and executed by MSP CCU. A video recording of this incident was extracted (item #3). The video was filmed by [REDACTED], in a vertical orientation, while standing outside the passenger side of the suspect vehicle.

Ofc. Schurr and PATRICK were in the driveway and front yard between [REDACTED] and [REDACTED]. PATRICK was on his hands and knees. Ofc. Schurr was on top of PATRICK's back. PATRICK was trying to stand up. [REDACTED] was standing in his driveway, watching the struggle. Ofc. Schurr yelled, "Get your hands behind your back!" PATRICK said, "Okay," but continued trying to stand up. The camera began intermittently

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CELL PHONE VIDEO (continued):

pointing at the ground. Ofc. Schurr yelled, "Put your hands behind your back!" [REDACTED] said, "(unintelligible). You good. Don't grab him like that, though. (unintelligible)." [REDACTED] said, "I know, but I'm just saying man, I'm a black man too (unintelligible)."

PATRICK said, "Okay," and he and Ofc. Schurr stood up. Ofc. Schurr was behind PATRICK, holding PATRICK's arms behind his back. They began to walk south. Ofc. Schurr said, "Stop!" and PATRICK replied, "Okay." Ofc. Schurr shouted, "Stop resisting!" and they continued to stagger around the yard. Ofc. Schurr delivered a knee strike; his right knee appeared to strike PATRICK's outer right thigh.

[REDACTED] said, "Man, he good. Not resisting nothing." [REDACTED] repeatedly stated, "Come on man." While the camera was pointed at the ground, a sound consistent with a taser deployment was made, followed by an electrical arching sound. [REDACTED] said, "Okay, why you got do all that bro? He good, man." The camera returned to PATRICK and Ofc. Schurr. Ofc. Schurr had his right hand on the taser, and PATRICK had his left hand on the taser. They were facing each other. They both dropped to their knees, hands still on the taser. Ofc. Schurr said, "Let go of the taser!" PATRICK's back went to the ground, and Ofc. Schurr laid on top of PATRICK, perpendicular and front-to-front.

Ofc. Schurr and PATRICK each had their right hand on the taser. The taser discharged directly into the ground. Ofc. Schurr said, "Let go of the taser!" [REDACTED] said, "No, he good. Like, you can talk to him, bro. Man, he good, bro, like can you talk to him like, good, like, can you, yah. Stop grabbing him like that." Ofc. Schurr shouted something unintelligible. [REDACTED] said, "Man he good like, (unintelligible). Yo, you hit him too." Ofc. Schurr yelled, "Let go of the taser!" PATRICK was prone on the ground, and Ofc. Schurr was prone on top of him. [REDACTED] said, "Man he ain't got no taser, (unintelligible)." Ofc. Schurr yelled, "Let go of the taser!"

PATRICK was getting up on his hands and knees. Ofc. Schurr was still on PATRICK's back with his left hand still under PATRICK. Ofc. Schurr's left hand and PATRICK's right hand were on the taser. Ofc. Schurr drew his pistol from his right hip with his right hand. He yelled, "Drop the taser!" Ofc. Schurr's left hand came out from underneath PATRICK. Ofc. Schurr began standing up. The pistol was blocked from the view of the camera by Ofc. Schurr and PATRICK. The pistol fired, and a fired cartridge casing ejected into the air. PATRICK immediately stopped moving. Ofc. Schurr ordered [REDACTED] to "Get back! Get back." Ofc. Schurr was breathing heavily. Ofc. Schurr stood up, and stepped backwards away from PATRICK. Ofc. Schurr radioed, "1915, I was just involved in a shooting. Nelson and Griggs. Sirens were heard in the distance. Ofc. Schurr continued his radio traffic and the recording ended.

STATUS:

OPEN

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INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS

INFORMATION:

While doing an inventory search of the involved vehicle, I observed an employment badge for North America Fuel Systems Remanufacturing LLC with the name [REDACTED] and the image of PATRICK LYOYA. Through a google search I located the company at 4232 Brockton Dr, Grand Rapids, MI 49512 and contacted them in person in order to identify who was employed there. I contacted [REDACTED] in Human Resources at the location.

WITNESS

NAM:	[REDACTED]		
BIR:		RAC:	[REDACTED]
NBR:		SEX:	[REDACTED]
STR:	DIR:	DOB:	[REDACTED]
SFX:		HGT:	' "
CTY:	ST:	WGT:	
TXH:	ZIP:	HAI:	
TXW:		EYE:	
MB:			
SMT:			

EMPLOYER: REMANUFACTURING LLC

INTERVIEW WITNESS

[REDACTED] was contacted on 4/7/22 and interviewed about [REDACTED]. She said she was the hiring person for [REDACTED]. She said he was a walk-in inquiring about a job. She said he had left his previous employer and was immediately hired. She said he worked from February 1, 2022 through February 15, 2022 but he had numerous problems which ultimately lead to his dismissal. She described the problems as procedural giving the examples that he would not wear the required safety equipment to work in the factory. She said he was also on his phone all day when he was supposed to be working. She said lastly he was a no-call, no-show and he was terminated.

[REDACTED] provided a copy of the personnel file for [REDACTED]. She confirmed that the image on his identification card was taken of the person whom was employed with them. **The image is that of PATRICK LYOYA.**

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██████████ advised another employee said they saw a media release showing the person they knew as ██████████ had been involved in a police shooting with the name PATRICK "something". ██████████ said she looked for the PATRICK LYOYA name and confirmed that he was not an employee. ██████████ said it now makes sense to her that LYOYA had presented false information of ██████████ to gain employment.

██████████ provided the paperwork filled out by a person reported to be "██████████" showing that he said he lived at ██████████ with his girlfriend, ██████████ is a girlfriend of LYOYA). LYOYA provided banking information for direct deposit of his paychecks into two separate accounts.

██████████ provided a copy of the personnel file which **will be held as an external document** with this investigation. During his employment, PATRICK LYOYA used the following identifiers:

United States Employment Authorization

██████████
Democratic Republic of Congo
██████████

SSN

Michigan Identification Card

LYOYA requested electronic deposit into to accounts:

VARO Savings Accnt

Accnt ██████████
Routing 124303201

VARO Checking Accnt

Accnt ██████████
Routing 124303201

CONTACT ALLEGAN COUNTY SHERIFF'S OFFICE:

On 4/7/22 I contacted Lt. Mike Brown, Allegan County Sheriff's Office, whom stated that PATRICK LYOYA was supposed to be in court on 4/4/22 for a sentencing hearing for an OWI arrest in 2021 for High BAC/OWI.

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OTHER PERSON

NAM: [REDACTED]
BIR: [REDACTED] RAC: [REDACTED] ETH: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED] SEX: [REDACTED] DL: [REDACTED]
STR: [REDACTED] DOB: [REDACTED] SSN: [REDACTED]
SFX: [REDACTED] APT/LOT: [REDACTED] HGT: [REDACTED] SI: /
CTY: [REDACTED] ST: [REDACTED] WGT: [REDACTED] FBI: [REDACTED]
TXH: [REDACTED] ZIP: [REDACTED] HAI: [REDACTED] MNU: [REDACTED]
TXW: [REDACTED] EYE: [REDACTED] PR: [REDACTED]
SMT: [REDACTED]

OTHER PERSON

NAM: [REDACTED]
BIR: [REDACTED] RAC: [REDACTED] ETH: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED] SEX: [REDACTED] DL: /
STR: [REDACTED] DOB: [REDACTED] SSN: [REDACTED]
SFX: [REDACTED] HGT: ' " SI: /
CTY: [REDACTED] ST: [REDACTED] WGT: [REDACTED] FBI: [REDACTED]
TXH: [REDACTED] ZIP: [REDACTED] HAI: [REDACTED] MNU: [REDACTED]
TXW: [REDACTED] EYE: [REDACTED] PR: [REDACTED]
MB: [REDACTED]
SMT: [REDACTED]

INTERVIEW [REDACTED]

On 4/7/22 I contacted [REDACTED] at her address. She was home with her children and made arrangements for them to be watched while she agreed to come to my car for an interview. The following is a summary of the interview and is not intended as a verbatim account of that which was asked and answered. The interview was recorded which recording will be held with the investigation.

[REDACTED] provided the above identifiers and stated that she is and on/off girlfriend of PATRICK LYOYA for the past four years. I asked if she knew him by any other name and she said "just PATRICK LYOYA".

[REDACTED] said LYOYA just moved into his new apartment on the 14th of March. She said she knows where the apartment is located but she doesn't know the address. She said the apartment is the "store that is located right across the street from the Shell gas station" on Kalamazoo. [REDACTED] said he lived at the apartment by himself.

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INVESTIGATED BY:

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I asked [REDACTED] when was the last time she saw LYOYA and she said the last time was when he came to the gas station where she works and he "flat all the tires". She said that was sometime in March.

[REDACTED] said they were going through a breakup at that time and he wanted to stay together. [REDACTED] said she made a police report but the police never got to see the video because "this happened". [REDACTED] said she talked to a police officer but she doesn't wish to continue the report now. She works at Lacks Enterprises but she doesn't know which police agency she talked with. She said it may have been the Sheriff's Office.

[REDACTED] said LYOYA tried to contact her on Facebook on April 2, 2022 via Facebook Messenger. He was telling her then that he lost his phone. She said she didn't see the message until after "he was gone". [REDACTED] said LYOYA made a new Facebook page he created.

[REDACTED] said they do not have any children together but stated LYOYA would help take care of her son (5 yo). I asked if [REDACTED] knew where LYOYA was working and she said he got a job through a temp agency "Costal Careers" he didn't tell her where he was working.

I asked [REDACTED] if she knows PATRICK LYOYA to go by any other names and she said only PATRICK. She further advised a few years back LYOYA lost his identification and he needed it for employment so he went to his dad's and got the paperwork to get a new identification. [REDACTED] said he wasn't able to get a job at that time. She said sometime this year he came back and told her that they gave him a job from when she helped him.

I asked the most recent phone number she had for LYOYA and she provided [REDACTED] and she most recently talked to him on that number March 27, 2022. She said she has talked to him more recently on Facebook. The Facebook she provided was username '[REDACTED]'. She read the message "Hey this is Patrick" and she said in the message he was showing her his new Apartment and telling her he lost his phone".

I asked what "on and off" means and [REDACTED] said there were lots of times when PATRICK was cheating so they would break up. She said the longest break they had was last year when they took a year off. [REDACTED] said they got back together in December. I asked if LYOYA was seeing anyone else currently and [REDACTED] did not know of anyone.

[REDACTED] said PATRICK LYOYA is from Congo, Africa. She said he told her he moved here when he was 18 years old and did High School in Lansing, Michigan. His dad was not here yet, he came with his step-mom. [REDACTED] said he came here with his step mom and siblings. She said after locating in Lansing she thinks he dropped out of High School and moved to the Grand Rapids area. She said he had his own apartment in the Woodfield area. [REDACTED] said his life was good and he was paying his bills and staying home. [REDACTED] said PATRICK started getting in trouble "Drinking and Driving". She said he was trying to get his life back together because he knew he had a case out of Lansing. She then referred to a case out of St. Joseph coming up and he was trying to work out with his attorney that he could go to jail on the weekends and work during the week.

[REDACTED] said she wasn't with him when he got in trouble for that. [REDACTED] said he went to jail and the lawyer was supposed to help him out with the jail situation. She said LYOYA knew he was going to go to jail.

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██████ said LYOYA lived with her for a few months but then he left. ██████ said she knows that there are two people saying LYOYA is the father of their babies but she tried to conceive by him and she already has a kid so she knows if she can't get pregnant by him, they can't either and she doesn't believe the children are his. ██████ said his family and friends say he has two kids but he never did a DNA test and denies to her that they are his children. ██████ said the moms of the two children have "like the same name". She said she one is ██████ and the other sounds similar. ██████ said one lives in Lansing and the other is Grand Rapids. ██████ said the one that lives in Lansing "blocked me" and she spoke with the one in Grand Rapids on Valentine's day of this year.

██████ said she was looking for LYOYA on Valentine's Day and he didn't answer his phone. She said she found that girl on Facebook and called her and LYOYA was there. ██████ said she asked LYOYA again then if that was his child and he told the other girl that ██████ is his girlfriend. ██████ said he got up and came to "my house" at that time. That girl is ██████ (identified through Facebook). ██████ said the child was born in December or January. ██████ said LYOYA didn't deny that he was with her but he denies the child is his further explaining that she had another man that she was with at that time also. She said she encouraged him to do a DNA test to identify if he is the child's father.

I asked ██████ what vehicle LYOYA was driving and she explained that he had a Ford Fiesta until recently when it's engine "blew up". She said he went back to the guy that fixes cars and PATRICK got a Nissan recently that was a brownish color or light blue. ██████ said that guy fixes cars so he can sell them.

██████ said PATRICK had a few drunk driving cases but only one that was currently "open". She was not aware of any other criminal cases except for what she was going to do "with my tires".

I asked ██████ if she knows ██████ and she said "that is one of PATRICK'S friends". She knows because she has met him. ██████ said LYOYA is friends with ██████ and ██████ but stated "they don't stay here anymore".

██████ does not know where ██████ stays and she knows that ██████ mom is still here but ██████ is not. ██████ does not have contact information for them and said they all use "What's App" to communicate. ██████ said that ██████ may be in the area but LYOYA denied they hang out together any more. ██████ said she didn't want LYOYA hanging out with the same people. ██████ said ██████ is a different culture; he is not Congolese. She said LYOYA told her when ██████ gets around his own culture he is fake with PATRICK".

I asked about other friends and ██████ said, "he just started talking to this dude ██████, I don't know his last name". ██████ said ██████ lives in Cascade "over by the mall". ██████ said she has been around ██████ a few times but she felt like ██████ was using PATRICK because the only time ██████ would call was when he needed a ride or wanted PATRICK to stop at the store and buy alcohol when ██████ got off work at 3:00 in the morning.

██████ said PATRICK LYOYA drinks a lot but she didn't like it so when they would go out together he already knew he wasn't going to drink or not as much because he was with her. ██████ said LYOYA will drink a Budweiser but he prefers a more expensive "Modelo" beer.

██████ doesn't know about where PATRICK LYOYA was currently working. She inquired about why he would even be out at 8:00 in the morning. She said maybe he was looking for a job. She said it was not normal for him to be out all night "from sun down to sun up" so it doesn't make sense to her.

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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0012**

ORIGINAL DATE:
Mon, Apr 04, 2022

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Thu, Apr 07, 2022

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█████ said █████ will go to work and when he comes home he wants to drink. █████ said sometimes they get together and sometimes PATRICK tells █████ "no".

█████ said LYOYA has a cousin █████ who lives in the Grand Rapids area and █████ goes by the name █████. █████ said LYOYA has an aunt in the area and maybe an uncle.

I asked █████ if she has ever seen LYOYA with a weapon or be violent and she said she has never seen him be violent or fight. She said she knows when he drinks "he do get a little temper or whatnot but that's just a temper". She said she can calm him down by just talking to him and telling him, "you're not supposed to be doing this".

█████ doesn't know anything about this incident. She said she met with LYOYA'S father for a press conference and to coordinate a March on behalf of PATRICK LYOYA this Saturday "somewhere on Kalamazoo". I explained to █████ the State Police role in this investigation.

I asked █████ if PATRICK has used anyone else's name as his own and she said he might have due to the fact that he didn't have an identification but she does not know what name he would use. █████ said PATRICK has all his paperwork and documents showing he is here legally. She said he came through a camp and was sponsored to come here. █████ said PATRICK has a Social Security card because he has told her his SSN before.

I asked if there is anything else that █████ can provide for this investigation and she said all he does is work and do favors for people if they call him. She said she only knows him to work and be at home until someone calls him. █████ said LYOYA hadn't even made his first apartment payment yet.

I asked if there are other friends or family that would help this investigation and she said she would try to get a phone number for █████

I asked if PATRICK LYOYA spoke good English and how well he understands and █████ said he understands and speaks "about 75%" of English and explained that sometimes he would transpose a different word for a word but she said he understood and spoke most of the time and if you listen you can understand what he was trying to say.

█████ provided a name of "█████" or "█████" as the person whom PATRICK LYOYA got the vehicle from and provided his number █████. She said she towed her vehicle into town to a house where █████ was going to work on it but then learned that he lives near her. █████ said LYOYA just got the car. She said right before LYOYA moved into the apartment the engine from the Fiesta blew. She said PATRICK went back to the landlord and asked for the deposit back to deal with the car situation but the landlord denied the return of the deposit. █████ said LYOYA told her he got two jobs to get money around for both a car and rent. He needed a car to work and working meant he could have a house and "that's all he wanted". █████ said LYOYA was "room-mating" the entire time he was up here.

█████ said LYOYA had his own place when she met him but he was hanging out with people that the landlord didn't like, which was █████ and a guy that went to prison already for stealing a car. █████ said that guy's name was █████. █████ said █████ was from "Kwanza". █████ said that is how PATRICK LYOYA got stolen vehicle charges when he was in a vehicle with █████ █████ said she has

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INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

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OTHER:

NAM: [REDACTED]

BIR: [REDACTED]

RAC: [REDACTED]

ETH: [REDACTED]

NBR: [REDACTED] DIR: [REDACTED]

SEX: [REDACTED]

DL: [REDACTED]

STR: [REDACTED]

DOB: [REDACTED]

SSN: [REDACTED]

SFX: [REDACTED] APT/LOT: [REDACTED]

HGT: [REDACTED]

SI: /

CTY: [REDACTED] ST: [REDACTED]

WGT: [REDACTED]

FBI: [REDACTED]

TXH: [REDACTED] ZIP: [REDACTED]

HAI: [REDACTED]

MNU: [REDACTED]

TXW: [REDACTED]

EYE: [REDACTED]

PR: [REDACTED]

MB: [REDACTED]

SMT: [REDACTED]

INTERVIEW [REDACTED]:

[REDACTED] advised that PATRICK LYOYA is his eldest son and they were born in the Republic of Congo, Africa. He speaks Swahili as his first language and requested that [REDACTED] [REDACTED] be present to help him with understanding this investigation.

[REDACTED] acknowledged that he met with the Chief of Grand Rapids Police Department the prior day but stated the Chief gave him answers but it was "not satisfying" further explaining he does not know the reason his son was killed.

D/Sgt. Tubergen explained that the State Police works separate from GRPD as an independent agency to investigate the incident. He explained that he is a "fact finder" and he only wishes for the "truth". He advised that GRPD called the Michigan State Police to do the investigation.

[REDACTED] said he was not told by GRPD what happened at this incident. It was explained to him that PATRICK was involved in a traffic stop and he was driving a vehicle and the officer pulled him over. [REDACTED] translated this and then told D/Sgt. Tubergen that "I think that is wrong". He said he is a "person of the community" so he knows what is going on. PATRICK was driving the car and there was a noise to PATRICK pulled over to investigate the noise. The officer then pulled up and realized PATRICK was using the wrong license plate.

[REDACTED] said the information comes from the boy that was in the car how it was explained to [REDACTED] by him. [REDACTED] said "the boy was there" (referring to [REDACTED]) and said [REDACTED] told them that the car was making a noise to PATRICK pulled over and the police arrived afterwards. [REDACTED] said he has not spoken to [REDACTED] but [REDACTED] spoke to [REDACTED]

[REDACTED] explained that they have not talked in person because they have been too upset. They were going to meet with [REDACTED] soon so he could explain what happened. [REDACTED] said the police took a phone away from [REDACTED] because he was recording and shouting. [REDACTED] wanted to know if we had that recording and D/Sgt. Tubergen explained that we have that evidence.

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████████ said he talked to ██████ and ██████ explained what happened.

D/Sgt. Tubergen told ██████ (through ██████) that he was going to offer to show him the video that the passenger (████████) recorded. ██████ also wished to see the dash camera video and the body camera videos. ██████ was told that the officer's body camera fell off during the fight. ██████ inquired about the camera of the car and said he knows when an officer pulls you over, the car is behind you so the camera can see everything. It was explained to him that that camera only video records what occurs in front of it.

████████ said he wants to see the videos to see how his son was killed and why he was killed.

I explained to ██████ that we would only show one video to explain the incident but that all videos will be maintained as evidence in this case. ██████ said he is requesting all the videos from the car and the young man but it was explained that we will not show all of them while this is an ongoing investigation. I explained to them that we preserve all the evidence so we can show the prosecutor's office but they will not be provided to the family at this point. ██████ said he has the right to see all the videos but it was explained that was not the purpose of this meeting. Our purpose is to show him what happened so he does not see it first on TV.

████████ said he would like to see them and he doesn't have a problem with the media having the videos also. ██████ requested to see the unedited version of the video.

D/Sgt. Tubergen asked if ██████ knows where PATRICK was living and ██████ said PATRICK just moved within the past week. ██████ said one of his baby's moms can show where PATRICK was living. PATRICK had two children, one that is 2 years and one that is 3 months. The mom of the one that is 3 months could tell where the apartment is located. Her name is ██████ and the other mother is ██████. ██████ said he could get their last names and phone numbers also.

████████ explained that in their culture it is not good to present a woman to your parent if you are not married and have a baby out of wedlock. He said for that reason, ██████ did not know these women with whom PATRICK had children. ██████ said it would dishonor the parent to introduce these women.

D/Sgt. Tubergen asked ██████ if he recognizes the following names:

████████ No

████████ is the young man that PATRICK went to visit in the morning, a friend from Africa, ██████ said that ██████ was with him that morning so she can explain what he was doing. ██████ said since ██████ lives in Lansing he was not in contact with these people.

████████ No
████████ No

Passenger of the car- ██████ does not know this person and could not recall the name the young man gave him

████████ No

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██████ said PATRICK was working but sometimes he changes jobs so he is not sure where he was currently working.

██████ was aware that PATRICK had his own vehicle but he didn't know what he currently had. ██████ again said ██████ would know all of these things.

I asked if ██████ knows who PATRICK'S friends are and he said he only knows his cousin ██████ who lives in Grand Rapids but they were not living together, ██████. I asked if there are other family members and ██████ said there are not.

I asked who ██████ has talked to since this happened that may help the investigation or have information. He said nobody besides the passenger and according to ██████ he has not been able to talk because he is still in shock.

I explained what I observed on the video before showing the video to ██████:

- The police officer is in contact with PATRICK, PATRICK is out of the car and the police officer asks PATRICK to get back in the car.
- He then asks for identification and PATRICK asks the passenger to get identification and then walks away from the police officer.
- They get into a physical altercation.
- PATRICK gets away from the police officer and the police officer pursues and they get into a second physical altercation.
- The police officer draws his Taser and the Taser is deployed twice before the police officer fires his gun.

██████ asked if the Taser "didn't do anything" and was told that the Taser will be sent into the company to determine its effectiveness. ██████ said there is no way the police can carry a Taser that doesn't work. D/Sgt. Tubergen attempted to explain how the taser works and why it may not have been effective. ██████ said he doesn't agree with that because if someone is shot with the taser they go down right away. ██████ said he just wants to see the video. ██████ asked "if the taser doesn't work is the police obligated to shoot him?" I explained that we don't decide if what the officer did was right, we only collect information. ██████ wants to know why the police officer shot and killed his son. ██████ said he knows if the police shoot the taser and it doesn't work, they will call for backup because he has seen this plenty of times.

██████ was told that the officer had already called for backup. D/Sgt. Tubergen explained that there are no rules of when the officer decides to shoot his gun, until the investigation is complete, we can't say why the officer did what he did. The video is a part of the investigation but the investigation is bigger than just the video.

██████ is asking if he can see the body of his son and he wants to know where his son is located. ██████ was told that D/Sgt. Tubergen was waiting to tell the morgue what funeral home he selected. ██████ said he had not yet chosen a funeral home because he wants to see the body of his son first. ██████ was told that the morgue does not permit visitors and that is a hospital rule, not something we have control over.

I explained to ██████ that PATRICK died from a gunshot wound to the head.

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██████ said he is a pastor and a man and he knows that "that boy was killed" because he is black. ██████ explained the police negotiate with a "white boy" but further stated, "that boy is killed, they killed him on purpose".

██████ asked why they cannot shoot him in the chest, why they shoot him in the head. ██████ said he has a son and he teaches his son every day. He said he is speaking as a pastor and a man of God that this was pure racism. ██████ inquired, "what about if it was me, what if it was my son?" and it was explained that our job is to investigate it separate from Grand Rapids Police Department.

██████ said he has a sensitive heart and he doesn't think he wants to watch the video but ██████ asked him to stay and watch it with him. ██████ said he wants ██████ to stay. I asked ██████ if he has other questions and he said he does, but he just wants to see the video. ██████ asked ██████ to watch the video with him so when they talk to their lawyer ██████ can explain what happens in the video. I offered to wait and meet with ██████ and his lawyer to show the video and he did not want to wait.

██████ requested to see the entire video as opposed to the altered version. During the viewing of the video, ██████ attempted to activate the video camera on his cellular phone under the table and I told him he was not permitted to do so. The video was paused while he turned off his cell camera. I explained that he cannot record it because this is evidence and he said he understood.

██████ asked if it was his friend that is filming this video and it was confirmed that it is (██████).

After watching the video ██████ inquired why they killed him when he was down like that. ██████ repeated, "he kill him". ██████ asked "where is the taser"? and stated, "they lied for us". He repeated several times, they killed him and "they killed him because he is black".

They wished to end the interview at that time and left the room.

██████ said he has seen them give white people options and that did not happen. ██████ questioned why did he bring his son here (from Africa)? He was crying and repeatedly saying "they killed him".

I explained to ██████ that we only showed him the video because it is his loved one and requested that he keep the information only with him or his close family while the investigation is ongoing explaining that we have many witnesses still to interview. I also explained that the Michigan State Police are the ones doing the investigation so if he has information for the investigation to please contact us and he agreed.

██████ said we are dealing with non-violent people here. ██████ asked what information we would still need from him and I requested that if people are contacting him with information about the investigation that he has them contact us directly or gives us their information so we can include it.

██████ said in the East of Congo there was extreme violence and ██████ ran away from that and came to America only to have his son shot in the head. ██████ said this happened because it happened in the black community. He said repeatedly, "He killed that boy" He said the officer could have shot him anywhere else but he shot him in the head.

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██████ said ██████ just wants to have time. ██████ promised that “we will keep the information” as we pursue the investigation and justice for PATRICK.

It was explained again that in order to see his son’s body he needs to make arrangements with a funeral home. ██████ said he understood and would make the arrangements. He further thanked us before leaving.

EXTERNAL DOCUMENTS:

Personnel file for ████████████████████ from North America Fuel Systems Remanufacturing

STATUS:

Open, pending follow-up investigation.

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INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

TRAINING RECORDS/OFFICER CHRIS SCHURR:

On April 6, 2022 I requested the training records from GRPD for Use of Force/Deadly Force as well as any information pertaining to prior taser deployments by Officer Christopher Schurr.

I received copies of incident 21-050755 (a previous taser deployment by Schurr on 8/18/21) as well as a two page document of Officer Chris Schurr training files. **These will be held as external documents with this report.**

FRAUD INVESTIGATION:

Captain John Bylsma also forwarded a fraud investigation, **22-012359** where PATRICK LYOYA is alleged to have used [REDACTED] identification and debit cards to transfer money to a Cash App account. The GRPD report was information only in order to have her bank refund the stolen money.

INFORMATION:

On 4/7/22 I contacted US Immigration and Customs Enforcement Special Agent Kurt Fiegel to determine the status of several persons involved in this investigation:

Kurt,

Per our phone conversation I am investigating an Officer Involved Shooting where the deceased is PATRICK LYOYA [REDACTED] PATRICK had the identity of [REDACTED] [REDACTED] in his wallet and has what looks like a current work identification with [REDACTED] name and PATRICK LYOYA'S photograph.

There are also identifications located within the vehicle involved for [REDACTED] and [REDACTED]. The passenger of the vehicle was [REDACTED] There are photographs of identifications and multiple credit cards.

The response I received was as follows:

PATRICK LYOYA [REDACTED] entered the US as a refugee on 2/4/2014.

[REDACTED] [REDACTED] entered the US as a refugee on 4/5/2018 and had employment authorization that expired on 5/8/2020.

[REDACTED] looks like an AKA for [REDACTED] also a refugee entered US on 9/4/2014.

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[REDACTED] appears to be a USC.

[REDACTED] entered the US as a refugee on 7/1/2015.

[REDACTED] entered the US as a refugee on 10/8/2015.

[REDACTED] a lawful permanent resident.

KENT COUNTY PROSECUTOR MEDIA RELEASE:

On April 7, 2022, Kent County Prosecutor Chris Becker requested that we not release the video evidence of this investigation while the investigation is ongoing. A copy of a media release authored by his office will be **held as an external document with this investigation.**

PROPERTY TO LAB:

D/Sgt. Tubergen requested that I take the involved firearm to the lab for testing and send the involved Taser to Axon for a Full Analysis and Cartridge/Wire/Probe Analysis. On 4/11/22 I took items 16, 18, and 36 to the Grand Rapids Crime Laboratory.

Property items 11 (Taser probes), 34 (Taser probes) and 42 (Taser 7) were sent to Axon for a full analysis and cartridge, wire and probe analysis. Item 42 was separated from the original packaging such that it could be secured for shipping in a weapon box. Item 44 (packaging previously containing item 42) was created to maintain a documentation of chain of custody of the Taser.

A copy of the Taser 7 Evidence Audit Trail by GRPD was included in the shipping and will be **held as an external document with this investigation.**

SEIZED:

SEIZED BY: JACQUELYN STASIAK

Prop 0044 -Type: MISCELLANEOUS Value: \$0.00

Descrp: PLASTIC BAG CONTAINING PAPER BAG WHICH PREVIOUSLY CONTAINED ITEM 42, TASER 7

Obtained From: [REDACTED]

95 - [REDACTED]

41 - KENT, GRIGGS

SPLIT FROM ITEM 42 TO MAINTAIN CHAIN OF CUSTODY

Date/Time Recovered: 04/11/2022 1525

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INVESTIGATED BY:

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WITNESS:

NAM: [REDACTED]

BIR:

RAC:

ETH:

NBR: [REDACTED] **DIR:**

SEX:

DL:

STR:

DOB:

SSN:

SFX:

HGT:

SI:

CTY:

WGT:

FBI:

TXH:

HAI:

MNU:

TXW:

EYE:

PR:

MB:

MB:

SMT:

INTERVIEW [REDACTED]:

[REDACTED] was interviewed at the Sixth District Headquarters conference room in the presence of his attorney, MARK HUNTING and his "adoptive father" whom sponsored him to come to America through his church, [REDACTED], LMSW, ACSW.

[REDACTED] asked his "father" for the above address stating he just moved there. [REDACTED] said he was living with a roommate but then this happened and he had to find another place to live. His father denied providing his address and explained that [REDACTED] does not live with him.

[REDACTED] said he came from Africa and was born in the Congo but was sponsored to come here 13 years ago. His father explained [REDACTED] left the Congo and went Rwanda when he was 2 years old and was sponsored to come here in 2009. English is not [REDACTED] primary language however, he does not speak Swahili either so he spoke to PATRICK in English.

[REDACTED] said he knew PATRICK LYOYA through mutual friends. He said sometimes he didn't have a car so PATRICK would drive him to work or give him a ride back from work. [REDACTED] said he has known PATRICK for a "couple years" but he doesn't know exactly how long.

[REDACTED] works for Lear Corporation and he is a welder. He has been there for four years but didn't start as a welder. [REDACTED] works second shift. He starts at 4p to 2:30a Monday through Thursday.

D/Sgt. Tubergen explained that the Michigan State Police is doing the investigation separate from Grand Rapids Police Department.

[REDACTED] said he did not work on Sunday night to Monday morning when this incident happened. He was supposed to work Monday afternoon.

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D/Sgt. Tubergen asked what they were doing prior to this incident and █████ explained they were at his friends house. He said PATRICK fell asleep. He said his other friend had to take his daughter to school so they woke PATRICK up to drive him downtown area. █████ said they dropped off his friend off and then it was just he and PATRICK in the car and they went to check out his new place (apartment) which █████ described as over near where the "accident happened". He said he doesn't remember everything. He said he doesn't remember where they were going; he said they were just driving and then "everything happened after that".

█████ said he was at █████ house prior to this incident. He said his other friend was █████ █████ thought █████ last name is █████ (unknown spelling). █████ said they took █████ (unknown last name) to his house to get his daughter to school. █████ is 30 years old and █████ is around 24 years old. █████ lives in Woodfield Apartments. █████ lives near Madison, close to downtown but not downtown.

█████ said PATRICK was excited to get a new apartment and show █████ where he was living. PATRICK'S new apartment is over a store on Kalamazoo near Walgreens. PATRICK lived in the upstairs apartment and there is a "shop" downstairs. █████ said PATRICK talked about wanting to start a barber shop downstairs. █████ said the downstairs building was empty. █████ does not know how long PATRICK has been cutting hair.

█████ said they left █████ apartment in the morning after sunrise. He said it was not dark. █████ said they went by PATRICK'S apartment but they did not go in. █████ said they were just in the car talking about how PATRICK wanted to start giving haircuts.

█████ said right away after they pulled out he was talking to PATRICK for a couple of minutes and they had this incident. █████ said PATRICK'S car was making "a lot of noise, a lot of noise" and he was on his phone and talking to PATRICK and PATRICK pulled off to check on it. █████ started to cry while explaining this.

█████ said PATRICK said he was going to check the car out and he was on his phone and the next thing he knew he and the police officer were "going around". He said PATRICK came around the car and into a yard.

█████ clarified that he was just looking at his phone in his lap in the front passenger seat and denied that he was talking to anyone. He said PATRICK was driving. █████ said the car started making noise before they dropped his other friend off. █████ said it was "something on the bottom" and thought it may have been the muffler or something.

█████ said he was on the phone and they were going "back and forth" and then they went around the car and were somewhere around the houses and in the grass. █████ recalled thinking, "this do not look right". He said he decided to take his phone out and record.

D/Sgt. Tubergen asked what "going back and forth" with the officer meant and █████ said PATRICK and the officer were talking and he (the officer) turned him (PATRICK) around. He said everything just happened so fast but he knew something was wrong. █████ said he knew something was wrong so he opened his door on the passenger seat and started recording. █████ said he was trying to zoom in and he heard "pop" and then they put him in handcuffs when other police came.

█████ thought PATRICK was saying, "okay okay" and he heard "pop" but he was just recording at that time.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0013**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 11, 2022

FILE CLASS:
09005

████ said the officer never spoke to him. He doesn't know what the officer was saying to PATRICK. He does not know why the officer was talking to PATRICK. █████ recalled that PATRICK was turned around and the police officer was on his back, PATRICK was facing forward and the police officer was on his back. He said "PATRICK should know better". He said he knows better, this police officer, "they have job to do, they're doing their job". █████ said the police officer wanted PATRICK to put his hands behind his back.

████ said when PATRICK got out of the car to check the car, that's when he saw the police officer and he described that "they have some words" and he recalled there were some white houses and they "were in the grasses".

████ said he was recording and he heard "pop" and "he killed PATRICK". D/Sgt. Tubergen asked if they were fighting or talking and █████ said, "I don't remember". When asked if they were drinking █████ remembered that they had some Budweiser in the car. █████ said he didn't see PATRICK drinking Budweiser in the car. He described that the Budweiser was "in the back". █████ said "we grabbed them". And said he knew they had Budweiser but he doesn't remember how many of them were open.

████ said when they were at his friend's house, he does not know how much PATRICK had to drink but PATRICK was sleeping and they had to wake PATRICK to take his friend's daughter to school. █████ doesn't know how much PATRICK had to drink. █████ said he was talking to other people and wasn't paying attention to how much PATRICK had to drink. He denied it was a party saying it was just friends getting together for beer and some African music. █████ said there was other alcohol there too but he was drinking beer. █████ said PATRICK drinks Budweiser.

████ doesn't remember if PATRICK was drinking in the car. █████ didn't know if PATRICK was intoxicated because he slept. █████ said he sees PATRICK sometimes on the weekends. He said his car was in the garage and he will call PATRICK to give him a ride to work. █████ would not commit to whether or not PATRICK was intoxicated. He seemed to think PATRICK was okay because he had slept. █████ said, "to me he looked like he was fine". █████ said PATRICK laid down on the couch. █████ said he was still awake when his friend woke PATRICK up to drive.

████ does not know how long PATRICK slept. █████ said their other friend needed a ride so they woke PATRICK up. █████ said, "I don't recall" when asked about drinking in the car. █████ said PATRICK just got this car. He said PATRICK had a different car that broke down. He said he then got this car in the last month or so. █████ said the noise was a new noise when they took █████ home. █████ does not know PATRICK'S last name and he denied that he knew him to use any other names.

████ again denied seeing PATRICK use any other name. █████ only knows him as PATRICK. █████ did not know if PATRICK had trouble with police before this incident. He denied knowing that PATRICK was ever arrested before. He then said maybe PATRICK told him about that (being arrested) but he doesn't remember. He said they talk a lot. █████ denied knowing about any warrants PATRICK may have had for his arrest.

████ was asked if PATRICK said anything before the police officer came up to the car and he said, "I'm gonna go check my car out". █████ denied there was a concern of the police stopping them. █████ did not see the police officer before this happened.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
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D/Sgt. Tubergen asked [REDACTED] how much he felt the effects of the alcohol and he said he remembers exactly what happened that is why he took his phone out and recorded.

I asked if [REDACTED] and PATRICK were with [REDACTED] in the morning and he denied that was accurate. [REDACTED] said [REDACTED] was not there. He said there was [REDACTED], [REDACTED] and [REDACTED] there with him and PATRICK. [REDACTED] did not recall who else was there.

[REDACTED] had [REDACTED] phone number is in his phone. He said [REDACTED] is in the phone also. He said [REDACTED] is not in his phone.

I asked [REDACTED] who PATRICK'S other friends are and [REDACTED] said everyone likes him. He denied that any of them were "best friends" saying PATRICK gets along with everyone. [REDACTED] said PATRICK was a good friend and a good person.

[REDACTED] did not know of anyone else that had information about the incident. I asked [REDACTED] if he knows [REDACTED] and he said "that sounds familiar" but he couldn't recall who that person is. He said he feels like he knows that person but he can't recall.

[REDACTED] recalled that they took him from the scene and took him to the police station. He said he took a PBT but he doesn't know how much alcohol he had. [REDACTED] said they gave his wallet back and they kept his phone. He said he took the bus to his friend's house.

[REDACTED] said PATRICK had a job but he doesn't know where. [REDACTED] said PATRICK wanted to start cutting hair. I asked if PATRICK had a driver's license and he said, "you not supposed to drive without a driver's license" but he did not recall seeing PATRICK'S driver's license, "I never see it". [REDACTED] did not recall PATRICK asking him to get the driver's license from the car during the traffic stop.

[REDACTED] denied knowing PATRICK to have other people's identification. I asked about all of the papers and identifications in the car and if any of those belonged to [REDACTED] and he said, "no I have my wallet". [REDACTED] said he doesn't remember seeing them (the paperwork).

I asked where the Budweiser in the car came from and [REDACTED] recalled they may have gone to the store. He said it was in the morning and the store was already open but he doesn't remember exactly. He said there were five or six. He doesn't remember what store they went to but he knew it was in the area of the incident. [REDACTED] said they already dropped [REDACTED] off when they went to the store. He said they dropped him off and then went to the store, "probably" but then he stated he didn't recall. I asked if [REDACTED] went into the store and he said, "I don't remember.

[REDACTED] said there were three or four beers in the car. He said "either me or him" paid for the Budweisers but he can't remember. He can't recall how it was paid for either. [REDACTED] said he doesn't remember who had the open beers in the car. He said he was in the front and they were in the back. [REDACTED] knew the open beers were in the back of the car. He can't remember why they were in the back. [REDACTED] said PATRICK liked Budweiser and he can only remember they went to the store and got Budweiser.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0013**

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█████ was pressed █████ said he knows they had Budweiser in the car and some were open and there were still fresh as he recalls. █████ then said he had a beer in the car. When asked directly if one of the beers was his, █████ said he did.

█████ denied any other substances were used at the house. He said, "I didn't see any".

D/Sgt. Tubergen denied that anyone was using marijuana, pills, cocaine, heroin or methamphetamine. █████ said people were drinking beers, just the alcohol, "I think so, that's what I remember".

█████ said PATRICK understands English. He said he and PATRICK spoke English together. █████ said PATRICK "has a job, he goes to work" explaining he understands. █████ said "me and him only speak" English together. He said sometimes he tries to speak Swahili but PATRICK would laugh at him.

█████ said PATRICK seemed to understand English, "because we speak most of the time in English".

█████ said he is speaking from his heart. He said the police are doing their job and he respects the police. He said this country gives him opportunities and that's all he wanted to say.

I asked if █████ knows PATRICK'S family. He said he saw PATRICK'S brother on his birthday with PATRICK, his girlfriend, his brother and his brother's girlfriend. █████ said he was single at that dinner when they went out to eat on 28th Street.

█████ said PATRICK just had a daughter and he also had a daughter in Lansing. █████ said PATRICK was not with the mom of his children at the birthday dinner, it was his girlfriend. He said he tries not to ask many questions.

█████ again reiterated that he respects the police and the country also and he didn't come here to make trouble. It was explained to █████ that we are continuing to do an investigation and we asked that he have anyone with information contact us. █████ was provided a business card also.

INFORMATION:

█████ said that █████ mom came to the country first and was sponsored by his church. He said that the church helped bring PATRICK and his siblings here also. █████ said he helped the kids get into school and he said he "sort of latched on" to █████ and has been supportive of him since he was 16. He agreed to help in any way that he could.

Attorney MARK HUNTING said that █████ wants to help in any way that he can and would continue to be available if further information is needed.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0013**

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Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 11, 2022

FILE CLASS:
09005

OTHER:

NAM: [REDACTED]

BIR:

RAC:

ETH:

NBR: [REDACTED] **DIR:**

SEX:

DL:

STR: [REDACTED]

DOB:

SSN:

SFX: [REDACTED] **APT/LOT:** [REDACTED]

HGT:

SI: /

CTY: [REDACTED] **ST:** [REDACTED]

WGT:

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED]

HAI:

MNU:

TXW:

EYE:

PR:

INTERVIEW [REDACTED]:

[REDACTED] was contacted via telephone [REDACTED]. He identified himself as [REDACTED] and was hesitant to confirm a current address. [REDACTED] denied that he lives in the state of Michigan. He was told that his identification was found and I am investigating it.

[REDACTED] said he has two Michigan Identification cards. He had one and got a replacement. I explained that credit cards were also found in his name. [REDACTED] said it has been since last April or May of 2021 since he lived in Michigan. [REDACTED] denied that the address of [REDACTED] is a current address but stated he didn't want to talk to the police.

[REDACTED] said he has his Michigan Identification but he also lost one. He said he changed his address so he got a second identification. [REDACTED] said he either "threw it" or "dropped it" or "maybe a friend took it" but he declined to say which friend would have taken it.

[REDACTED] said he doesn't have any credit cards and he "never had a credit card" but he again would not provide a current address. [REDACTED] said, "I'm really confused for real". He said I don't know about a credit card and I never had a credit card. [REDACTED] said he didn't want to talk to a police officer.

[REDACTED] said someone can call him on the phone. [REDACTED] verified his date of birth and his social security number. [REDACTED] said he is scared and he doesn't want the police to come. He said he has never had a credit card. [REDACTED] said "it's me". [REDACTED] someone probably stole it from me. He then brought up "that guy that got shot by the police" stating that he (PATRICK LYOYA) is a friend of [REDACTED]. He said PATRICK'S girlfriend called him and couple months ago and said she saw "my man with your social security card".

[REDACTED] said that PATRICK was a friend and he doesn't know why PATRICK would use his identification. He said he didn't know which girlfriend but he thought her name was [REDACTED] or something. [REDACTED] said PATRICK just had a baby with her right now and she was going to put him in child support. [REDACTED] said she was looking through PATRICK'S things and found his [REDACTED] identification and social security card. [REDACTED] said his friend is PATRICK LYOYA, "the one that was shot by the police".

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0013**

ORIGINAL DATE:
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09005

████████ said PATRICK'S response says "Bro, just leave that girl, she talked to everybody about me taking your stuff, so just leave her, she's crazy". "I'm just asking you to leave her".

████████ said PATRICK just cried for him to leave her alone. ██████████ said the last time he had a job in Michigan was a couple months before he left Michigan. ██████████ confirmed the last time he had a job in Michigan was in the beginning of 2021.

████████ forwarded the two messages he recorded on his wife's phone.

████████ said he doesn't have any credit cards and he has never had any in the past. ██████████ said he never had a bank account with PATRICK LYOYA.

████████ said in Michigan there are a lot of African people and that is how he met PATRICK LYOYA. He said he lived in Michigan from 2019 to 2021. He denied ever letting PATRICK use his information. ██████████ provided the phone number of "████████" who called him as ██████████

████████ said ██████████ told him that PATRICK LYOYA was using his name and he asked her not to put his name on anything saying that PATRICK did not have permission to use his documents.

████████ said he has a lot of friends in the African community and they are all talking about PATRICK being shot by the police so he knows about it and planned to attend a funeral. He said everybody, every friend knows and he has seen the news too.

OTHER:

NAM: ██████████

BIR: ██████████

NBR: ██████████ DIR: ██████████

STR: ██████████

SFX: ██████████

CTY: ██████████ ST: ██████████

TXH: ██████████ ZIP: ██████████

TXW: ██████████

MB: ██████████

SMT: ██████████

RAC: ██████████

SEX: ██████████

DOB: ██████████

HGT: ' "

WGT: ██████████

HAI: ██████████

EYE: ██████████

ETH: ██████████

DL: ██████████

SSN: ██████████

SI: /

FBI: ██████████

MNU: ██████████

PR: ██████████

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0013**

SEIZED

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Mon, Apr 11, 2022	FILE CLASS: 09005

SEIZED BY: JACQUELYN STASIAK

Prop 0044 -Type: MISCELLANEOUS Value: \$0.00

Descrp: PLASTIC BAG CONTAINING PAPER BAG WHICH PREVIOUSLY CONTAINED ITEM 42, TASER 7

Obtained From: 1746 NELSON SE

95 - GRAND RAPIDS, MI

41 - KENT, GRIGGS

SPLIT FROM ITEM 42 TO MAINTAIN CHAIN OF CUSTODY

Date/Time Recovered: 04/11/2022 1525

EXTERNAL DOCUMENTS:

Taser Use Report, 1 page

21-050755, Taser Use Report by Officer Schurr

Officer Chris Schurr Training Files, 2 pages

22-012359, Fraud Investigation for theft of \$350 from [REDACTED]

Kent County Media Release dated 4/7/22

Lab submission report for items 16, 18 and 36 to Firearms Unit

Axon Customer Return Service Receipt for Taser and Probes

GRPD Axon Evidence Audit Trail for Taser 7 Used in this incident

Text Message from [REDACTED] documenting his contact with PATRICK LYOYA.

STATUS:

OPEN

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**MICHIGAN DEPARTMENT OF
STATE POLICE**SUPPLEMENTAL INCIDENT REPORT
0014ORIGINAL DATE:
Mon, Apr 04, 2022INCIDENT NO:
060-0000137-22SUPPLEMENTARY DATE:
Tue, Apr 12, 2022FILE CLASS:
09005INCIDENT STATUS:
OPEN**OIS - GRPD/LYOYA****JOURNALS:**

DATE	JOURNALED BY	ACTION
04-11-2022	ENTERED BY: STASIAK, JACQUELYN, 268, D/SERGEANT ON BEHALF OF: STASIAK, JACQUELYN, 268, D/SERGEANT	PROPERTY ITEMS 16, 18, 36 TAKEN TO LAB BY D/SGT STASIAK

DATE	JOURNALED BY	ACTION
04-11-2022	ENTERED BY: STASIAK, JACQUELYN, 268, D/SERGEANT ON BEHALF OF: STASIAK, JACQUELYN, 268, D/SERGEANT	TASER SENT TO AXON TS#432239 FOR FULL ANALYSIS AND CARTRIDGE/WIRE/PROBE ANALYSIS

INFORMATION:

On 04-07-2022 I was requested to attempt contact with the below listed individuals as it pertained to this investigation. More specifically, [REDACTED], based on PATRICK LYOYA providing his name in a previous contact with police. [REDACTED] based on his name being on paperwork found inside the involved vehicle. [REDACTED] due to her being identified as the registered owner of the involved vehicle. [REDACTED] based on her being the registered owner of the plate affixed to the involved vehicle on the date of this incident. Lastly, [REDACTED], based on her Michigan drivers license being located inside the involved vehicle.

PAGE:	INVESTIGATED BY:	INVESTIGATED BY:	REVIEWED BY:
1 of 6	TUBERGEN, AARON, 36, D/SERGEANT	ZIMMERMAN, CORY, 390, D/SERGEANT	

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0014**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Tue, Apr 12, 2022

FILE CLASS:
09005

OTHER PERSON

NAM: [REDACTED]

BIR:

RAC:

ETH:

NBR: [REDACTED] **DIR:** [REDACTED]

SEX:

DL: [REDACTED]

STR: [REDACTED]

DOB:

SSN:

SFX: [REDACTED]

HGT:

SI: /

CTY: [REDACTED] **ST:** [REDACTED]

WGT:

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED]

HAI:

MNU:

TXW: [REDACTED]

EYE:

PR:

SMT:

ATTEMPT TO CONTACT [REDACTED]:

On 04-07-2022 I attempted contact with [REDACTED] at the address [REDACTED]
[REDACTED] I received no response at the door of apartment. I then made contact with the main leasing office and confirmed their records showed that [REDACTED] was a former resident, with no dates of residence on record.

I attempted contact via telephone at [REDACTED] and found the number was no longer in service.

Contact was not made with [REDACTED]

OTHER PERSON

NAM: [REDACTED]

BIR:

RAC:

ETH:

NBR: [REDACTED] **DIR:** [REDACTED]

SEX:

DL: [REDACTED]

STR: [REDACTED]

DOB:

SSN:

SFX: [REDACTED]

HGT:

SI: /

CTY: [REDACTED] **ST:** [REDACTED]

WGT:

FBI:

TXH: [REDACTED] **ZIP:** [REDACTED]

HAI:

MNU:

TXW: [REDACTED]

EYE:

PR:

SMT:

PAGE:

INVESTIGATED BY:

INVESTIGATED BY:

REVIEWED BY:

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TUBERGEN, AARON, 36, D/SERGEANT

ZIMMERMAN, CORY, 390, D/SERGEANT

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**MICHIGAN DEPARTMENT OF
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0014**

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Tue, Apr 12, 2022

FILE CLASS:
09005

ATTEMPT TO CONTACT [REDACTED]

On 04-07-2022 I attempted contact with [REDACTED] at the address [REDACTED]. I received no response at apartment [REDACTED] and as a result, made contact with the main office for the Woodland Creek Apartment complex. I was advised by management that their records indicated [REDACTED] had not been a resident at the complex since 2019. They had no contact information available for him, as he was not listed on the lease.

I attempted contact with [REDACTED] at [REDACTED] and received no response.

Contact was not made with [REDACTED].

OTHER PERSON

NAM: [REDACTED]			
BIR: [REDACTED]		RAC: [REDACTED]	ETH: [REDACTED]
NBR: [REDACTED]	DIR: [REDACTED]	SEX: [REDACTED]	DL: [REDACTED]
STR: [REDACTED]		DOB: [REDACTED]	SSN: [REDACTED]
SFX: [REDACTED]		HGT: [REDACTED]	SI: /
CTY: [REDACTED]	ST: [REDACTED]	WGT: [REDACTED]	FBI: [REDACTED]
TXH: [REDACTED]	ZIP: [REDACTED]	HAI: [REDACTED]	MNU: [REDACTED]
TXW: [REDACTED]		EYE: [REDACTED]	PR: [REDACTED]
MB: [REDACTED]			
SMT: [REDACTED]			

CONTACT [REDACTED]

I attempted contact with [REDACTED] at the address [REDACTED] with negative results. I was, however; able to make contact with her by telephone at [REDACTED]. It was apparent from the start of our conversation that a language barrier was present. I was able to identify myself as a detective with the Michigan State Police and advised her my contact was in regard to the officer involved shooting in Grand Rapids on 4-4-2022. She would advise she was not aware of that incident, as she was currently working and living in Ohio. I explained that the vehicle involved in that incident [REDACTED]. [REDACTED] quickly advised she had sold the vehicle to a [REDACTED], "that she had worked with at Ventra in Grand Rapids. She confirmed the sale of vehicle took place approximately fourteen months prior. She stated the vehicle did not have a registration plate affixed when she sold it. She expressed frustration that the title was not transferred accordingly. I inquired as to the name "PATRICK LYOYA" and she stated she was not familiar with anyone by that name. I then obtained a phone number for [REDACTED] of [REDACTED]. This concluded my contact with [REDACTED].

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**MICHIGAN DEPARTMENT OF
STATE POLICE**

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0014**

ORIGINAL DATE:
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Tue, Apr 12, 2022

FILE CLASS:
09005

CONTACT

I made contact with [REDACTED] via the number provided by [REDACTED]. He would advise he was in the process of selling PATRICK LYOYA the involved vehicle. He advised the sale price had been \$600 and he had not received payment in full. He advised that LYOYA was having difficulty with another vehicle and needed transportation, which resulted in the sale from him approximately two weeks prior to 04-07-2022. I inquired as to how he knew LYOYA, and he stated they had mutual friends, but he did not know LYOYA well. I thanked [REDACTED] for speaking with me and concluded the contact.

OTHER PERSON:

NAM: [REDACTED]

BIR:

NBR:

STR:

SFX:

CTY:

TXH:

TXW:

MB:

SMT:

DIR:

ST:

ZIP:

RAC:

SEX:

DOB:

HGT:

WGT:

HAI:

EYE:

ETH:

DL:

SSN:

SI:

FBI:

MNU:

PR:

INTERVIEW

The following is a synopsis of the interview with [REDACTED] and [REDACTED]. My entire contact with them (recording) is included on property item #45.

I made contact with [REDACTED] by telephone on 04-07-2022. I identified myself and explained that I was contacting her regarding her registration plate being involved in an incident in Grand Rapids on 04-04-2022. She advised she was aware that her ex-boyfriend, PATRICK LYOYA, had been killed by police. As had been in the case with previous interviews, a language barrier was present with [REDACTED]. I requested to speak with her in person and she advised she would be at her residence later that afternoon and agreed to speak with me there.

I made contact with [REDACTED] at the front door of her residence. She invited me inside and I sat in the living room. I requested an opportunity to speak with her privately, as I observed another adult female and small child were present. As I sat down, I observed a male subject walk into the living room with [REDACTED] and I. He was identified as [REDACTED], who had been present during previous interviews by other MSP personnel when LYOYA'S family were contacted. [REDACTED] remained present during my entire interview with [REDACTED].

As the interview began [REDACTED] would confirm he had met with the head of the police in Grand Rapids previously. I then asked [REDACTED] about her plate and Ford Fiesta it was assigned to with the Michigan Secretary of State. She stated she was still the owner of the Ford and had allowed PATRICK LYOYA to borrow it. She was not aware of the vehicle having any issues.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

ZIMMERMAN, CORY, 390, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0014**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Tue, Apr 12, 2022

FILE CLASS:
09005

INTERVIEW [REDACTED] CONTINUED:

I asked when she last had contact with PATRICK. She stated he had been at her home on February 25th. She explained this was after the police had taken his car on a separate incident and he needed to borrow hers, which she allowed him to do. She confirmed they had previously been in a relationship, but it had ended prior to February 25th.

I explained that I had requested to speak with her to clarify the plate, advising it was not affixed to her Ford Fiesta on 04-04-2022. She acknowledged she understood.

I provided my business card to [REDACTED] prior to leaving and referred him to D/Sgt Tubergen for anything further regarding this matter.

OTHER PERSON:

NAM: [REDACTED]

BIR:

RAC:

ETH:

NBR: [REDACTED] DIR:

SEX:

DL: [REDACTED]

STR:

DOB:

SSN:

SFX:

HGT:

SI: /

CTY: [REDACTED] ST: [REDACTED]

WGT:

FBI:

TXH: [REDACTED] ZIP: [REDACTED]

HAI:

MNU:

TXW:

EYE:

PR:

MB: [REDACTED]

SMT:

CONTACT [REDACTED]:

I had attempted to contact [REDACTED] on the morning of 04-07-2022 and received no response at her door. I left a business card in her door and received a phone call from her later that afternoon, advising she was home and available to speak with me there.

The following is a synopsis of my interview with [REDACTED]. My entire contact (recording) is included on property item #45.

I spoke with [REDACTED] inside her apartment. She was unaware of the traffic stop and officer involved shooting on 04-04-2022. I explained the Michigan State Police were investigating the incident and the vehicle involved contained documents inside, one of which was an identification for [REDACTED]. She asked if it was her driver's license and I confirmed it was. She would then advise she was getting vehicle work completed recently at the AutoZone on Eastern Ave and left, or dropped, her identification and two (2) debit cards. Shortly after she was made aware that money was removed off one of the cards through Cash App and the person responsible had used their real name. She found him on Facebook and filed a police report. She stated \$300 was removed and she shut down the other card to prevent any additional money from being taken.

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INVESTIGATED BY:

REVIEWED BY:

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TUBERGEN, AARON, 36, D/SERGEANT

ZIMMERMAN, CORY, 390, D/SERGEANT

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
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09005

██████████ then tried to locate the specific date of when this occurred by accessing her phone. She was not able to locate the information, but agreed to text me the information she collected, once she found it. She was able to confirm that she had not heard of the status of investigation, including whether criminal charges were sought, after filing the police report.

Prior to leaving, ██████████ found a card with incident # 22-012359, that showed a date of 03-06-2022. She would confirm she emailed the screenshots she had taken to the police, as well.

Prior to concluding the interview ██████████ asked if I could tell her the name of the person. I advised her it was PATRICK LYOYA and she stated, "That's him." I then asked if she ever had contact with him. She stated she tried to contact him through Cash App to ask for a refund of the amount taken from her. She stated he then dismantled his account. She then found PATRICK on Facebook and attempted contact with his sister and also believed she may have posted something on his father's page regarding the theft. She stated, "they were just like, he wouldn't do that."

Shortly after leaving ██████████ residence, I received a text message from her that contained ten (10) screen shots she had taken. They are documented below and included on property item #45.

SCREEN SHOTS FROM ██████████:

The screen shots from ██████████ included the Facebook page of LYOYA, www.facebook.com/patrick.lyoya, which showed a photo consistent with LYOYA. The screen shots also included a request of \$350 on Cash App from ██████████ to LYOYA that read, "For repay me or police are coming for you" The request showed it had been declined by the account associated with PATRICK LYOYA.

RECORDED INTERVIEWS/SCREENSHOTS FROM ██████████:

OBTAINED BY: ZIMMERMAN

Prop 0045 -Type: RECORDING AUDIO/VISUAL Qty: 1 Article Type: Disc, Compact Audio Brand: Model:

Serial #: Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: (1) CD-R DISC CONTAINING THE RECORDED CONTACT WITH ██████████ AND ██████████ ON 4-7-2022. DISC ALSO CONTAINS MESSAGES PROVIDED BY ██████████ REGARDING THE FRAUDULENT CHARGES TO HER ACCOUNT, REF GRPD # 22-012359.

Obtained From: ██████████

89 - ██████████

39 - KALAMAZOO, RESIDENCE

██████████ INTERVIEW COMPLETED AT ██████████

Date/Time Recovered: 04/07/2022

STATUS:

Open pending further investigation.

PAGE: 6 of 6	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: ZIMMERMAN, CORY, 390, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0015**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 13, 2022

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

VIDEO FROM GRPD:

After further review of additional videos provided by GRPD, the following videos were copied and entered into property (item #57). The video summaries in this report describe the observations of this officer (D/Sgt. Tubergen), and are not intended as a substitute for the videos.

AXON Fleet 2 Video 2022-04-04 0813 6min53sec Sgt. Johnston Patrol Car

This video displayed a time-stamp that appeared to be exactly four hours ahead of real-time. Adjusted for the discrepancy, the video appeared to start at 08:13:06. The patrol car, driven by Sgt. Johnston, arrived on scene at 08:16:15. The patrol car was parked at the intersection of Nelson Ave / Griggs St SE, facing north-northwest. Included in the field of view, was Ofc. Schurr's patrol car. Ofc. Schurr was observed standing near a tree, near his patrol car, on the East side of Nelson Ave. Other officers moved up to his location and detained [REDACTED].

Ofc. Schurr was observed walking south and entered Sgt. Johnston's patrol vehicle at 08:18:40. Ofc. Schurr was heard breathing heavily, sniffing, and coughing. The video ended when another officer, believed to be Sgt. Dionne, instructed Ofc. Schurr to turn off the camera.

AXON Fleet 2 IR Video 2022-04-04 0818 26min08sec Ofc. Mott Patrol Car

This video displayed a time-stamp that appeared to be exactly four hours ahead of real-time. Adjusted for the discrepancy, the video appeared to start at 08:17:49. In this video, [REDACTED] was sitting in the back of a patrol car. He asked Ofc. Mott, "... My homie just get, did he get shot? Or, he just, what happened to him?..." and later, "So what happened to my friend? My friend is good?... My friend is good?"

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN

Prop 0057 -Type: EVIDENCE Value: \$0.00

Descrp: DVD CONTAINING IN-CAR VIDEO OF [REDACTED] AND IN-CAR VIDEO FROM GRPD SGT. JOHNSTON'S PATROL CAR.

Obtained From: 2290 4 MILE RD

69 - WALKER, MI 49544

41 - KENT, 6TH DIST HQ

SHARED VIA EVIDENCE.COM BY GRPD LT. FORNER, BURNED TO A DVD AT 6TH DIST HQ.

Date/Time Recovered: 04/20/2022

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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0015**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 13, 2022

FILE CLASS:
09005

RESIDENT – [REDACTED]

NAM: [REDACTED]
BIR: [REDACTED] RAC: [REDACTED] ETH: [REDACTED]
NBR: [REDACTED] DIR: [REDACTED] SEX: [REDACTED] DL: [REDACTED]
STR: [REDACTED] DOB: [REDACTED] SSN: [REDACTED]
SFX: [REDACTED] HGT: [REDACTED] SI: /
CTY: [REDACTED] ST: [REDACTED] WGT: [REDACTED] FBI: [REDACTED]
TXH: [REDACTED] ZIP: [REDACTED] HAI: [REDACTED] MNU: [REDACTED]
TXW: [REDACTED] EYE: [REDACTED] PR: [REDACTED]
MB: [REDACTED]
SMT: [REDACTED]

CONTACT WITH [REDACTED]

While reviewing body-camera video from GRPD, I observed an interaction with [REDACTED]. [REDACTED] indicated he may have home security video of the incident. I made contact with [REDACTED] via tx and asked him to send me the available video. I reviewed the video, which was timestamped and began at 0817hrs. It was 1min11sec in length. [REDACTED] residence is on [REDACTED] of Nelson/Griggs. The camera faces North. The video showed [REDACTED] being taken into custody. It did not reveal anything about the shooting, or the events leading up to the shooting. The video was copied to a disk and entered as property item #46.

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN
Prop 0046 -Type: EVIDENCE Value: \$0.00
Descrp: ONE CD CONTAINING HOME SECURITY VIDEO FROM [REDACTED]
Obtained From: 2290 4 MILE RD
69 - WALKER, MI 49544
41 - KENT, 6TH DIST HQ
EMAILED TO D/SGT. TUBERGEN BY [REDACTED], BURNED TO CD AT 6TH DIST HQ.
Date/Time Recovered: 04/08/2022

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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0015**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 13, 2022

FILE CLASS:
09005

EAST GRAND RAPIDS DEPARTMENT OF PUBLIC SAFETY VIDEO:

The East Grand Rapids Department of Public Safety provided the body camera video associated with this incident. There were seven total videos generated by PSOs Katje, Duran, and Nagtzaam. The videos document their response to the scene, the application of police tape around the scene, and assisting with CPR.

Axon Body 3 Video 2022-04-04 0815 X6032716Y 32min34sec PSO Nagtzaam Body Camera

This video displayed a time-stamp, and began at 08:15:21. This video was generated by the body camera of PSO Nagtzaam. In this video, a subject at [REDACTED], who I (D/Sgt. Tubergen) recognized as [REDACTED] told PSO Nagtzaam – "...Your colleague, he was in the right. Like, he tried to do everything he could do to try to mitigate the situation..." PSO Nagtzaam asked [REDACTED] if he could have someone come talk to him about the incident. PSO Nagtzaam then relayed the information to a GRPD officer [REDACTED] was subsequently interviewed by D/Sgt. Zimmerman, supp #2).

MANUFACTURED/TRACE EVIDENCE:

OBTAINED BY: TUBERGEN

Prop 0047 -Type: EVIDENCE Value: \$0.00

Descrp: ONE DVD CONTAINING BODY WORN CAMERA AND PATROL CAR CAMERA VIDEO PRODUCED BY EAST GRAND RAPIDS DEPARTMENT OF PUBLIC SAFETY.

Obtained From: 2290 4 MILE RD

69 - WALKER, MI 49544

41 - KENT, 6TH DIST HQ

OBTAINED FROM EGR DPS AND BURNED TO DISK AT 6TH DIST HQ.

Date/Time Recovered: 04/12/2022

OFC. SCHURR'S TRAINING RECORDS:

On 04/08/22, I received Ofc. Schurr's GRPD training records. In summary, since 08/06/2015 Ofc. Schurr has accumulated 570 training hours. Among the courses Ofc. Schurr completed were:

- multiple courses in firearms,
- multiple courses in defensive tactics,
- body worn camera training,
- implicit bias training,
- less lethal certification,
- use of force scenarios – new Taser 7,
- new Glock Gen 5 transition,
- legal updates,
- de-escalation non-bias decision making,
- and taser use of force scenarios and legal update.

These records were included as external documents.

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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0015**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Wed, Apr 13, 2022	FILE CLASS: 09005

USE OF FORCE REPORT – GRPD 21-050755:

On 04/08/22, I received a complete list of use of force reports involving Ofc. Schurr. This was provided by GRPD Capt. Bylsma. There was one reported incident involving use of force. This incident included a taser deployment. This incident was documented in report 21-050755. In summary, Ofc. Schurr engaged in a foot pursuit of a subject who, after committing multiple traffic offenses, exited a moving vehicle and fled from Ofc. Schurr on foot. Ofc. Schurr gave chase. The suspect did not comply with orders to stop. Ofc. Schurr was able to catch up to the suspect and tackle him to the ground. Ofc. Schurr attempted to gain control of the suspect's arms, but was unable to. Ofc. Schurr successfully deployed his taser probes into the suspect, and pressed the taser against the suspect's leg to create a more effective, third point of contact. After the initial five-second taser cycle, the suspect became non-compliant again. Ofc. Schurr activated his taser for another three seconds, at which time the suspect became compliant.

I obtained the body camera video generated by Ofc. Schurr in this complaint. The video was 0min55sec and was entered as property item #52. According to the attached "Audit Log," the video stopped recording "due to button press." At the time the video stopped recording, Ofc. Schurr appeared to be engaged in a physical altercation with the suspect on the ground. The video did not show the use of the taser. See report #21-050755 for further.

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN

Prop 0052 -Type: EVIDENCE Value: \$0.00

Descrp: ONE DVD CONTAINING OFC. SCHURR'S BODY-WORN CAMERA VIDEO FROM 21-5075.

Obtained From: 2290 4 MILE RD

69 - WALKER, MI 49544

41 - KENT, 6TH DIST HQ

SHARED VIA EVIDENCE.COM BY GRPD LT. FORNER, BURNED TO A DVD AT 6TH DIST HQ.

Date/Time Recovered: 04/19/2022

FRAUD REPORT – GRPD 22-012359:

On 04/08/22, I received a fraud report involving PATRICK LYOYA and [REDACTED]. In summary, on 03/06/22, [REDACTED] reported that her ID, debit card, and two credit cards had been stolen from the counter at Autozone on Eastern Ave. She received notification from MetaBank that \$350 had been transferred from her account to the CashApp account of PATRICK LYOYA. This investigation was closed, and no warrant had been issued.

[REDACTED] ID was observed in PATRICK's vehicle on the day of this shooting. [REDACTED] was interviewed by D/Sgt. Zimmerman (supp #14), who confirmed the details of her original report. See supp #14 and report #22-012359 for further.

PAGE: 4 of 12	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0015**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Wed, Apr 13, 2022	FILE CLASS: 09005

OWI REPORT – MSP 52-1584-21:

After reviewing PATRICK's criminal history, I searched for report 52-1584-21 which was generated by the MSP Wayland Post. In summary, on 03/29/21, Tpr. Caterina responded to a 911 call for a plateless vehicle driving slowly and unable to stay in its lane. Tpr. Caterina located the vehicle and conducted a traffic stop for multiple traffic violations. He made contact with the driver, who verbally identified as [REDACTED]. He was later positively identified as PATRICK LYOYA. Subsequent to a roadside investigation PATRICK was arrested for OWI and DWLS.

I spoke to Tpr. Caterina on 04/15/22, who recalled the incident. Tpr. Caterina noted an apparent language barrier with PATRICK during the initial investigation. However, upon successfully identifying, arresting, and transporting him to the jail, PATRICK's ability to speak and understand English improved. Tpr. Caterina recalled PATRICK asking questions about bond and his vehicle, noting that even PATRICK's accent had changed. I downloaded the dash-cam video associated with this OWI report. It was entered as property item #50. PATRICK had not been sentenced in this case (52-1584-21). His sentencing was originally scheduled for 04/04/22, but had been rescheduled for 05/02/22. See report #52-1584-21 for further.

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN

Prop 0050 -Type: EVIDENCE Value: \$0.00

Descrp: DASH-CAM VIDEO OF 52-1584-21, OWI ARREST OF PATRICK LYOYA BURNED TO A DVD.

Obtained From: 2290 4 MILE RD

69 - WALKER, MI 49544

41 - KENT, 6TH DIST HQ

EXPORTED FROM WATCHGUARD EVIDENCELIBRARY.COM AND BURNED TO A DVD AT 6TH DIST HQ.

Date/Time Recovered: 04/15/2022

OWI REPORT – ISP F07-20-00476:

I received a copy of a police report by the Illinois State Police (F07-20-00476), which documented PATRICK's arrest for aggravated driving while under the influence and driving while license suspended. The incident took place on 12/12/20. In summary, Tpr. Paslawski was dispatched to a personal injury accident in Henry County, IL. He made contact with the driver, who was later identified as PATRICK LYOYA. PATRICK initially provided the Michigan identification card for [REDACTED]. An open Budweiser beer can and an open bottle of vodka were located on the floor near the driver's seat, however the passenger claimed responsibility for the beer. After noticing several discrepancies with the provided information, Tpr. Paslawski confronted PATRICK about his identity. He eventually admitted his name was PATRICK, and his identity was further confirmed by fingerprints. I left a voicemail with the Illinois State Police, requesting video associated with this investigation, if any. I have not received a reply.

As a result of this arrest, PATRICK was placed on probation. His probation began on 04/23/21 and was set to last 30 months (10/23/23). One of his stipulations was "shall not possess or consume any alcohol..." This probation was transferred to Michigan, Kent/Grand Rapids Probation.

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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0015**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Wed, Apr 13, 2022	FILE CLASS: 09005

PROBATION STATUS:

On 04/15/22, I made contact with the Kent County Probation Office and learned that PATRICK was on probation with Agent James Bergman. Agent Bergman was able to forward relevant probation documents concerning PATRICK. I asked about a possible language barrier. Agent Berman denied experiencing a language barrier with PATRICK in-person, however, stated PATRICK did have an accent which made him difficult to understand on the phone at times.

Included in the provided documents, were:

- 14th Circuit Court, Henry County IL, Probation Order
- Catholic Charities of West Michigan Discharge Summary
- MDOC Offender Supervision Summary Report
- MDOC Case Notes
- MDOC Presentence Case Report for Allegan County OWI

Additionally, D/Sgt. Stasiak obtained MDOC documentation of the original OWI incident in Illinois, PATRICK's probation order from Illinois, and additional MDOC criminal history information. These were included as external documents.

SOS DRIVING STATUS:

I conducted an SOS search for PATRICK on 04/04/22, [REDACTED]

SOS TITLE / PLATE HISTORY:

I was able to obtain a license plate registration history for plate EKP9367 and title history for VIN 1N4AL11E93C289027 through SOS. In summary, the latest titled owner of the 2003 Nissan Altima was [REDACTED]. The registration belonged to [REDACTED] for a 2015 Ford 4D. The complete title and registration history were included as external documents.

OFC. SCHURR'S ATTORNEYS:

On 04/12/22, I met with attorneys David and Mark Dodge, who were representing Ofc. Schurr in this case. They requested access to the available videos associated with this investigation. I, along with D/Sgt. Stasiak, viewed the body-worn camera and in-car camera videos of Ofc. Schurr with David and Mark. After viewing the videos, we discussed the possibility of Ofc. Schurr providing a voluntary written statement.

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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0015**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 13, 2022

FILE CLASS:
09005

SEARCH WARRANTS:

On 04/13/22 I drafted search warrants for the following:

- Item #1 – Nissan Altima
- Item #13 – Patrick's iPhone
- Ring – Recorded content at [REDACTED]

These were reviewed by APA Faber and sworn-to before Judge Faber (no relation). They were included as external documents.

IPHONE – ITEM #13:

I delivered item #13, PATRICK's cell phone, to CCU on 04/13/22 along with a copy of the associated search warrant. On 04/14/22, I learned that the extraction methods available to MSP CCU were not compatible with this device. The password could not be defeated, and an extraction could not be accomplished. I retrieved the phone, kept it in airplane mode, and returned it to the charging station in the property room. A return and tabulation was completed and placed with the phone. A copy was sent to the 61st District Court.

RING DOORBELL:

The search warrant for Ring was served via email, subpoenas@ring.com, on 04/13/22. On 04/14/22, I received notification from Ring that a search was conducted, but there were no recordings associated with the address at [REDACTED]. No evidence was generated or seized. A return and tabulation was completed and served on Ring. A copy was sent to the 61st District Court.

VEHICLE SEARCH:

D/Sgt. Stasiak and I searched the Nissan Altima on 04/19/22. Our findings were documented in supp #17. A return and tabulation was completed and placed with the car. A copy was sent to the 61st District Court.

ATTEMPTED CONTACT AT [REDACTED]

On 04/14/22, I attempted to make contact with the residents at [REDACTED]. This residence is located on the [REDACTED] of Nelson, [REDACTED] from where the incident took place. During the initial area canvass, no one was home. Neighbor [REDACTED] believed the unknown resident left for work at Meijer very early in the morning, and was not likely home at the time of the incident. D/Sgt. Hetherington left a business card at the address on 04/04/22, but had yet to receive a reply. On 04/14/22, I was also unsuccessful in making contact with anyone at the address. I also left a business card. As of 04/20/22, I have not received a reply.

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

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0015**

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ATTEMPTED CONTACT AT [REDACTED]:

On 04/14/22, I attempted to make contact with the residents at [REDACTED]. This residence produced the Xfinity home security video previously documented in this report. In an effort to obtain a possibly higher quality video directly from Xfinity, I attempted to obtain additional written consent from [REDACTED]. No one was home. I left my business card at the residence, and left a voicemail with [REDACTED], a resident there. As of 04/20/22, I have not received a reply.

WRITTEN STATEMENT:

On 04/15/22, I received a call from attorney Mark Dodge, informing me that a written statement had been completed and signed by Ofc. Schurr. Emily Dodge, a paralegal at Dodge and Dodge P.C., delivered the statement to MSP 6th District Headquarters. It was initially received by Sgt. Trucks and immediately turned over to me. It was entered as property item #49. A photocopy of the statement has been inserted below. After reviewing the written statement, follow-up questions were provided to Attorney Mark Dodge. As of 04/20/22, I have yet to receive a reply.

SEIZED

SEIZED BY: TUBERGEN

Prop 0049 -Type: DOCUMENTS/PERSONAL OR BUSINESS Qty: 1 Article Type: Documents (Description Req) Brand: Model: Serial #: Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: THREE-PAGE TYPED STATEMENT SIGNED BY CHRIS SCHURR ON 04/15/22. DELIVERED IN ENVELOPE ADDRESSED TO D/SGT. TUBERGEN, FROM DODGE & DODGE P.C, ATTORNEYS AT LAW.

Obtained From: 2290 4 MILE RD

69 - WALKER, MI 49544

41 - KENT, 6TH DIST HQ

DELIVERED BY EMILY DODGE OF "DODGE & DODGE, P.C." ORIGINALLY RECIEVED BY SGT. TRUCKS AND IMMEDIATELY TURNED OVER TO D/SGT. TUBERGEN.

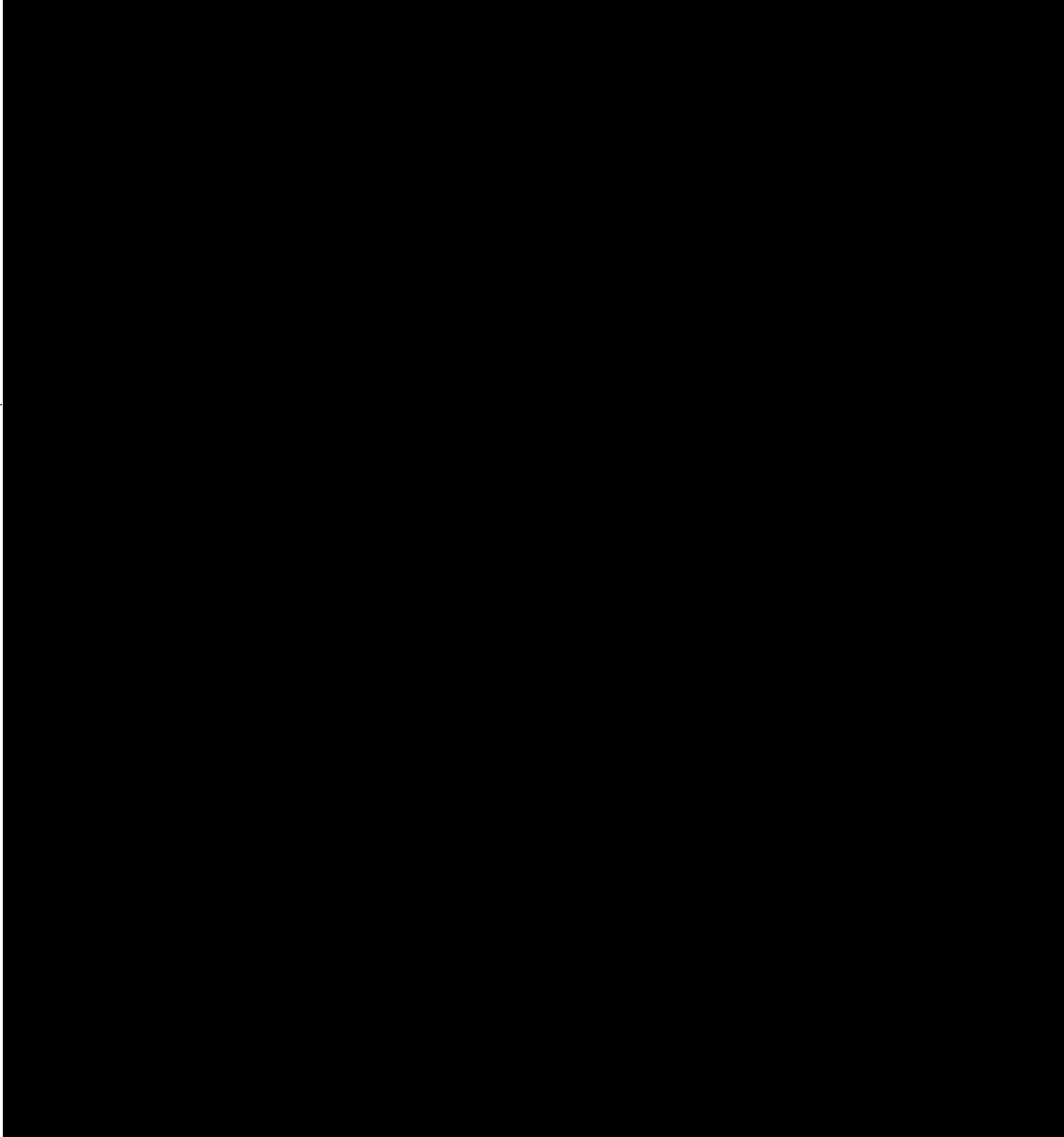
Date/Time Recovered: 04/15/2022

PAGE: 8 of 12	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0015**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Wed, Apr 13, 2022	FILE CLASS: 09005



Page 1 of 3

Chai SQ 4/13/22

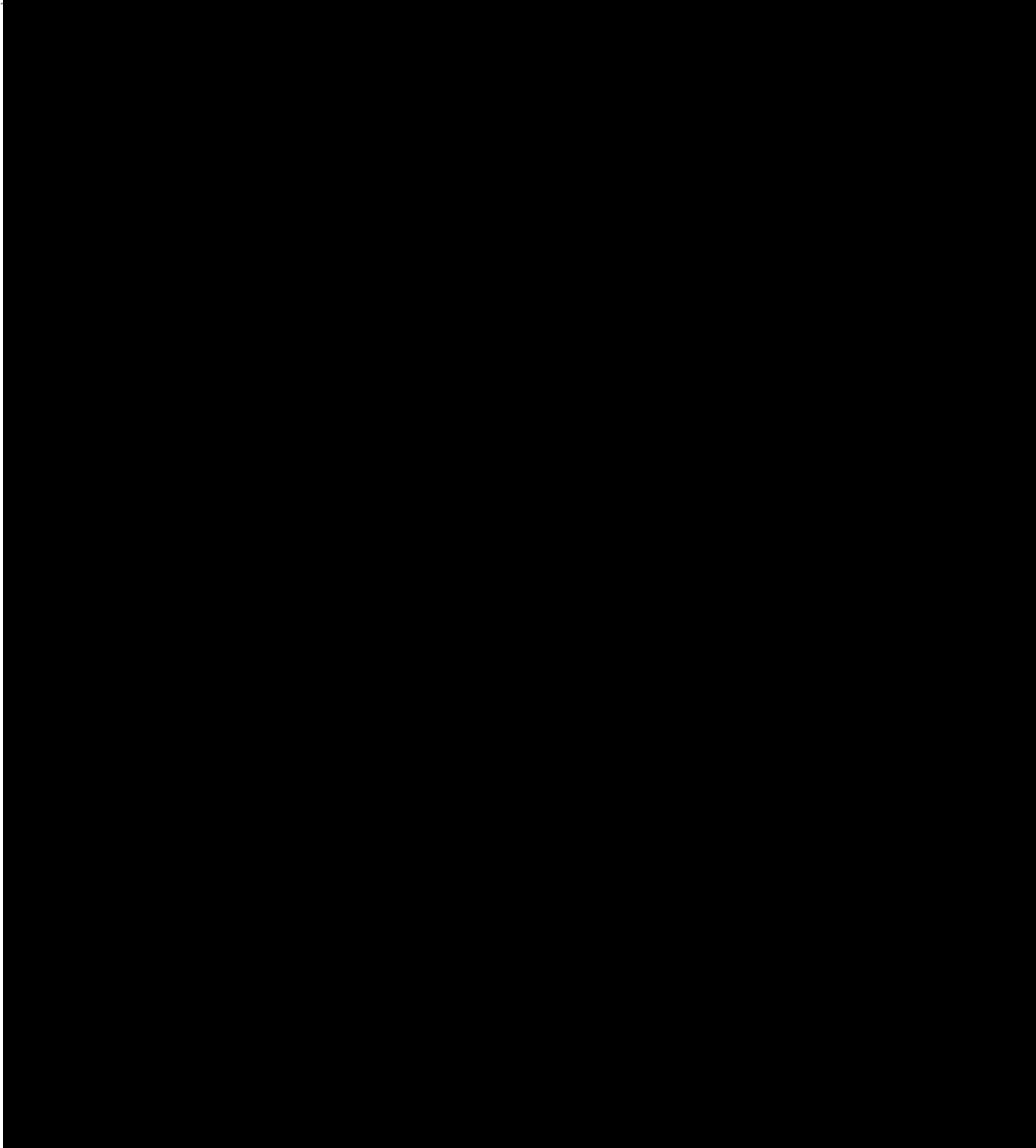
PAGE: 9 of 12	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	REVIEWED BY:
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PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
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CLM [Signature] 4/13/22

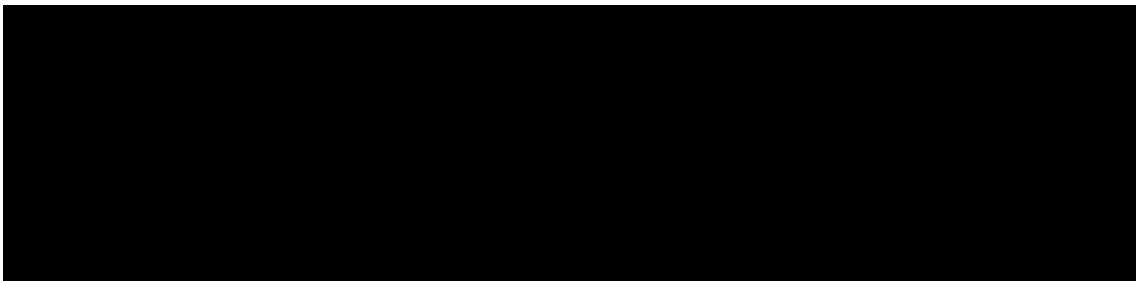
PAGE: 10 of 12	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	REVIEWED BY:
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PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
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Chloe [Signature] 4/13/22

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PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
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0015**

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060-0000137-22

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Wed, Apr 13, 2022

FILE CLASS:

09005

EXTERNAL DOCUMENTS:

GRPD Training Records – Ofc. Schurr
MDOC Probation Documents -- PATRICK
Search Warrant, Affidavit, Return and Tabulation – Nissan
Search Warrant, Affidavit, Return and Tabulation – PATRICK's Phone
Search Warrant, Affidavit, Return and Tabulation – Ring
SOS Records – Title and Registration History
Written Statement – Ofc. Schurr (also property item #49)

OTHER REPORTS:

GRPD - Fraud 22-012359
GRPD - Use of force 21-050755
ISP - OWI F07-20-00476
MSP - OWI 52-1584-21

STATUS:

OPEN

PAGE:

12 of 12

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
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SUPPLEMENTARY DATE:
Fri, Apr 15, 2022

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

JOURNAL:

DATE	JOURNALED BY	ACTION
04-14-2022	ENTERED BY: ZIMMERMAN, CORY, 390, D/SERGEANT	FLASH DRIVE WITH IN CAR, BODY CAM, AND CELL PHONE VIDEO TO MSP AVU ON THIS DATE (WADE DAKIN). D/SGT TUBERGEN OBTAINED AXON LOG-IN INFORMATION FOR ORIGINAL VIDEO TO BE REVIEWED BY AVU. PENDS ANALYSIS, AVU REPORTS, AND RETURN OF EVIDENCE GENERATED.

AXON TASER ANALYSIS:

In addition to the Taser download conducted on 4/6/22 at Grand Rapids PD and witnessed by D/Sgt. Hayes (Supp #8) the decision was made to send the Taser, recovered probes and taser wire to Axon for detailed analysis by Senior Investigations Engineer Bryan Chiles. 6th District SIS investigators have used this service in other OIS cases involving taser deployment. The analysis includes a detailed report and findings after examination of the Taser, probes and taser wires.

Axon will also be used to examine the Axon body worn camera for function, defects and analysis of the audit log.

PACKAGE TASER FOR SHIPMENT / SHIP VIA UPS:

Items # 11, 34 and 42 were packaged for shipment in their original evidence packaging. I sent the package via UPS 2nd Day Air on 4/11/22 at 5:06pm. The Tracking number assigned was (1Z4AE8970291446620). Through package tracking I found the package was delivered on 4/13/22 at 12:39pm and was received by "John" at the front desk of Axon Investigations. I had contact with Sr. Investigations Engineer Bryan Chiles on 4/15/22 via email. Chiles stated the package had been received and secured in their property room. I requested expedited analysis of the taser, probes and wire.

PACKAGE BODY WORN CAMERA FOR SHIPMENT / SHIP VIA UPS:

Item #31 was packaged for shipment in its original evidence packaging. I sent the package via UPS 2nd Day Air on 4/20/22 at 12:54pm. The Tracking number assigned was (1Z4AE8970297201810). Through package tracking I found the package was delivered on 4/22/22 at 11:53am and was received by "Davita" at the front desk of Axon investigations. I had contact with Sr. Investigations Engineer Bryan Chiles who confirmed the

PAGE: 1 of 2	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: ANDERSON, MICHAEL, 66, F/LIEUTENANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
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Fri, Apr 15, 2022

FILE CLASS:

09005

package had been received and had been secured in their evidence room. Chiles stated analysis of the body worn camera would begin after completion of the taser analysis.

STATUS:

OPEN – Pend Taser Analysis

PAGE:

2 of 2

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

ANDERSON, MICHAEL, 66,
F/LIEUTENANT

REVIEWED BY:

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
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0017**

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Mon, Apr 04, 2022

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060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 18, 2022

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS

4/21/22

STASIAK

**Copy of email to Kurt Fiegel added to EX DOC to show photographs
of PATRICK LYoya and [REDACTED].**

CONTACT BLODGETT MORGUE:

At the request of D/Sgt. Tubergen, I met with Dr. Stephen Cohle at the Spectrum Blodgett Morgue on 4/18/22 to review the video evidence, specifically the body worn camera of Officer Chris Schurr and cell phone video recorded by [REDACTED]. Dr. Cohle requested to see the video evidence of the event prior to authoring the autopsy report in this incident. The video was observed only and Dr. Cohle was not provided with a copy of the videos. While at the Blodgett Morgue, I was provided a copy of the photographs taken during the autopsy of PATRICK LYoya. These will be held as evidence and a copy of the images were forwarded to D/Sgt. Tubergen for this investigation.

RECOVERED:

OBTAINED BY: JACQUELYN STASIAK

Prop 0051 -Type: EVIDENCE Value: \$0.00

Descrp: DVD CONTAINING PHOTOGRAPHS OF AUTOPSY OF PATRICK LYoya LABELED SF-22-108

Obtained From: 1840 WEALTHY

95 - GRAND RAPIDS, MI 49506

41 - KENT,

PROVIDED BY SPECTRUM BLODGETT MORGUE PERSONNEL

Date/Time Recovered: 04/18/2022 1340

EXECUTE SEARCH WARRANT FOR BEIGE NISSAN:

On 4/19/22, D/Sgt. Aaron Tubergen and I executed the supplemental search warrant for the vehicle involved in this incident for evidence of identity theft or fraud. The following items were seized from the vehicle. A search warrant return was completed by D/Sgt. Tubergen and left within the vehicle.

SEIZED

SEIZED BY: AARON TUBERGEN

Prop 0053 -Type: IDENTIFICATION CARD Qty: 2 Article Type: Identification (Pass or Card) Brand: Model:
Serial #: Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: MANILLA ENVELOPE CONTAINING PAPERWORK AND MISC IDENTIFICATION CARDS, BRIDGE
CARD IN [REDACTED] NAME, DL IN [REDACTED] NAME

Obtained From: 2290 4 MILE RD

PAGE: 1 of 5	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: STASIAK, JACQUELYN, 268, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

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0017**

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INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Mon, Apr 18, 2022

FILE CLASS:
09005

95 - GRAND RAPIDS, MI 49544

41 - KENT,

RECOVERED FROM FRONT DRIVER AND PASSENGER COMPARTMENT OF BEIGE NISSAN ALTIMA
EKP9376

Date/Time Recovered: 04/19/2022 0342

Property Item 53 includes the following:

- Driver's License of [REDACTED], reported stolen from [REDACTED] on 3/6/22 to GRPD incident **22-012359**. [REDACTED] reports in contact with D/Sgt. Zimmerman (**Supp 14**) that she located and contacted PATRICK LYOYA via his Cash App as he used his real name and told him to repay money stolen from her or she would contact the police. She also reports contacting [REDACTED] via Facebook whom denied that his son would do anything like that. (**See Supp 13- Copy of GRPD Report**)
- Email address of [REDACTED] on a Post It (**Supp 3 GRPD report 20-013417**) PATRICK LYOYA provides false information during arrest that he is [REDACTED]
- Piece of paper with social security number [REDACTED] Confirmed to be that of [REDACTED] by [REDACTED] via TX to D/Sgt. Stasiak (**Supp 12**)
- Bridge Card of [REDACTED]
- Phone number [REDACTED]
- Business card of [REDACTED] ProLogistix, Logistics Workforce Specialists, 3108 28th St SE, Grand Rapids, MI 49512.
- Paperwork for Acosta Multiple Services LLC, Application for Tax Earned Income Credit with telephone number [REDACTED] SSN [REDACTED]

SEIZED

SEIZED BY: AARON TUBERGEN

Prop 0054 -Type: IDENTIFICATION CARD Qty: 1 Article Type: Identification (Pass or Card) Brand: Model:
Serial #: Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: IDENTIFICATION CARD FOR [REDACTED] BEARING PHOTOGRAPH OF PATRICK LYOYA,
VISA DEBIT CARD IN NAME OF "ONSTAFF", NOT ACTIVATED, PHOTOS OF ID CARDS FOR [REDACTED]
[REDACTED] AND [REDACTED], COURT PAPERWORK FOR PATRICK LYOYA FROM ALLEGAN
COUNTY

Obtained From: 2290 4 MILE RD

95 - GRAND RAPIDS, MI 49544

41 - KENT,

RECOVERED FROM REAR DRIVER COMPARTMENT OF BEIGE NISSAN ALTIMA EKP9376

Date/Time Recovered: 04/19/2022 1532

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

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Mon, Apr 18, 2022

FILE CLASS:
09005

Property item 54 includes the following:

- Work identification for North America Fuel Systems Remanufacturing with name [REDACTED] and photograph of PATRICK LYOYA. (LYOYA had obtained employment using the identification documents of [REDACTED] (**Supp 13**))
- Visa Debit Card [REDACTED] with activation sticker still attached in name of "Onstaff" (prepaid debit card for payroll checks to be deposited).
- Envelope with Grand Rapids Income Tax Dept Address with return address of [REDACTED]
- Lacks Enterprises Employment information for start date of March 22, 2022 in name of [REDACTED]
- Photocopy of Employment Card for [REDACTED] (used to gain employment at North American Fuel Systems Remanufacturing, **Supp 13**)
- Photocopy of Michigan Identification Card of [REDACTED] (used to gain employment at North American Fuel Systems Remanufacturing, **Supp 13**)
- Photocopy of Permanent Resident Card and Social Security Card of [REDACTED]
- Photocopy of Michigan ID and Employment Authorization Card of [REDACTED]
- Court paperwork for PATRICK LYOYA from Attorney Anthony C. Greene for Allegan County Circuit Case Case # 21-024500FH and District Case # 211085FD
- Email from Kay Kellogg- Challenge Manufacturing welcoming to new job Thursday 3/31

SEIZED

SEIZED BY: JACQUELYN STASIAK

Prop 0055 -Type: IDENTIFICATION CARD Qty: 1 Article Type: Identification (Pass or Card) Brand: Model: Serial #: Misc #: OAN: Value: \$0.00 Recovered Value: \$0.00

Descrp: COPY OF IDENTIFICATION FOR [REDACTED], MASTERCARD IN NAME OF "EMPLOYBRIDGE" NOT ACTIVATED, COPY OF PERMANENT RESIDENT CARD AND SSN FOR [REDACTED] RECEIPT FROM [REDACTED], TAXES FOR [REDACTED]

Obtained From: 2290 4 MILE RD

95 - GRAND RAPIDS, MI 49544

41 - KENT,

RECOVERED FROM REAR PASSENGER COMPARTMENT OF BEIGE NISSAN ALTIMA EKP9376

Date/Time Recovered: 04/19/2022 1540

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

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0017**

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060-0000137-22

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FILE CLASS:
09005

Property Item 55 includes the following:

- Photograph of back of Identification for [REDACTED]
- Cash Card Mastercard for "Employbridge", Fintwist Card, appears not to be activated
- Acosta Multiple Service LLC Paperwork for [REDACTED] dated March 18, 2022
- Photograph of Permanent Resident Card and Social Security Card of [REDACTED]
- 2021 Taxes for [REDACTED]
- Copy of Lacks Enterprises Employment information with start date of 3/14/22
- Email to [REDACTED] from RMFG Grand Rapids for Orientation starting Thursday 3/31
- Receipt No 358821 received from "[REDACTED]" \$1150.00 "for Rent"
- 2021 Tax Documents for [REDACTED] from DRG Gill LLC D/B/A Gill Staffing
- Pay History for [REDACTED]
- Copy of Employment Authorization Card and Social Security Card for [REDACTED]
- 2021 W2 for [REDACTED] for Staffing Inc
- T Mobile Bill for [REDACTED] dated 3/11/22 for \$646.56
- Acosta Multiple Service LLC Tax Information for [REDACTED] with Direct Deposit

SEIZED

SEIZED BY: JACQUELYN STASIAK

Prop 0056 -Type: MISCELLANEOUS Value: \$0.00

Descrp: MANILLA ENVELOPE CONTAINING RECEIPTS IN NAME OF [REDACTED], VEHICLE
PAPERWORK AND INSURANCE INFORMATION FOR [REDACTED]

Obtained From: 2290 4 MILE RD

95 - GRAND RAPIDS, MI 49544

41 - KENT,

RECOVERED FROM TRUNK COMPARTMENT OF BEIGE NISSAN ALTIMA EKP9376

Date/Time Recovered: 04/19/2022 1540

PAGE:

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INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
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Property item 56 contains the following:

- Receipt for Money Wire from Vigo from "██████████" dated September 24, 2021
- Big Ray's Express Lube receipt for oil change of Ford Fiesta dated 6/23/21
- Rapid Paycard information
- Berry and Gillikins Towing Bill dated 3/29/21 for \$245 "paid cash" for Ford Fiesta
- LA Insurance information for Bahati Kiolano dated 3/24/21

EXTERNAL DOCUMENTS:

Copy of email from Kurt Fiegel/ICE with photographs of LYOYA and ██████████
Copies of Identifications, financial documents, receipts and paperwork seized from vehicle, 111 pages

STATUS:

Open, pending autopsy results, taser results and further investigation.

PAGE: 5 of 5	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: STASIAK, JACQUELYN, 268, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
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Fri, Apr 22, 2022

INCIDENT NO:
060-0000137-22

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

AXON DEVICE AUDIT TRAIL – BODY WORN CAMERA:

On 04/21/22, I obtained the Axon Device Audit Trail for Ofc. Schurr's body-worn camera. This was provided by GRPD Capt. Bylsma. This log recorded the actions of this device on 04/04/22, including recording start and stop times, button-presses, etc. It was included as an external document. See the audit trail document for further.

MSP – AUDIO VISUAL ANALYSIS SECTION AVU-180-22:

On 04/21/22, I obtained report AVU-180-22; I received supp #1 on 04/22/22. The media generated by AVAS was entered as property item #58. The report documented how, using the body-worn camera video, dash-cam video, and cell phone video; AVAS was able to produce digital files that show the provided videos side-by-side and also frame-by-frame. See AVU-180-22 for further.

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN

Prop 0058 -Type: EVIDENCE Value: \$0.00

Descrp: FLASHDRIVE CONTAINING MSP AUDIO VIDEO ANALYSIS SECTION PRODUCTION (AVU-180-22): INCLUDING FRAME-BY-FRAME IMAGES AND SIDE-BY-SIDE VIDEOS. BITLOCKER: [REDACTED]

Obtained From: 4495 CORUNNA RD

95 - FLINT, MI 48532

25 - GENESEE, MSP AVAS

PRODUCED BY D/TPR BATCHELOR, RETRIEVED BY D/SGT. ZIMMERMAN, AND DELIVERED TO D/SGT. TUBERGEN AT 6TH DIST HQ.

Date/Time Recovered: 04/21/2022

MSP – GRAND RAPIDS CRIME LAB GR22-1695:

On 04/26/22, I obtained all four lab reports associated with this investigation. They were included as external documents:

Record #1:

Crime Scene Response Team – This report documented the response of the CSRT and their observations and actions on-scene.

Record #2:

Biology Unit – This report indicated that the seized taser had been submitted for biological testing. However, analysis was cancelled, and no biological examinations were done.

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09005

MSP – GRAND RAPIDS CRIME LAB GR22-1695 (continued):

Record #3:

Latent Print Unit – This report indicated that the seized taser had been submitted for latent print testing. However, analysis was cancelled, and no latent print examinations were done.

Record #4:

Firearms/Toolmark Unit – This report documented the operability of the seized pistol and the relationship between the pistol, the recovered bullet, bullet fragments, and the fired cartridge casing.

See reports GR22-1695 for further.

COMCAST XFINITY SEARCH WARRANT:

After failed attempts to obtain additional written consent from [REDACTED] at [REDACTED] I drafted a search warrant for the recorded content at that address. This search warrant was reviewed by Kent County APA Faber and sworn-to before, and signed by, Judge Faber (no relation). It was served on Comcast/Xfinity, and the search was completed that same day.

I was provided with video via the Comcast law enforcement portal, however, noticed the provided video only included the camera that faced southeast; it did not have the doorbell camera video that faced directly east. Despite the preservation request that had been submitted, Comcast legal specialist Jordan Cohen assured me that all the available video had been provided. It was of noticeably higher quality than the texted videos obtained during the initial investigation. These search warrant results were entered as property item #60. A return and tabulation was served on Comcast, and a copy was filed with the 61st District Court.

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN

Prop 0060 -Type: EVIDENCE Value: \$0.00

Descrp: ONE DVD CONTAINING COMCAST/XFINITY HOME SECURITY VIDEO FROM [REDACTED]

[REDACTED] OBTAINED VIA SEARCH WARRANT DIRECTLY FROM COMCAST.

Obtained From: 2290 4 MILE RD

89 - WYOMING, MI 49544

41 - KENT, 6TH DIST HQ

OBTAINED VIA COMCAST LAW ENFORCEMENT PORTAL AND BURNED TO CD AT 6TH DIST HQ.

Date/Time Recovered: 04/21/2022

PRESS RELEASE:

A press release authored by Spl/Lt. Robinson was shared with the media on 04/22/22. It was included as an external document.

PAGE: 2 of 4	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	REVIEWED BY:
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CENTRAL DISPATCH RECORDINGS:

I received audio recordings of the radio traffic and dispatch phone calls associated with this case. They were sent via email by Records Unit Supervisor Smith. The recordings were burned to a disk and entered into property (item #59).

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN

Prop 0059 -Type: EVIDENCE Value: \$0.00

Descrp: CD CONTAINING CENTRAL DISPATCH RECORDINGS AND INCIDENT LOG.

Obtained From: 2290 4 MILE RD

89 - WYOMING, MI 49544

41 - KENT, 6TH DIST HQ

EMAILED TO D/SGT. TUBERGEN BY GRAND RAPIDS CENTRAL DISPATCH, BURNED TO A CD AT 6TH DIST HQ.

Date/Time Recovered: 04/07/2022

LICENSE PLATE READER INFORMATION:

I inquired about the license plate readers (LPR) utilized by the GRPD. On 04/20/22, Captain Bylsma informed me that Sgt. Rossin was GRPD's fleet manager. Sgt. Rossin was able to produce information about the LPR on Ofc. Schurr's cruiser. Ofc. Schurr's cruiser (332115) was equipped with LPRs at the time of the incident. Sgt. Rossin conducted a search of all LPR reads from 04/04/22 at 0043hrs through 1643hrs for patrol car 332115. There were no results, which was consistent with the devices not being activated. Additionally, Sgt. Rossin was aware that Ofc. Schurr had not been trained to use LPRs, and therefor did not have a user profile for the LPR system. A printout of this search was included as an external document.

GRPD VIDEO:

All body-worn camera, in-car camera, and home security video obtained by GRPD was shared with me via Evidence.com over the first few days of the investigation. After reviewing the videos, I burned them to a flash drive and entered them into property (item #61). Summaries of the most pertinent videos have been included in previous supplemental reports.

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**MICHIGAN DEPARTMENT OF
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FILE CLASS:
09005

MANUFACTURED/TRACE EVIDENCE

OBTAINED BY: TUBERGEN

Prop 0061 -Type: EVIDENCE Value: \$0.00

Descrp: ONE USB FLASH DRIVE CONTAINING ALL GRPD GENERATED MEDIA, INCLUDING BODY-WORN CAMERA, PATROL CAR, AND HOME SECURITY VIDEO FROM [REDACTED]. AUDIT LOGS AND DIGITAL TABLE OF CONTENTS. SHARED IN STAGES VIA AXON/EVIDENCE.COM BY GRPD.

Obtained From: 2290 4 MILE RD

89 - WYOMING, MI 49544

41 - KENT, 6TH DIST HQ

OBTAINED VIA EVIDENCE.COM / GRPD LT. FORNER AND BURNED TO FLASH DRIVE AT 6TH DIST HQ.

Date/Time Recovered: 04/05/2022

EXTERNAL DOCUMENTS:

Axon Device Audit Log – Ofc. Schurr's Body-worn Camera

Press Release – 04/22/22

License Plate Reader Information from GRPD

Search Warrant, Affidavit, Return and Tabulation – Comcast / Xfinity

STATUS:

OPEN

PAGE:

4 of 4

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

REVIEWED BY:

PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0019**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Tue, Apr 26, 2022

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

NO JOURNALS

INFORMATION:

While interviewing [REDACTED], he offered to send two audio files where he confronted PATRICK LYOYA about using his documents. These files were downloaded to a CD to preserve them for this investigation if necessary. The files are in Swahili and will need to be interpreted.

RECOVERED:

OBTAINED BY: JACQUELYN STASIAK

Prop 0062 -Type: EVIDENCE Value: \$0.00

Descrp: CD CONTAINING TWO AUDIO FILES AND A TEXT CHAIN FORWARDED BY [REDACTED]
REPORTEDLY RE: PATRICK LYOYA USING HIS IDENTIFICATION

Obtained From: 2290 4 MILE RD

95 - GRAND RAPIDS, MI 49544

41 - KENT,

DOWNLOADED FROM CELL PHONE

Date/Time Recovered: 04/12/2022 1050

EVIDENCE:

OBTAINED BY: DAVIS

Prop 0063 -Type: EVIDENCE Value: \$0.00

Descrp: ONE MANILA TEST SHOT ENVELOPE LABELED TF-2, CONTAINING TEST SHOTS FROM GLOCK 17 SERIAL [REDACTED]

Obtained From: 2290 4 MILE RD

95 - GRAND RAPIDS, MI

41 - KENT,

GRAND RAPIDS LAB

Date/Time Recovered: 04/26/2022 1035

SEIZED BY: DAVIS

Prop 0064 -Type: AMMUNITION Value: \$0.00

Descrp: ONE MANILA ENVELOPE LABELED GR22-1695 CONTAINER 6, CONTAINING 9MM FCC.

Obtained From: 2290 4 MILE RD

95 - GRAND RAPIDS, MI

41 - KENT,

GRAND RAPIDS LAB

Date/Time Recovered: 04/26/2022 1035

PAGE:

1 of 2

INVESTIGATED BY:

TUBERGEN, AARON, 36, D/SERGEANT

INVESTIGATED BY:

STASIAK, JACQUELYN, 268,
D/SERGEANT

REVIEWED BY:

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0019**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Tue, Apr 26, 2022	FILE CLASS: 09005

STATUS:

OPEN

PAGE: 2 of 2	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: STASIAK, JACQUELYN, 268, D/SERGEANT	REVIEWED BY:
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PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0020**

ORIGINAL DATE:
Mon, Apr 04, 2022

SUPPLEMENTARY DATE:
Wed, Apr 27, 2022

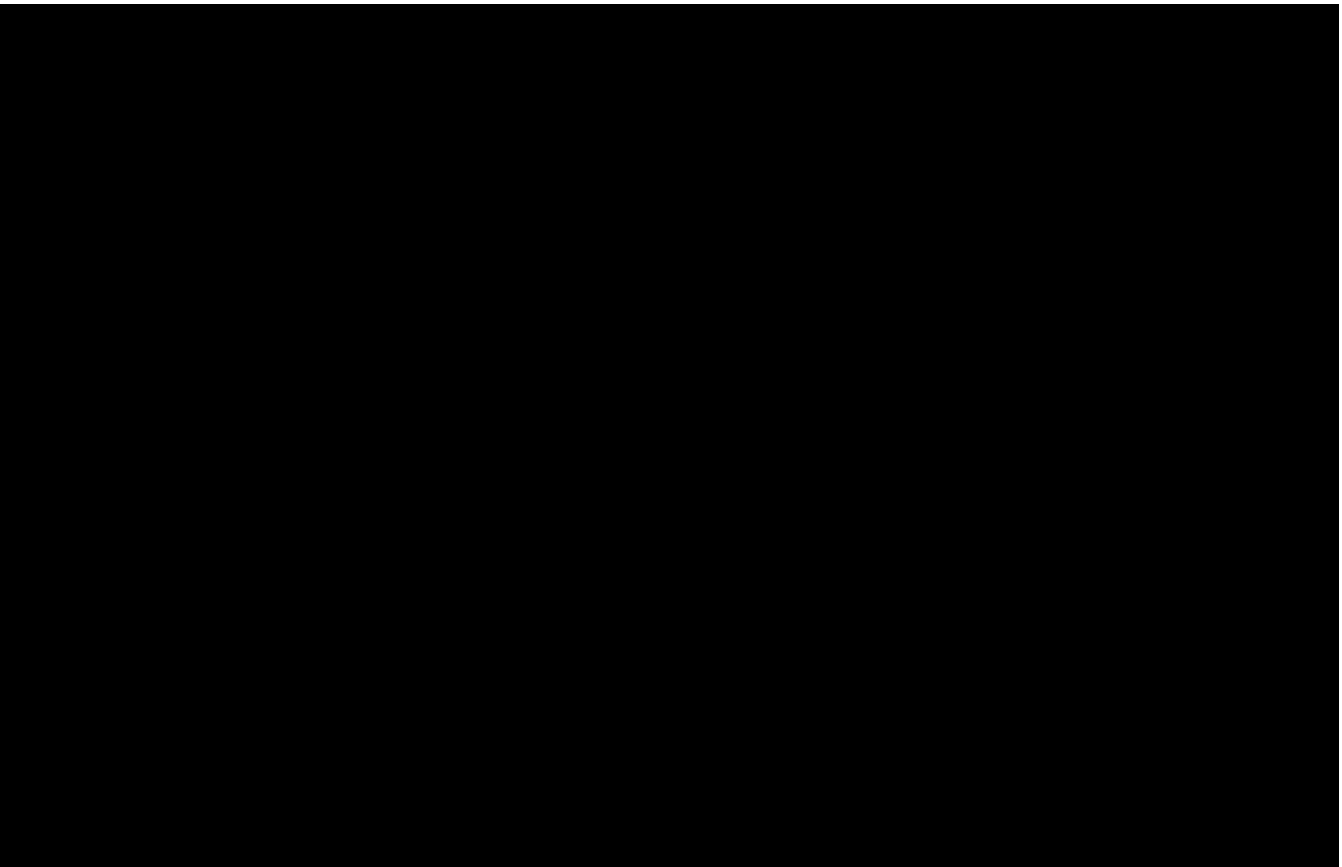
INCIDENT NO:
060-0000137-22

FILE CLASS:
09005

INCIDENT STATUS:
OPEN

OIS - GRPD/LYOYA

LEIN / WARRANTS:



AUTOPSY REPORT:

On 04/20/22, I received the autopsy report from the Office of the Medical Examiner. In summary, the cause of death was determined to be "Gunshot wound to the head," and the manner of death was, "homicide." A comprehensive drug screen showed there was 290mg/dl of ethanol in PATRICK's blood. See autopsy report for further.

PAGE: 1 of 4	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	REVIEWED BY:
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PRINTED: 5/3/2022 09:15

**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0020**

ORIGINAL DATE: Mon, Apr 04, 2022	INCIDENT NO: 060-0000137-22
SUPPLEMENTARY DATE: Wed, Apr 27, 2022	FILE CLASS: 09005

KENT COUNTY SHERIFF'S DEPARTMENT REPORTS:

I requested police reports from the Kent County Sheriff's Office that included PATRICK LYOYA. I received the following reports from KCSD Lt. Richards. Below are summaries of those reports.

16-113503 DWLS / MIP

On 03/19/16, Dep. Aranda conducted a traffic stop on a vehicle driven by PATRICK. Dep. Aranda noted the vehicle was slow to pull over, even after utilizing his siren and air horn. Dep. Aranda noticed the odor of intoxicants on PATRICK's breath, and administered a PBT. PATRICK's [REDACTED]. PATRICK was cited for DWLS and MIP.

16-114880 UDAA

On 03/26/16, Dep. Cardoso was dispatched to a UDAA complaint. PATRICK was living with the victim at the time of the theft. Dep. Cardoso learned the stolen vehicle had been stopped by Lakeview Post Tpr. Nowicki – PATRICK was a passenger. After locating the vehicle and interviewing PATRICK, a warrant was issued for his arrest. PATRICK was arrested for UDAA.

16-116996 Civil Dispute

On 04/08/16, Dep. Cardoso was dispatched to a civil dispute. [REDACTED] reported she had purchased a phone for PATRICK, but he had failed to pay her back according to their agreement. This issue was determined to be non-criminal, and no contact was made with PATRICK.

16-119072 UDAA

On 04/20/16, Deputies Guernsey, Moorehead, and Coil responded to a recovered stolen vehicle. After an on-scene investigation, PATRICK was arrested for possession of a stolen motor vehicle. The vehicle was originally reported stolen to GRPD.

16-128265 Warrant Arrest

On 06/11/16, while investigating an unrelated complaint where PATRICK was present, deputies learned that PATRICK had a warrant. He was arrested and lodged.

16-135817 Domestic Assault

On 07/23/16 Deputies Alderink and Aranda were dispatched to a domestic assault. After interviews with PATRICK, [REDACTED], and a witness; PATRICK was arrested for domestic assault. Dep. Aranda noticed an odor of intoxicants on PATRICK's breath. Dep. Aranda noted that after PATRICK was handcuffed, he pulled away from Dep. Aranda's grip. Dep. Aranda instructed PATRICK to stop resisting, at which time he became compliant.

17-239907 Warrant Arrest

On 08/12/17, while on patrol, Dep. Gokey observed a verbal argument. She made contact with PATRICK and [REDACTED] PATRICK was highly intoxicated. PATRICK was arrested and lodged on unrelated warrants.

PAGE: 2 of 4	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	REVIEWED BY:
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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0020**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 27, 2022

FILE CLASS:
09005

KENT COUNTY SHERIFF'S DEPARTMENT REPORTS (continued):

18-162310 Warrant Arrest

On 12/14/18, Dep. Davis conducted a traffic stop. PATRICK was a passenger in the vehicle and had warrants unrelated to the traffic stop. He was arrested on those warrants.

21-159364 PDA Hit and Run

On 12/25/21, Deputies Brannen and Moore were dispatched to a hit and run crash. The victim was able to obtain a license plate of the suspect vehicle: EKP9367 (which was the license plate on the Nissan involved in the 04/04/22 shooting). Using a photo-lineup, the victim was able to identify PATRICK as the driver of the suspect vehicle. A summons was issued for PATRICK for failure to stop at the scene of property damage accident.

22-114349 MDOP

On 03/27/22, Dep. Mills was dispatched to an MDOP. The victim, [REDACTED] reported that all four tires of her vehicle had been flattened by a piece of wood with nails in it. This occurred over a week before it was reported. [REDACTED] believed her ex-boyfriend, PATRICK, was responsible, because he had slashed her tires in the past. Additionally, they had ended their relations shortly before this occurred. This case was under investigation at the time of the 04/04/22 shooting.

KENTWOOD POLICE DEPARTMENT POLICE REPORTS:

D/Sgt. Stasiak requested police reports from the Kentwood Police Department that included PATRICK LYOYA. She forwarded them to me upon receipt. They will be included with this report. Below are summaries of those reports.

2015-14871 OWI / [REDACTED]

On 08/09/15, Ofc. Dykgraaf conducted a traffic stop on a Oldsmobile Alero driven by PATRICK. There were children in the back seat of the vehicle. The license plate [REDACTED]. The subsequent investigation lead to PATRICK's arrest for OWI – Child Endangerment.

2016-1166 DWLS

On 01/20/16, Ofc. Foster wrote PATRICK a citation with a court appearance date for driving while license suspended.

2017-6482 Domestic Assault

On 04/04/17, Ofcs. Karwowski and Bylsma were dispatched to an assault in a parking lot. They made contact with PATRICK, [REDACTED] and witnesses. PATRICK was intoxicated at the time. He was arrested for domestic assault and multiple contempt of court warrants.

2018-3473 PDA

On 02/23/18, PATRICK was listed as a witness to a private property hit and run.

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**MICHIGAN DEPARTMENT OF
STATE POLICE**

**SUPPLEMENTAL INCIDENT REPORT
0020**

ORIGINAL DATE:
Mon, Apr 04, 2022

INCIDENT NO:
060-0000137-22

SUPPLEMENTARY DATE:
Wed, Apr 27, 2022

FILE CLASS:
09005

KENTWOOD POLICE DEPARTMENT POLICE REPORTS (continued):

2018-14646 Assault GBH (victim)

On 07/17/18, Multiple officers were dispatched to an apartment for a stabbing investigation. The victim was PATRICK. PATRICK described getting into a fight with [REDACTED] over alcohol, at which time [REDACTED] stabbed PATRICK multiple times. [REDACTED] was arrested for Assault – Great Bodily Harm.

WYOMING POLICE DEPARTMENT POLICE REPORTS:

D/Sgt. Stasiak requested police reports from the Wyoming Police Department that included PATRICK LYOYA. She forwarded them to me upon receipt. They will be included with this report. Below are summaries of those reports.

17-11797 DWLS / Hit and Run

On 05/08/17, Ofc. Freeman investigated a hit and run crash. The victim indicated the suspect vehicle was occupied by two black men. One of them men was seen placing alcohol in the back seat after the crash. The victim identified the license plate of the suspect vehicle, and Ofc. Freeman made contact with the registered owner, [REDACTED] indicated PATRICK took her vehicle without permission. The vehicle was later returned and she no longer wished to press charges for UDAA. Inside the vehicle were alcohol containers. Warrants were sought, and PATRICK was arrested for Fail to Stop and ID at Accident and DWLS.

20-7102 MDOP

On 03/17/20, Ofc. Elwell was dispatched to an MDOP. [REDACTED] [REDACTED] reported that PATRICK intentionally destroyed her Acer Chromebook during an argument. No contact was made with PATRICK.

22-8912 Domestic Assault

On 04/01/22, Ofc. Bomer was dispatched to a domestic assault involving PATRICK and [REDACTED] [REDACTED] reported being punched by PATRICK. She was evaluated by AMR and requested to go to the hospital for her injuries. A warrant was issued for PATRICK for domestic assault. [REDACTED] on the day of the shooting, 04/04/22.

EXTERNAL DOCUMENTS:

Autopsy Report

STATUS:

OPEN

PAGE: 4 of 4	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	INVESTIGATED BY: TUBERGEN, AARON, 36, D/SERGEANT	REVIEWED BY:
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